NEW ISSUE - BOOK ENTRY ONLY **RATING: Moody's "Aaa"**
See "RATING" herein

In the opinion of McGuireWoods LLP, under laws existing on the date of issuance and assuming continuous compliance with certain covenants and agreements contained in the documents more fully described herein, (a) interest on the Bonds is excludable from the gross income of the holder(s) of the Bonds for purposes of federal income taxation pursuant to the Internal Revenue Code of 1986, as amended (the "Code"), except as provided in Section 147(a) of the Code with respect to any period during which the Bonds are held by a person who is a "substantial user" of any facility financed or refinanced by the Bonds or by a "related person," as such terms are used in Section 147(a) of the Code and the regulations adopted thereunder, and except as set forth herein under the heading "TAX MATTERS," and (b) interest on the Bonds is exempt from income taxation in the State of North Carolina. For purposes of federal income taxation, interest on the Bonds is not treated as a specific item of tax preference for purposes of calculating the federal alternative minimum tax. See further discussion under the heading "TAX MATTERS" herein.

$13,500,000
INLIVIAN
Multifamily Green Tax-Exempt Mortgage-backed Bonds
(GREEN M-TEBS) (Northcross Townhomes), Series 2020

Dated: April 1, 2020
Interest Rate: 2.55% **Maturity Date: May 1, 2037**
Offering Price: 100% **CUSIP: 45753CAA5**

The INLIVIAN Multifamily Green Tax-Exempt Mortgage-backed Bonds (GREEN M-TEBS) (Northcross Townhomes), Series 2020 (the "**Bonds**") will be issued under and pursuant to an Indenture of Trust, dated as of April 1, 2020 (the "**Indenture**"), between INLIVIAN (the "**Issuer**") and U.S. Bank National Association, as trustee (the "**Trustee**").

The Bonds are issuable only as fully registered bonds without coupons and will be registered in the name of Cede & Co., as nominee of The Depository Trust Company ("**DTC**"), New York, New York. DTC will act as securities depository of the Bonds. Individual purchases will be made in book-entry form only, in the denominations of $1,000 and integral multiples of $1 in excess thereof. Purchasers will not receive certificates representing their interest in Bonds purchased. Principal and interest on the Bonds are payable by the Trustee to DTC, which will be responsible for remitting such principal and interest to its Participants, which will be responsible for remitting such principal and interest to the Beneficial Owners of the Bonds, as described under "APPENDIX F – BOOK-ENTRY SYSTEM" herein.

The Bonds will be issued to finance the acquisition, rehabilitation and equipping of a low and moderate income multifamily rental housing facility through the purchase by the Trustee of a single mortgage pass-through certificate (the "**MBS**") guaranteed as to timely payment of principal and interest by the Federal National Mortgage Association ("**Fannie Mae**"), if and when issued. It is anticipated that, prior to the delivery of the MBS, the principal of and interest on the Bonds will be paid from amounts on deposit in the Revenue Fund and the Bond Proceeds Fund along with the investment earnings thereon. See "SECURITY FOR AND SOURCES OF PAYMENT FOR BONDS" herein.

FannieMae

The aggregate principal amount, aggregate face amount (if different), maturity date, interest rate and delivery date for the Bonds shall be as set forth in the Indenture and shall be described, together with the initial reoffering price, if applicable, in the Term Sheet attached as APPENDIX H hereto delivered in connection with the sale of the Bonds.

Prior to the MBS Delivery Date (as defined herein), principal, if due, and interest on the Bonds will be payable monthly on the 26th day of the month, or the next succeeding Business Day if such 26th day is not a Business Day, commencing May 26, 2020, until and including the 26th day of the month in which the MBS Delivery Date occurs. Commencing in the first month after the month in which the MBS Delivery Date occurs, principal, if due, and interest will be payable on the first Business Day following receipt of a payment representing principal, if due, and interest under the MBS.

THE BONDS AND THE INTEREST THEREON ARE LIMITED OBLIGATIONS OF THE ISSUER, PAYABLE SOLELY FROM THE TRUST ESTATE UNDER THE INDENTURE. NEITHER THE ISSUER, ANY OF ITS COMMISSIONERS, THE STATE, NOR ANY POLITICAL SUBDIVISION THEREOF (EXCEPT THE ISSUER, TO THE LIMITED EXTENT SET FORTH IN THE INDENTURE) NOR ANY PUBLIC AGENCY SHALL IN ANY EVENT BE LIABLE FOR THE PAYMENT OF THE PRINCIPAL OF, PREMIUM (IF ANY) OR INTEREST ON THE BONDS OR FOR THE PERFORMANCE OF ANY PLEDGE, OBLIGATION OR AGREEMENT OF ANY KIND WHATSOEVER EXCEPT AS SET FORTH IN THE INDENTURE, AND NONE OF THE BONDS OR ANY OF THE ISSUER'S AGREEMENTS OR OBLIGATIONS SHALL BE CONSTRUED TO CONSTITUTE AN INDEBTEDNESS OF OR A PLEDGE OF THE FAITH AND CREDIT OF OR A LOAN OF THE CREDIT OF OR A MORAL OBLIGATION OF ANY OF THE FOREGOING WITHIN THE MEANING OF ANY CONSTITUTIONAL OR STATUTORY PROVISION WHATSOEVER. THE ISSUER HAS NO TAXING POWER.

The Bonds are offered when, as and if received by Wells Fargo Bank, National Association (the "**Underwriter**"), subject to the approval of legality by McGuireWoods LLP, Raleigh, North Carolina, Bond Counsel. Certain legal matters will be passed upon for the Borrower by its counsels, Levitt & Boccio, LLP, New York, New York, and Williams Mullen, Raleigh, North Carolina, and for the Underwriter by its counsel, Tiber Hudson LLC, Washington, D.C. It is expected that the Bonds will be available in book-entry form through the facilities of DTC in New York, New York on or about April 15, 2020.

WELLS FARGO SECURITIES

Dated: April 14, 2020

No dealer, broker, salesman or other person has been authorized by the Issuer or the Underwriter to give any information or to make any representations other than those contained in this Official Statement and, if given or made, such other information or representations must not be relied upon as having been authorized by any of the foregoing. This Official Statement does not constitute an offer to sell or the solicitation of an offer to buy, nor shall there be any sale of the Bonds by any person in any jurisdiction in which it is unlawful for such person to make such offer, solicitation or sale.

Prospective purchasers must read this entire Official Statement (including the cover page and all appendices hereto) to obtain all of the information essential to the making of an informed investment decision.

References to website addresses presented herein are for informational purposes only and may be in the form of a hyperlink solely for the reader's convenience. Unless specified otherwise, such web sites and the information or links contained therein are not incorporated into, and are not part of, this Official Statement.

The information set forth herein under the headings "THE ISSUER" and "NO LITIGATION—The Issuer" has been furnished by the Issuer. All other information set forth herein has been obtained from the Borrower and other sources which are believed to be reliable, but it is not guaranteed as to accuracy or completeness and is not to be construed as a representation by the Issuer or the Underwriter. The information and expressions of opinion herein are subject to change without notice, and neither the delivery of this Official Statement nor any sale made hereunder shall, under any circumstances, create any implication that there has been no change in the affairs of the Borrower, the Issuer or any other parties described herein since the date as of which such information is presented.

In connection with this offering, the Underwriter may over-allot or effect transactions which stabilize or maintain the market price of the Bonds offered hereby at a level above that which might otherwise prevail in the open market. Such stabilizing, if commenced, may be discontinued at any time.

The Underwriter has provided the following sentence for inclusion in this Official Statement. The Underwriter has reviewed the information in this Official Statement in accordance with, and as part of, its responsibilities to investors under the federal securities laws as applied to the facts and circumstances of this transaction, but the Underwriter does not guarantee the accuracy or completeness of such information.

Fannie Mae has not reviewed or undertaken to determine the accuracy of any of the information contained in this Official Statement, other than providing a link to the template Fannie Mae MBS Prospectus in APPENDIX A and the Additional Disclosure Addendum in Schedule I to APPENDIX A, and makes no representation or warranty, express or implied, as to any of the other matters contained in this Official Statement, including, but not limited to (i) the accuracy or completeness of such information, (ii) the suitability of the Bonds for any investor, (iii) the feasibility or performance of any project, (iv) the structure, provisions or terms of the Bonds and any cash flows related thereto, or (v) compliance with any securities, tax or other laws or regulations including but not limited to the validity of the Bonds and the tax-exempt status of the Bonds. Fannie Mae's role with respect to the Bonds is limited to issuing and discharging its obligations under the MBS if and when delivered.

No registration statement relating to the Bonds has been filed with the United States Securities and Exchange Commission (the "Commission") or with any state securities agency. The Bonds have not been approved or disapproved by the Commission or any state securities agency, nor has the Commission or any state securities agency passed upon the accuracy or adequacy of this Official Statement. Any representation to the contrary is a criminal offense.

CUSIP data herein are provided by Standard & Poor's CUSIP Service Bureau, a division of The McGraw-Hill Companies, Inc. CUSIP numbers have been assigned by an independent company not affiliated with the Issuer and are included solely for the convenience of the holders of the Bonds. The Issuer is not responsible for the selection or uses of these CUSIP numbers, and no representation is made as to their correctness on the Bonds or as indicated above. The CUSIP number for a specific maturity is subject to being changed after the issuance of the Bonds as a result of various subsequent actions.

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OFFICIAL STATEMENT

relating to

$13,500,000
Multifamily Green Tax-Exempt Mortgage-backed Bonds
(GREEN M-TEBS) (Northcross Townhomes), Series 2020
Issued by
INLIVIAN

INTRODUCTION

This Official Statement (which includes the cover page and appendices hereto) provides certain information in connection with the issuance and sale of the $13,500,000 Multifamily Green Tax-Exempt Mortgage-backed Bonds (GREEN M-TEBS) (Northcross Townhomes), Series 2020 (the "**Bonds**") issued by INLIVIAN (the "**Issuer**"). The Bonds will be issued pursuant to the provisions of the North Carolina Housing Authorities Law, Article 1 of Chapter 157 of the General Statutes of North Carolina, as amended (the "**Act**"), and that certain resolution adopted on March 17, 2020 (the "**Resolution**") and secured by an Indenture of Trust, dated as of April 1, 2020 (the "**Indenture**"), between the Issuer and U.S. Bank National Association, as trustee (the "**Trustee**"). Pursuant to the Indenture and the Financing Agreement, dated as of April 1, 2020 (the "**Financing Agreement**"), among the Issuer, the Trustee and Northcross Preservation, L.P., a New York limited partnership (the "**Borrower**"), the Issuer is issuing the Bonds to provide financing for a certain low- and moderate-income multifamily rental housing facility known as Northcross Townhomes (the "**Project**") in Charlotte, North Carolina (the "**State**"), as further described in the Term Sheet attached as APPENDIX H to this Official Statement (the "**Term Sheet**"), and to facilitate the delivery of the MBS (as defined below) guaranteed by the Federal National Mortgage Association ("**Fannie Mae**"). The Project is expected to qualify for the Fannie Mae Green Rewards Program, as hereinafter described. See "FANNIE MAE GREEN MORTGAGE LOAN PROGRAM" herein.

All capitalized terms used in this Official Statement that are defined in the Indenture shall have the respective meanings set forth in the Indenture. See "APPENDIX B - DEFINITIONS OF CERTAIN TERMS."

The Issuer, the Borrower and Wells Fargo Bank, National Association (the "**Underwriter**") have entered into a Bond Purchase Agreement (the "**Bond Purchase Agreement**"), pursuant to which the Issuer will agree to sell the Bonds to the Underwriter. The transaction entered into under the Bond Purchase Agreement will provide for the issuance and sale to the Underwriter of the Bonds in a specified principal amount, with a specified interest rate, on a specified date and at a specified price. The delivery of the Bonds is subject to the satisfaction of a number of conditions set forth in the Bond Purchase Agreement.

The Bonds will be issued to finance the Project through the purchase of a single mortgage pass-through certificate (the "**MBS**") guaranteed as to principal and interest by Fannie Mae, if and when issued. The MBS will not be available for purchase on the date of issuance of the Bonds (the "**Closing Date**") but is expected to be available for acquisition by the Trustee prior to the MBS Delivery Date Deadline, as specified in the Term Sheet. The MBS will be backed by a 17-year, fixed-rate mortgage loan (the "**Mortgage Loan**") secured by a mortgage constituting a first lien on the Project. The Mortgage Loan will be made to the Borrower as mortgagor and owner of the Project on the Closing Date. See "THE MORTGAGE LOAN" herein and "APPENDIX A – FANNIE MAE MORTGAGE-BACKED SECURITIES PROGRAM" attached hereto.

On the Closing Date, and prior to the date of delivery by Fannie Mae of the MBS (the "**MBS Delivery Date**"), the Bonds will be secured by (i) the proceeds of the Bonds equal to the principal amount thereof delivered to the Trustee and deposited into the Bond Proceeds Fund established under the Indenture and (ii) Eligible Funds, delivered to the Trustee and deposited into the Negative Arbitrage Account of the Revenue Fund established under the Indenture, in an amount equal to the interest on the Bonds at the pass-through rate from the Bond Dated Date (as specified in the Term Sheet) to, but not including, the date that is five (5) Business Days after the MBS Delivery Date Deadline (collectively, the "**Cash Collateral**"). Prior to the MBS Delivery Date, the principal of, premium, if any, and interest on the Bonds will be paid from amounts on deposit in the Revenue Fund and the Bond Proceeds Fund along with the investment earnings thereon. See "SECURITY FOR AND SOURCES OF PAYMENT FOR THE BONDS" herein.

On the MBS Delivery Date, amounts on deposit in the Bond Proceeds Fund will be used by the Trustee to purchase the MBS, which will then secure the payment of the Bonds. On or prior to the Closing Date, Fannie Mae will enter into a commitment with Wells Fargo Bank, National Association (the "**Lender**"), the Fannie Mae-approved lender of the Mortgage Loan, to deliver the MBS to the Trustee for purchase. The commitment to deliver the MBS is subject to the satisfaction of certain requirements and preconditions and does not extend to the benefit of any other third party, including the beneficial owners of the Bonds, the Issuer or the Trustee. No representations or assurances can be provided as to whether or not such conditions can or will be satisfied.

If the MBS is not delivered on or before the MBS Delivery Date Deadline specified in the Term Sheet, as such date may be extended pursuant to the terms of the Indenture, then funds then on deposit in the Bond Proceeds Fund and the Revenue Fund will be used to redeem the Bonds as set forth in the Indenture. The Bonds are also subject to mandatory redemption in whole or in part as further described herein. See "DESCRIPTION OF THE BONDS — Mandatory Redemption of Bonds."

Following the MBS Delivery Date, the principal amount of the Bonds Outstanding will equal the then-current principal amount of the MBS, which will equal the product of the original aggregate principal amount of the Mortgage Loan and the then-applicable factor posted by Fannie Mae as the Mortgage Loan amortizes or is otherwise prepaid (the "**MBS Factor**"). MBS Factors with respect to MBSs can be found on Fannie Mae's website and can be accessed through DUS Disclose.

The interest rate on the Bonds is set forth in the Term Sheet (the "**Pass-Through Rate**"). Prior to the MBS Delivery Date, principal, if due, and interest on the Bonds will be payable monthly on the 26th day of the month, or the next succeeding Business Day if such 26th day is not a Business Day, commencing May 26, 2020, until and including the 26th day of the month in which the MBS Delivery Date occurs. Commencing in the first month after the month in which the MBS Delivery Date occurs, principal, if due, and interest will be payable on the first Business Day following receipt of a payment representing principal, if due, and interest under the MBS. Principal and interest on the Bonds are payable by the Trustee to DTC, which will be responsible for remitting such principal and interest to its Participants, which will be responsible for remitting such principal and interest to the Beneficial Owners of the Bonds. The payment of interest on each Payment Date shall relate to the interest accrued during the preceding calendar month.

The Bonds are limited obligations of the Issuer, payable solely from and secured by the pledge pursuant to the Indenture of the Trust Estate, consisting of revenues from the MBS (the "**MBS Revenues**") and other funds pledged therefor under the Indenture. See "SECURITY FOR AND SOURCES OF PAYMENT FOR THE BONDS."

THE BONDS AND THE INTEREST THEREON ARE LIMITED OBLIGATIONS OF THE ISSUER, PAYABLE SOLELY FROM THE TRUST ESTATE UNDER THE INDENTURE. NEITHER THE ISSUER, ANY OF ITS COMMISSIONERS, THE STATE, NOR ANY POLITICAL SUBDIVISION THEREOF (EXCEPT THE ISSUER, TO THE LIMITED EXTENT SET FORTH IN THE INDENTURE) NOR ANY PUBLIC AGENCY SHALL IN ANY EVENT BE LIABLE FOR THE PAYMENT OF THE PRINCIPAL OF, PREMIUM (IF ANY) OR INTEREST ON THE BONDS OR FOR THE PERFORMANCE OF ANY PLEDGE, OBLIGATION OR AGREEMENT OF ANY KIND WHATSOEVER EXCEPT AS SET FORTH IN THE INDENTURE, AND NONE OF THE BONDS OR ANY OF THE ISSUER'S AGREEMENTS OR OBLIGATIONS SHALL BE CONSTRUED TO CONSTITUTE AN INDEBTEDNESS OF OR A PLEDGE OF THE FAITH AND CREDIT OF OR A LOAN OF THE CREDIT OF OR A MORAL OBLIGATION OF ANY OF THE FOREGOING WITHIN THE MEANING OF ANY CONSTITUTIONAL OR STATUTORY PROVISION WHATSOEVER. THE ISSUER HAS NO TAXING POWER.

Descriptions, certain definitions and final terms of the Bonds, the Borrower, the Project, the Mortgage Loan and the MBS, are included in the Term Sheet. All summaries or descriptions herein of documents and agreements are qualified in their entirety by reference to such documents and agreements and all summaries herein of the Bonds are qualified in their entirety by reference to the Indenture and the provisions with respect thereto included in the aforesaid documents and agreements. Copies of the Indenture and the Financing Agreement are available for inspection at the office of the Trustee. The Borrower will provide certain information on an ongoing basis to the Municipal Securities Rulemaking Board (the "**MSRB**"). For a description of the Borrower's undertaking with respect to ongoing disclosure, see "CONTINUING DISCLOSURE" herein.

The Project is expected to include energy efficiency improvements and features in a manner that is consistent with Fannie Mae's Multifamily Green Bond Framework (the "Green Bond Framework"). See "THE FANNIE MAE GREEN MORTGAGE LOAN PROGRAM" herein.

THE ISSUER

The following information has been provided by the Issuer for use herein. While the information is believed to be reliable, none of the Trustee, the Borrower, the Underwriter, the Lender, Fannie Mae nor any of their respective counsel, members, officers or employees makes any representations as to the accuracy or sufficiency of such information.

The Issuer is a public body and a body corporate and politic of the State of North Carolina created pursuant to the Act by a resolution of the City Council of the City of Charlotte, North Carolina adopted on December 7, 1938. The Issuer has been in continuous operation since that date. The Issuer's powers are vested in seven commissioners appointed by the Charlotte City Council: two (2) appointed directly by the Mayor and five (5) appointed by other members of Council. At least one member must be a resident of assisted (low income) housing. Under the Act, the Issuer is authorized to prepare, carry out and operate housing projects and provide for the construction thereof, to make loans for assistance in acquisition and rehabilitation of residential buildings and to arrange or contract for the furnishing by any person or agency, public or private, of services in connection with a housing project for the occupants thereof. The Issuer also has power to issue bonds and other obligations for any of the foregoing purposes.

EXCEPT FOR INFORMATION CONCERNING THE ISSUER IN THIS SECTION AND "NO LITIGATION" (WITH RESPECT TO THE ISSUER), NONE OF THE INFORMATION IN THIS OFFICIAL STATEMENT HAS BEEN SUPPLIED OR VERIFIED BY THE ISSUER, AND THE ISSUER MAKES NO REPRESENTATION OR WARRANTY, EXPRESS OR IMPLIED, AS TO THE ACCURACY OR COMPLETENESS OF SUCH INFORMATION.

DESCRIPTION OF THE BONDS

General

The Bonds will be issued in the denominations of $1,000 and integral multiples of $1 in excess thereof. The Bonds are issuable only as fully registered bonds without coupons and will be registered in the name of Cede & Co., as nominee of The Depository Trust Company ("**DTC**"), New York, New York. DTC will act as securities depository for the Bonds. Individual purchases will be made in book-entry form only. Purchasers will not receive bonds representing their interest in the Bonds purchased. See "APPENDIX F — BOOK-ENTRY SYSTEM."

The Bonds will be dated and have a final maturity date and a final payment date on the respective dates identified in the Term Sheet. The Bonds will bear interest from their dated date at the Pass-Through Rate set forth in the Term Sheet. Interest on the Bonds shall be computed for the actual number of days which have elapsed, on the basis of a 360-day year. The payment of interest on each Payment Date shall relate to the interest accrued during the preceding calendar month.

Prior to the MBS Delivery Date, interest on the Bonds will be payable monthly on the 26th day of the month, or the next succeeding Business Day if such 26th day is not a Business Day, commencing May 26, 2020, to the Bondholders of record at the close of business on the last Business Day of the calendar month immediately preceding each Payment Date (the "**Record Date**"). Commencing in the first month immediately following the month in which the MBS Delivery Date occurs, interest on the Bonds will be payable monthly on the Business Day immediately after the date of receipt by the Trustee of a payment received on the MBS.

Prior to the MBS Delivery Date, all payments of interest with respect to the Bonds will be paid to the Bondholders by the Trustee from funds held in the Revenue Fund under the Indenture. Commencing in the first month after the month in which the MBS Delivery Date occurs, on the first Business Day following receipt of a payment representing principal, if due, and interest under the MBS, the Trustee will pay to the Bondholders of record as of the applicable Record Date the amount so received as a payment of principal, if due, and interest on the Bonds. All payments of principal and interest with respect to the Bonds will be paid to the Bondholders in proportion to the

principal amount of each Bond owned by each such owner as set forth on the records of the Trustee as of the Record Date.

So long as Cede & Co. or another nominee designated by DTC is the registered owner of the Bonds, principal and interest on the Bonds are payable by the Trustee to DTC, which will be responsible for remitting such principal and interest to its Participants, which will be responsible for remitting such principal and interest to the Beneficial Owners of the Bonds. See "APPENDIX F — BOOK-ENTRY SYSTEM." *So long as Cede & Co. is the registered owner of the Bonds, all references in this Official Statement to the owners or holders of the Bonds (other than under the headings "TAX MATTERS" and "CONTINUING DISCLOSURE"), means Cede & Co. and not the Beneficial Owners of the Bonds.*

Transfer of Bonds

While DTC is securities depository for book-entry Bonds, the transfer of beneficial ownership of Bonds shall take place as described in "APPENDIX F — BOOK-ENTRY SYSTEM." If DTC were to terminate its status as securities depository for the Bonds and, as a result, Bonds were no longer book-entry securities, no transfer of a Bond will be made unless made upon the records of the Issuer kept for that purpose at the corporate trust office of the Trustee, by the registered owner of the Bond or by its attorney duly authorized in writing, upon surrender thereof together with a written instrument of transfer satisfactory to the Trustee. Upon the transfer of any such Bond, the Issuer shall issue and the Trustee shall authenticate and deliver to and in the name of the transferee a new fully registered Bond, of the same series, aggregate principal amount, interest rate, maturity and other terms as the surrendered Bond.

At all times, the Issuer and the Trustee may deem and treat the person in whose name any Bond shall be registered upon the records of the Issuer as the absolute owner of such Bond, whether such Bond shall be a book-entry security or not, for the purpose of receiving payment of, or on account of, the principal of and interest on such Bond and for all other purposes and all such payments so made to any such registered owner or upon his order shall be valid and effectual to satisfy and discharge the liability upon such Bond to the extent of the sum or sums so paid.

Mandatory Redemption of Bonds

The Bonds are subject to mandatory redemption prior to maturity as follows:

Mandatory Redemption Prior to MBS Delivery Date. On any Payment Date that occurs prior to or during the month in which the MBS is delivered to the Trustee, the Bonds are subject to mandatory redemption in part in an amount equal to the amount due on the first day of the month in which such Payment Date occurs as shown in the Mortgage Loan Amortization Schedule, payable with respect to principal, from money on deposit in the Bond Proceeds Fund, and with respect to interest, from money on deposit in the Revenue Fund.

Mandatory Redemption Upon Failure to Purchase the MBS. The Bonds are subject to mandatory redemption in whole five (5) calendar days after the MBS Delivery Date Deadline at a Redemption Price equal to 100% of the Outstanding principal amount thereof, plus interest accrued but unpaid from the first day of the month in which the last Payment Date occurred (or, if no Payment Date has occurred, from the Closing Date) to, but not including, such redemption date, if the MBS Delivery Date has not occurred on or prior to the MBS Delivery Date Deadline, payable with respect to principal first, from money on deposit in the Bond Proceeds Fund, and with respect to premium, if any, and interest, from money on deposit in the Revenue Fund.

Mandatory Redemption on the MBS Delivery Date. The Bonds are subject to mandatory redemption in part on the MBS Delivery Date at a Redemption Price equal to 100% of the principal amount of the Bonds to be redeemed, plus interest accrued but unpaid from the first day of the month in which the last Payment Date occurred to the MBS Delivery Date, in an amount equal to the difference between (i) the principal amount of the MBS purchased on the MBS Delivery Date and (ii) the aggregate principal amount of the Bonds Outstanding as of the first day of the month in which the MBS Delivery Date occurred, payable with respect to principal first, from money on deposit in the Bond Proceeds Fund, and with respect to interest and premium, if any, from money on deposit in the Revenue Fund and other Eligible Funds.

Mandatory Redemption Following the MBS Delivery Date. Following the MBS Delivery Date, the Bonds are subject to mandatory redemption in whole or in part one Business Day after the date on which each principal payment or prepayment is received pursuant to the MBS, at a Redemption Price equal to 100% of the principal amount, plus interest and premium, if any, received pursuant to the MBS.

Mandatory Redemption in Lieu of Exchange. The Bonds are subject to mandatory redemption in whole or in part in the event the Issuer elects pursuant to the Indenture to redeem a Beneficial Owner's Bonds for an amount equal to the Cash Value (as defined below under "– Optional Exchange of Bonds for MBS") in lieu of delivering to the Beneficial Owner of the Bonds its proportional interest in the MBS based upon its proportional interest in the Bonds. Any such redemption shall be made in the amounts, from the sources and in accordance with the provisions of the Indenture.

Notwithstanding anything to the contrary in the Indenture, the Bonds are not subject to optional redemption other than in connection with a prepayment of the Mortgage Loan.

See "DESCRIPTION OF THE BONDS – Optional Exchange of Bonds for MBS" below; see also "APPENDIX C – SUMMARY OF CERTAIN PROVISIONS OF THE INDENTURE – Mandatory Redemption of Bonds" and "– Notice of Redemption" attached hereto.

Optional Exchange of Bonds for MBS

Following delivery of the MBS to the Trustee, a Beneficial Owner of Bonds may file with the Trustee a written request, in the form attached as an exhibit to the Indenture or such other form as may be approved by the Trustee (the "Request Notice"), to exchange Bonds for a like principal amount of the MBS, provided, that (i) the MBS will be, when delivered, in a face amount equal to $1,000 or a multiple of $1 in excess thereof, and (ii) the Project is complete and placed in service by the Borrower as evidenced by a certificate from the Borrower confirming that the Project is placed in service for purposes of Section 42 of the Code. The Request Notice must be delivered to the Trustee at least five (5) Business Days prior to the Exchange Date (as defined in the Request Notice).

Upon receipt of a Request Notice, the Trustee shall immediately provide a copy to the Issuer and the Lender. The Issuer shall then have up to four (4) Business Days, in its sole discretion, to provide written direction to the Trustee to either (i) deliver to the Beneficial Owner of the Bonds its proportional interest in the MBS based upon such Beneficial Owner's proportional interest in the Bonds or (ii) redeem the Beneficial Owner's Bonds for an amount equal to the Cash Value (as defined herein) as of the Exchange Date. Any failure of the Issuer to provide direction within the period set forth in the prior sentence shall be deemed a direction to deliver the MBS in lieu of redeeming the Bonds. Immediately upon receiving the Issuer's direction, the Trustee shall notify such Beneficial Owner of the Issuer's direction. Upon receipt of any Bonds from the requesting Beneficial Owner in compliance with the requirements of this section, the Trustee will promptly cancel the Bonds being exchanged or redeemed, which will not be reissued.

Cash Value = original face amount of the MBS x MBS Factor x (1 + Redemption Premium (R) + (Initial Offering Premium (I) x MBS Factor)) – an amount equal to the principal to be received by such Beneficial Owner on the next Payment Date (if the date of redemption occurs between the Record Date and such Payment Date)

Where R = 5% if the exchange occurs during the first five years from the Closing Date;

= 4% during the sixth year;

= 3% during the seventh year;

= 2% during the eighth year;

= 1% during the ninth year; and

= 0% thereafter

and I = offering price of the Bonds (100%)

In the event that the Issuer elects (or is deemed to have elected) to deliver the Beneficial Owner's proportional interest in the MBS in lieu of redeeming the Bonds, after validating the exchange request, the Trustee shall transfer and deliver to such requesting Beneficial Owner, the Trustee's beneficial ownership interest in the Beneficial Owner's proportional interest in the MBS (appropriately reduced by any principal payment received by the Beneficial Owner as a result of its being the record owner of such Bonds to be exchanged on the applicable Record Date for the next succeeding Payment Date) on the date specified in the Request Notice promptly following (i) delivery to the Trustee (via DTC withdrawal or Deposit/Withdrawal At Custodian ("DWAC")) of the Bonds being exchanged and (ii) payment by the requesting Beneficial Owner of the Trustee's exchange fee ($1,000 as of the date of the Indenture) with respect to such Bonds. Such Beneficial Owner's proportional interest in the MBS will be (1) in book-entry form and (2) transferred in accordance with current market practices, including the applicable provisions of SIFMA's *Uniform Practices for the Clearance and Settlement of Mortgage-Backed Securities and Other Related Securities*. The proportional interest in the MBS delivered in such an exchange will not be exchangeable for Bonds. If the Exchange Date is subsequent to a Record Date and prior to a corresponding Payment Date for the Bonds, the Trustee shall wire the applicable principal and interest payments on the exchanged Bonds to the Beneficial Owner using the wire transfer instructions set forth on the Request Notice. Any premium due in connection with a redemption pursuant to the terms of this section Optional Exchange of Bonds for MBS shall be paid with Eligible Funds provided by or on behalf of the Issuer.

In the event that the Issuer elects to redeem Bonds in lieu of an exchange with the MBS, the Beneficial Owner shall arrange with its securities dealer (and/or DTC participant) to deliver such Bonds to the Trustee (via DTC withdrawal or DWAC) on or before such redemption date. Once such delivery has been verified and approved by the Trustee, the Trustee shall transfer a like principal amount of the MBS to or upon the order of the Issuer in exchange for an amount equal to the Cash Value plus interest accrued but unpaid on the MBS (less any interest to be received by the Beneficial Owner on the next Payment Date if the redemption occurs between the Record Date and such Payment Date) and apply the proceeds of such transfer to the payment of the Redemption Price of the Bonds on the Payment Date by wiring such amount to the Beneficial Owner at its wire transfer instructions set forth on the Request Notice.

None of Fannie Mae, the Trustee or the Issuer shall have any liability to the Beneficial Owner arising from (i) the exercise by the Issuer in its sole discretion of the option to exchange or redeem the Bonds, (ii) any exchange or redemption of Bonds described under this heading "Optional Exchange of Bonds for MBS" or (iii) any of the costs or expenses hereof. Interest on such MBS is not excludable from gross income for federal income tax purposes. Bondholders should consult their own tax advisors concerning that and other tax consequences of any exchange of a Bond for the MBS.

THE MORTGAGE LOAN

General

The Indenture authorizes the Issuer to issue the Bonds to finance a portion of the cost of the acquisition, rehabilitation and equipping of the Project through the acquisition of the MBS and to pay certain additional costs related thereto. The Bonds will be secured initially by the Cash Collateral, and then by the MBS, if issued. Fannie Mae is expected to deliver the MBS to the Trustee on the MBS Delivery Date, which MBS is to be purchased by the Trustee with the Cash Collateral on deposit under the Indenture. The Lender has undertaken to certify that the MBS has terms consistent with the Term Sheet and meets the requirements set forth in the Indenture, on which certification the Trustee may rely and act without further investigation. The Mortgage Loan is to be evidenced by the Mortgage Note, executed by the Borrower in favor of the Lender and secured by the Multifamily Deed of Trust, Assignment of Leases and Rents, Security Agreement and Fixture Filing (the "**Mortgage**"). The Borrower is required under the Mortgage Note to make monthly payments sufficient in the aggregate to pay debt service on the Mortgage Loan.

MBS Payments

Following the MBS Delivery Date, if such date occurs, payments on the MBS will be made on the 25th day of each month (beginning with the month following the month in which the MBS is issued and delivered to the Trustee), or, if such 25th day is not a Business Day, on the first Business Day next succeeding such 25th day. With respect to the MBS, Fannie Mae will distribute to the Trustee an amount equal to the total of (i) the principal due on

the Mortgage Loan underlying the MBS during the period beginning on the second day of the month prior to the month of such distribution and ending on the first day of such month of distribution, (ii) the stated principal balance of the Mortgage Loan that was prepaid in full during the calendar month next preceding the month of such distribution (including as prepaid for this purpose at Fannie Mae's election the Mortgage Loan after it is delinquent, in whole or in part, with respect to four consecutive installments of principal and interest; or because of Fannie Mae's election to repurchase the Mortgage Loan under certain other circumstances), (iii) the amount of any partial prepayment of the Mortgage Loan received in the calendar month next preceding the month of distribution, and (iv) one month's interest at the Pass-Through Rate on the principal balance of the MBS as reported to the Trustee (assuming the Trustee is the registered holder) in connection with the previous distribution (or, respecting the first distribution, the principal balance of the MBS on its issue date).

For purposes of distribution, the Mortgage Loan will be considered to have been prepaid in full if, in Fannie Mae's reasonable judgment, the full amount finally recoverable on account of the Mortgage Loan has been received, whether or not such full amount is equal to the stated principal balance of the Mortgage Loan. See also "APPENDIX A – FANNIE MAE MORTGAGE-BACKED SECURITIES PROGRAM."

FANNIE MAE GREEN MORTGAGE LOAN PROGRAM

Background

In 2010, Fannie Mae launched the Green Rewards program with a mission to target positive, measurable impacts to environmental, social and financial outcomes. Since that time, Fannie Mae has created financing solutions that incorporate energy- and water-efficiency and energy-generation concepts into traditional mortgage lending. Fannie Mae's Green Bond issuances support the retrofitting of U.S. rental housing stock to become more energy- and water-efficient and recognizes investments in green building certifications, resulting in more cost-effective properties for owners to operate. More information on the positive impacts of the Fannie Mae Green Rewards Program can be found at https://multifamily.fanniemae.com/sites/g/files/koqyhd161/files/migrated-files/content/tool/mf-green-bond-impact-report.pdf.

Fannie Mae Green Mortgage Loan and Green MBS

Fannie Mae offers Green mortgage loan products through its Delegated Underwriting and Servicing ("**DUS**") program, including Green Rewards and Green Building Certification. These product offerings are a result of a multi-year effort to develop and test products and industry partnerships while maintaining the core credit characteristics and underwriting standards of the DUS program. Fannie Mae's Green Mortgage Loans are originated in the same way as Fannie Mae's other DUS production. Fannie Mae commits to acquire the Green Mortgage Loan from the Lender if it conforms to all of the credit underwriting requirements of the DUS program, as well as the Green requirements of its particular Green financing program. Once the security is issued, the investor receives the Green MBS into its portfolio. The Green MBS is similar to the DUS MBS market that exists today. Fannie Mae's Green MBS carries all of the benefits of the traditional Fannie Mae DUS MBS while also delivering environmental, social and financial benefits.

Program Requirements

The Project is expected to qualify for Fannie Mae's Green Rewards program. Projects that qualify for a Green Rewards loan contain energy and water efficiency measures ("EWEMs") that are projected to reduce the entire property's annual energy and/or water consumption by at least 30%, inclusive of at least 15% reduction through a combination of renewable energy generation and/or energy consumption reduction. Eligible EWEMs include: solar photovoltaic systems; energy efficient heating, ventilation, and air conditioning (HVAC) systems; energy efficient boilers; energy efficient lighting, such as LED; control technologies, such as smart thermostats in each residential unit and Building Management (BMS) systems for central building control; water efficient fixtures including low-flow toilets and faucets; energy efficient appliances such as ENERGY STAR® refrigerators; and energy saving improvements such as adding insulation, low U-factor and low solar heat gain coefficient (SHGC) windows, light reflective roofing, roof gardens, etc.

Securing the Green MBS designation on a Green Rewards loan requires the Lender to complete a High-Performance Building Report that meets ASHRAE (American Society of Heating, Refrigerating and Air-Conditioning

Engineers) Level II and Fannie Mae standards, using a qualified independent High Performance Building (HPB) consultant. The report informs the Borrower of opportunities at the Project to save energy and water, and provides the list from which the Borrower must select improvements that are expected to reduce the whole property's annual energy and/or water consumption by at least 30%, inclusive of at least 15% energy savings through a combination of renewable energy generation and/or energy consumption reduction to qualify. Fannie Mae is also in the process of adding the United States Environmental Protection Agency (the "EPA") water score (a score indicating relative water consumption for multifamily properties) to the list of required reporting from borrowers in the Green Financing business.

At the time of closing the loan, the Borrower must commit to report to Fannie Mae annually the property's energy and water performance including the ENERGY STAR Score Source Energy Use Intensity (EUI) US EPA Water Score, and Water Use Intensity (WUI). The Lender must submit the HPB Report to Fannie Mae at the time of loan delivery, which will occur after locking the rate and closing the loan with the Borrower.

Fannie Mae has established governance and risk management procedures that ensure frequent and comprehensive audits of consultants, reports, and property performance data. Audits are results-based and include site visits for verification. If buildings or consultants fail to meet the criteria, there is a mechanism to remove them from eligibility. Fannie Mae has issued a Green Bond Impact Report including projected GHG emissions reductions by its lending portfolio.

CICERO Second Opinion: Alignment with Green Bond Principles

In June 2018, Fannie Mae engaged the Center for International Climate and Environmental Research ("CICERO") to review its Green Bond Framework. CICERO issued its Second Opinion and found that the framework aligns with the International Capital Markets Association's ("ICMA") Green Bond Principles, an internationally recognized standard for green bonds. CICERO recognized Fannie Mae for well-established governance and risk management procedures, internal annual review and revision by the Green Financing Business Team, transparent reporting procedures and in-house technical expertise and tools. CICERO's Second Opinion can be found at https://multifamily.fanniemae.com/sites/g/files/koqyhd161/files/migratedfiles/content/fact_sheet/green-bond-second-opinion.pdf.

Post-Issuance Reporting

Information related to the Fannie Mae Green Financing, including the Green Bond Framework, is available at www.fanniemaegreenfinancing.com. In addition, Fannie Mae maintains a file listing all of the MBS and Guaranteed Multifamily Structures ("GeMS") products backed by Fannie Mae Green Financing products by Pool Number and CUSIP Identifier (https://www.fanniemae.com/multifamily/green-initiative-green-mbs). For more extensive disclosure, investors can look up any DUS or GeMS tranche CUSIP Identifier in Fannie Mae's public disclosure system, DUS Disclose (https://mfdusdisclose.fanniemae.com/#/home) where at-issuance and on-going data is available for all of its DUS MBS. This system includes the energy and water performance data reported by all borrowers using Green Financing products. Currently on DUS Disclose, each property behind a Green Bonds reports its at-issuance ENERGY STAR Score and Source Energy Use Intensity (EUI) along with the date of that data. Additionally, Fannie Mae annually publishes a file detailing the Environmental Impact per CUSIP where projected GHG emission reductions, which can be found at https://multifamily.fanniemae.com/financing-options/specialty-financing/green-financing/green-mission-impact.

An impact report is made available on the Fannie Mae website on an annual basis at https://multifamily.fanniemae.com/financing-options/specialty-financing/green-financing/green-mission-impact. The details of this report include 1) a list of the different categories of eligible assets financed and the percentage distribution to each Green Mortgage Lon product category, 2) a description of the environmental and social impact of Green Bond issuances and 3) a summary of Fannie Mae's green bond development and green financing activities in general including energy versus water investments. A breakdown of investments can be viewed at https://multifamily.fanniemae.com/financing-options/specialty-financing/green-financing/green-bonds.

Measurement and Verification

Fannie Mae has implemented a service for borrowers and lenders to streamline and simplify the annual reporting of energy and water performance data. Fannie Mae has engaged a service provider, Bright Power, to provide measurement and verification services related to Fannie Mae Green Bonds to assist lenders and borrowers in measuring annual energy and water performance. Additional information on this service can be found at https://multifamily.fanniemae.com/sites/g/files/koqyhd161/files/migrated-files/content/faq/mf-green-measurement-verification-service-borrower.pdf.

SECURITY FOR AND SOURCES OF PAYMENT FOR THE BONDS

In order to secure the payment of the principal of and interest on the Bonds, the Issuer has pledged to the Trust Estate for the Bonds, subject to terms and provisions of the Indenture, the following:

(i) All right, title and interest of the Issuer in and to amounts on deposit in the Bond Proceeds Fund to be funded on the Closing Date in an amount equal to the principal amount of the Bonds;

(ii) All amounts on deposit in the Revenue Fund;

(iii) The MBS, if issued by Fannie Mae and acquired by the Trustee, and all MBS Revenues;

(iv) All right, title and interest of the Issuer now owned or hereafter acquired in, to and under the Financing Agreement and the Regulatory Agreement, except Reserved Rights; and;

(v) All other property which by the express provisions of the Indenture is required to be subject to the lien of the Indenture, and any additional property that, from time to time, by delivery or by writing of any kind, may be subjected to the lien of the Indenture, by the Issuer or by anyone on its behalf, and the Trustee is authorized by the Indenture to receive the same at any time as additional security under the Indenture; provided, however, that the Trust Estate shall not include amounts on deposit in the Rebate Fund or the Rehabilitation Fund.

The foregoing pledge is made for the equal and proportionate benefit, security and protection of all present and future owners of the Bonds.

Prior to the delivery of the MBS, the Bonds will be secured by the deposit with the Trustee of the proceeds received from the sale of the Bonds and other Eligible Funds held under the Indenture by the Trustee in an aggregate amount equal to the outstanding principal amount of the Bonds. The Trustee will use Eligible Funds held under the Indenture along with interest earnings thereon to (a) pay principal, premium, if any, and interest on the Bonds when due, and (b) acquire, if and when issued, the MBS, upon satisfaction of the conditions set forth in the Indenture and upon satisfaction of the conditions precedent to the issuance of the MBS and compliance with the commitment between Fannie Mae and the Lender.

It is anticipated that if the conditions to the issuance of the MBS are satisfied, the MBS will be available for acquisition by the Trustee on or before the MBS Delivery Date Deadline, as such date may be extended as provided in the Indenture. Following the delivery of the MBS to the Trustee, if delivered, payments of principal and interest on the Bonds will be payable from pass-through payments received by the Trustee on the MBS.

If the MBS is not acquired by the Trustee prior to the MBS Delivery Date Deadline (as such date may be extended pursuant to the Indenture), the Bonds will be redeemed from Eligible Funds held under the Indenture as set forth in "DESCRIPTION OF THE BONDS — Mandatory Redemption of Bonds — Mandatory Redemption Upon Failure to Purchase the MBS" hereto.

PRIVATE PARTICIPANTS

The following information concerning the private participants has been provided by representatives of the private participants and has not been independently confirmed or verified by either the Underwriter or the Issuer. No representation is made herein as to the accuracy or adequacy of such information or as to the absence of material adverse changes in such information subsequent to the date hereof.

The Borrower

The Borrower is Northcross Preservation, L.P., a New York limited partnership (the "**Borrower**"). The Borrower is a single-purpose entity formed to acquire, construct, rehabilitate and operate the Project. The Borrower's general partner is Northcross Preservation GP, LLC, a New York limited liability company (the "**General Partner**"). The General Partner is controlled by The Related Companies, L.P., a New York limited partnership ("**Related**").

Operating through an affiliated group of companies referred to collectively as "Related" or "Related Companies," Related is a global real estate company. Formed over 40 years ago, Related is a fully integrated, highly diversified industry leader with experience in virtually every aspect of development, acquisitions, management, finance, marketing and sales. Headquartered in New York City, Related has offices in Boston, Chicago, Los Angeles, San Francisco and London, and boasts a team of approximately 4,000 professionals. Related Affordable is the division of Related Companies that develops, acquires and preserves affordable housing throughout the nation, having preserved and rehabilitated over 40,000 affordable units under the low income housing tax credit program. Affordable housing laid the foundation of Related Companies, and its broad portfolio of affordable and mixed-income developments demonstrates the company's continuing ability to create affordable housing opportunities in a variety of geographically, economically and socially diverse neighborhoods. Related owns and operates a portfolio of more than 60,000 affordable and workforce housing units.

The Developer

Northcross Developer, LLC, a New York limited liability company (the "**Developer**"), will act as the developer for the rehabilitation of the Project in accordance with a development services agreement with the Borrower whereby the Developer will be responsible for certain development services in connection with the Project and for which the Developer will receive a development fee from the Borrower. The Developer is an affiliate of the Borrower. Affiliates of the Developer have ample experience in acquisition and rehabilitation of affordable units throughout the country and overseen the rehabilitation of over 40,000 units.

Investor Limited Partner

At the time of issuance of the Bonds, the Borrower expects to admit Wells Fargo Affordable Housing Community Development Corporation, a North Carolina corporation, as an investor limited partner (the "**Investor Limited Partner**") to the Borrower with a 99.99% ownership interest in the Borrower. The funding of the federal low-income housing tax credit ("**LIHTC**") equity ("**LIHTC Equity**") by the Investor Limited Partner is expected to total approximately $6,245,086. The funding levels and the timing of the funding are subject to numerous adjustments and conditions that could result in the amounts funded and/or the timing or even occurrence of the funding varying significantly from the projections set forth above and no representation is made as to the availability of such funds.

Limited Assets and Obligation of Borrower, General Partner and Investor Limited Partner

The Borrower and the General Partner have not previously engaged in other business operations, and have no historical earnings prior to their acquisition of the Project in September 2019. In addition, the Borrower and General Partner have no substantial assets other than the Project. The Borrower does not intend to acquire any other substantial assets or to engage in any substantial business activities other than those related to the ownership of the Project. However, the member(s) of the General Partner, the Investor Limited Partner, and their affiliates are engaged in and will continue to engage in the acquisition, development, ownership and management of similar types of housing projects. They may be financially interested in, as officers, partners or otherwise, and devote substantial times to, business and activities that may be inconsistent or competitive with the interests of the Project.

The Borrower and its partners will not be personally liable for payments on the Mortgage Note (as defined below), the payments on which are to be applied to pay the principal of and interest on the Bonds; nor will the Borrower be personally liable under the other documents executed in connection with the issuance of the Bonds and the making of the Mortgage Loan. Furthermore, no representation is made that the Borrower will have substantial funds available for the Project. Accordingly, neither the Borrower's financial statements nor those of its partners are included in this Official Statement.

The Architect

The Architect is SGA | NarmourWright Design (the "Architect"). The Architect is not an affiliate of the Developer. The Architect has a presence in both Carolinas with project experience in both new construction and rehabilitation of multi-family, education, commercial and civic projects. The Architect has collectively 40 years of experience and has assisted with the new construction and rehabilitation of approximately 800 developments. The Architect's focus on affordable multifamily housing has given it considerable experience with affordable, LIHTC, and HUD housing procedures.

The General Contractor

The general contractor for the project is Legacy Construction Services, LLC. (the "**General Contractor**"). The General Contractor is not an affiliate of the Developer. Based out of Cleveland, Ohio, the General Contractor was formed in 2003 and is a North Carolina-licensed contractor. Since inception, the General Contractor has built or rehabilitated over 3,700 units of affordable apartments with contracts totaling over $200,000,000. The General Contractor has extensive experience completing work on LIHTC properties.

The Property Manager

TRG Management Company, LLP, a Florida limited liability partnership (the "**Property Manager**"), currently manages and will continue to manage the Project following the rehabilitation of the Project by the Borrower. The Property Manager is an affiliate of the Borrower. The Property Manager presently manages over 80 properties, including over 10,000 affordable housing units in multiple states. The Property Manager has nearly 40 years of experience managing affordable housing supported by various federal, state and local subsidies including HUD, tax-exempt obligations and federal low-income housing tax credits.

THE PROJECT

The following information concerning the Project has been provided by representatives of the Borrower and has not been independently confirmed or verified by either the Underwriter or the Issuer. No representation is made herein as to the accuracy or adequacy of such information or as to the absence of material adverse changes in such information subsequent to the date hereof.

The Project, known as Northcross Townhomes, is located in Charlotte, North Carolina, on an approximately 7-acre site. The Project contains 99 apartment units located in 15 apartment buildings. Rehabilitation and construction of the Project is anticipated to commence within 90 days of the Closing Date and be completed approximately 12 months later.

After the proposed rehabilitation, common area improvements and site amenities will include: an office and community building with on-site management, an exercise room, and a business center, as well as a basketball court and surface parking. There will be approximately 191 parking spaces for resident use only.

The unit mix of the Project is as follows:

Unit Type	Number	Approximate Square Feet
2 BD	45	875
3 BD	40	1,074
4 BR	14	1,242
Total	**99**	

Plan of Financing

The estimated sources and uses for the Project are projected to be approximately as follows:

Sources of Funds	
Bonds	$13,500,000
Tax Credit Equity	6,245,086
Deferred Developer Fee	296,302
HUD Reserves	172,597
Total	$20,213,985
Uses of Funds	
Acquisition	$9,000,000
HUD Reserves	172,597
Construction	5,743,748
Hard Cost Contingency	574,375
Developer Fee	1,340,462
Soft Costs	2,101,665
Financing and Syndication Costs	779,871
Reserves and Escrows	501,267
Total	$20,213,985

Note: The Borrower acquired the Project in September 2019 and paid a portion of the costs associated with the project utilizing certain bridge financing and equity, included in the Uses above. A portion of the Mortgage Loan and other sources will be used to repay such bridge financing and equity.

All costs of issuing the Bonds, including the Underwriter's fee, will be paid by the Borrower.

The Mortgage Loan and the Bonds. The Project will utilize a mortgage loan (the "**Mortgage Loan**") from Wells Fargo Bank, National Association (the "**Lender**"). The obligation to repay the Mortgage Loan will be set forth in a promissory note (the "**Mortgage Note**") from the Borrower to the Lender, which Mortgage Note will have a term of not less than 204 months, will bear interest at a rate of 3.71% and will amortize over 35 years. The principal amount of the Bonds will be equal to the principal amount of the Mortgage Loan. Following the MBS Delivery Date, payments on the Bonds will be payable by the Trustee from payments received by the Trustee pursuant to the MBS.

The Tax Credit Equity. Simultaneously with the issuance of the Bonds, the Borrower expects to offer the Investor Limited Partner a 99.99% ownership interest in the Borrower in return for equity contributions based primarily on the receipt of certain benefits from the Project's LIHTC. The Borrower anticipates that the funding of the Tax Credit Equity will total approximately $6,245,086 with an initial contribution of approximately $936,763, which will be funded on the Closing Date. The funding levels and the timing of the funding are subject to numerous adjustments and conditions which could result in the amounts funded and/or the timing or even occurrence of the funding varying significantly from the projections set forth above and no representation is made as to the availability of such funds.

Deferred Developer Fee. The Project will also utilize deferred developer fee in the approximate amount of $296,302 as a source of funding.

HUD Reserves. The Project will also use the release of existing HUD reserves in the approximate amount of $172,597 as a source of funding to pay for costs related to the renovation.

The HAP Contract

The Borrower has an existing Housing Assistance Payment Renewal Contract (the "**HAP Contract**") covering all of the 99 units at the Project with an effective date of October 1, 2019 for a term of 20 years with an additional one-year automatic renewal term.

Funding under the HAP Contract is subject to annual Congressional appropriations, as more particularly described below. The Section 8 project-based housing assistance payment program (the "**Section 8 Program**") is authorized by Section 8 of the United States Housing Act of 1937, as amended, and in the case of Section 8 contracts is administered by local public housing authorities. Renewals of Section 8 HAP contracts are governed by the Multifamily Housing Mortgage and Assistance Restructuring Act, as amended ("**MAHRA**"). The Section 8 Program authorizes housing assistance payments to owners of qualified housing for the benefit of low-income families (defined generally as families whose incomes do not exceed 80% of the area median income ("**AMI**") for the area as determined by HUD), and very low-income families (defined generally as families whose income do not exceed 50% of the AMI as determined by HUD). Section 8 housing assistance payments generally represent the difference between the "contract rent" for the unit approved by HUD and the eligible tenant's contribution, which is generally 30% of income, as adjusted for family size and certain expenses, subject to a minimum rent contribution. The rents approved by HUD for the Project, as they may be adjusted from time to time with procedures set forth in MAHRA and the HAP Contract, are the "contract rents" for the Project. The HAP Contract will require the Borrower to maintain the Project in decent, safe and sanitary condition and to comply with other statutory and regulatory requirements governing the operation of the Project, use of project funds, and other matters. If the Borrower fails to comply with the terms of the HAP Contract, HUD or the contract administrator could seek to abate or terminate the payments under the HAP Contract or take other sanctions. MAHRA requires that upon the request of the Borrower, HUD shall renew the HAP Contract under the Section 8 Program. However, because the HAP Contract is subject to receipt of annual appropriations by Congress, there is no assurance that the HAP Contract will be renewed or replaced upon its expiration. Funding for HAP contracts is appropriated by Congress on an annual basis, and there is no assurance that adequate funding will be appropriated each year during the term of the HAP Contract. Since payments received under the HAP Contract constitute a primary source of revenues for the Project, the expiration of the HAP Contract, or the failure of Congress to appropriate funds sufficient to fund the HAP Contract during each year of its term, would have a material adverse effect on the ability of the Project to generate revenues sufficient to pay the principal of and interest of the Mortgage Loan.

Project Regulation

The Borrower intends to rehabilitate and operate the Project as a "qualified residential rental project" in accordance with the provisions of Section 142(d) of the Code. At the time of the issuance of the Bonds, the Borrower, will enter into a regulatory agreement with respect to the Project (the "Regulatory Agreement"). Under the Regulatory Agreement, the Borrower will agree that, at all times during the Qualified Project Period (as defined in the Regulatory Agreement), the Borrower will rent at least 40% of the units in the Project to persons whose adjusted family income (determined in accordance with the provisions of the Code) does not exceed 60% of AMI (adjusted for family size). For the Project, the Qualified Project Period commences on the Closing Date and continues until the latest of (a) the date which is fifteen (15) years after the Closing Date, (b) the first date on which no tax-exempt private activity bonds with respect to the Project are outstanding for federal income tax purposes, or (c) the date on which any assistance provided with respect to the Project under Section 8 of the Housing Act of 1937 terminates. The failure of the Borrower to comply with the Regulatory Agreement could cause interest on the Bonds to be included in gross income for federal income tax purposes. See "APPENDIX E – SUMMARY OF CERTAIN PROVISIONS OF THE REGULATORY AGREEMENT" herein

In addition to the rental restrictions imposed upon the Project by the Regulatory Agreement, the Project will be further encumbered by a tax credit restrictive covenant, to be executed by the Borrower in connection with LIHTC that is anticipated to be granted for the Project and in compliance with the requirements of Section 42 of the Code. It is anticipated that 100% of the residential units in the Project will be restricted under Section 42 of the Code (the "LIHTC Units").

The Project will utilize the income averaging provisions of the Code to create a mix of income restrictions up to 80% of AMI such that the average is at or below 60% of AMI for each unit type. The number of units at the various income levels may change from time to time, but the Project intends to remain in compliance with the income averaging limit average.

In connection with the HAP Contract, the Borrower has entered into a new Section 8 Use Agreement that encumbers the Project and requires the Borrower to maintain the Project as affordable housing for low-income families

for a period of twenty (20) years in accordance with the Section 8 Program. Additional restrictions are imposed on the operation of the Project pursuant to the HAP Contract. See "THE PROJECT – The HAP Contract" herein.

In the event of any conflict among these regulatory agreements or use agreements, the more restrictive provisions are expected to control.

Renovations in Connection with Green Rewards Program

As part of the rehabilitation of the Project and in order to qualify for the Green Rewards program (as described under the heading "FANNIE MAE GREEN MORTGAGE LOAN PROGRAM," above), the Borrower expects to make a number of renovations intended to generate savings with respect to energy and water usage, including renovations to lighting fixtures, water fixtures, HVAC systems, and certain appliances. In order to qualify for the Green Rewards program, the projected energy and water consumption savings generated by such renovations must total at least 30%, inclusive of a minimum of 15% energy consumption savings. Based on planned renovations as of the date of this Official Statement, the Borrower believes that such requirements will be achieved, but no assurances can be made with respect to whether such requirements will in fact be satisfied once rehabilitation has been completed.

CERTAIN BONDHOLDERS' RISKS

The purchase of the Bonds will involve a number of risks. The following is a summary, which does not purport to be comprehensive or definitive, of some of such risk factors.

Limited Security; Investment of Funds

The Bonds are special limited obligations of the Issuer payable solely from the Trust Estate, which includes certain funds pledged to and held by the Trustee pursuant to the Indenture.

The Bonds are offered solely on the basis of the amounts pledged to and held by the Trustee under the Indenture, together with investment earnings thereon, and the MBS, and are not offered on the basis of the credit of the Borrower, the feasibility of the Project or any other security. As a consequence, limited information about the Project and no information about the financial condition or results of operations of the Borrower is included in this Official Statement. The Bonds are offered only to investors who, in making their investment decision, rely solely on the amounts held under the Indenture, together with investment earnings thereon, and not on the credit of the Borrower, the feasibility of the Project or any other security.

The principal of and interest on the Bonds are payable from and secured by certain revenues and funds pledged thereto under the Indenture, and, following the MBS Delivery Date, from payments on the MBS. On the date of delivery of the Bonds, an amount equal to the principal amount of the Bonds is to be deposited into the Bond Proceeds Fund. The Trustee is required to invest amounts held in the Bond Proceeds Fund and the Revenue Fund in Eligible Investments, as defined in the Indenture. See "APPENDIX B — SUMMARY OF CERTAIN PROVISIONS OF THE INDENTURE — Investment of Funds." Failure to receive a return of the amounts so invested could affect the ability to pay the principal of and interest on the Bonds.

No Acceleration or Early Redemption Upon Loss of Tax Exemption on the Bonds

The Borrower will covenant and agree, pursuant to the Regulatory Agreement to comply with the provisions of the Code relating to the exclusion from gross income for federal income tax purposes of the interest payable on the Bonds. In particular, the Borrower is required to rent at least forty percent (40%) of the Project apartment units to certain qualified tenants whose income does not exceed sixty percent (60%) of the area average median income where the Project is located. The Borrower's failure to comply with such provisions will not constitute a default under the Bonds and will not give rise to a redemption or acceleration of the Bonds and is not the basis for an increase in the rate of interest payable on the Bonds. Furthermore, the Borrower's failure to comply with the Regulatory Agreement will not give rise to a prepayment or acceleration of amounts due under the MBS or the Mortgage, unless directed by Fannie Mae in its sole discretion. Consequently, interest on the Bonds may become includable in gross income for purposes of federal income taxation retroactive to the date of issuance of the Bonds by reason of the Borrower's failure to comply with the requirements of federal tax law. In such event, a Bondholder could exercise its option to exchange

its Bond for the MBS as described above under the heading "DESCRIPTION OF THE BONDS — Optional Exchange of Bonds for MBS," but will have lost the value of the tax-exemption.

Payments Prior to MBS Delivery Date

Prior to the MBS Delivery Date, payment of principal and interest, and the Borrower's obligations with respect to principal and interest on the Bonds, will be primarily secured by and payable from Bond proceeds held in the Bond Proceeds Fund and moneys deposited into the Revenue Fund, including the Negative Arbitrage Account therein. It is not expected, prior to the MBS Delivery Date, that any revenues from the Project or other amounts, except moneys on deposit in the Bond Proceeds Fund and the Revenue Fund, will be available to satisfy that obligation. Prior to the MBS Delivery Date, it is expected that moneys on deposit in the Bond Proceeds Fund and the Negative Arbitrage Account of the Revenue Fund, and the interest earnings thereon, will be sufficient to pay the debt service on the Bonds.

Mandatory Redemption of Bonds Prior to Maturity

Pursuant to the Indenture, under certain circumstances, the Bonds may be subject to mandatory redemption, in whole or in part, prior to maturity. Please see "DESCRIPTION OF THE BONDS – Mandatory Redemption of Bonds" herein and APPENDIX C hereto.

Eligible Investments

Proceeds of the Bonds deposited into the Bond Proceeds Fund are required to be invested in Eligible Investments. See "APPENDIX B – DEFINITIONS OF CERTAIN TERMS" hereto for the definition of Eligible Investments. There can be no assurance that there will not be a loss resulting from any investment held for the credit of the Bond Proceeds Fund, and any failure to receive a return of the amounts so invested could affect the ability to pay the principal of and interest on the Bonds.

Rating

Prior to the MBS Delivery Date, the rating on the Bonds is based on the investment in Eligible Investments of amounts on deposit in the Bond Proceeds Fund and the Revenue Fund. If one or more of such investments fail to meet the rating standards for Eligible Investments after their acquisition and prior to maturity, such a change may result in a downgrade or withdrawal of the rating on the Bonds. Following the MBS Delivery Date, the rating on the Bonds is based on the credit rating of Fannie Mae. If any event occurs that causes an adverse change to the credit rating of Fannie Mae, such a change may result in a downgrade or withdrawal of the rating on the Bonds.

Repayment of Mortgage Loan

The ability of the Borrower to pay the Mortgage Loan is dependent on the revenues derived from the Project. Due to the inherent uncertainty of future events and conditions, no assurance can be given that revenues generated by the Project will be sufficient to pay expenses of the Project, including without limitation, debt service on the Mortgage Loan, operating expenses, servicing fees, fees due to Fannie Mae, Trustee fees, and fees owed to the Issuer. The ability of the Project to generate sufficient revenues may be affected by a variety of factors including, but not limited to, completion of repairs to such Project, the maintenance of a sufficient level of occupancy, the ability to achieve increases in rents and/or increases under the HAP Contract as necessary to cover debt service and operating expenses, the funding of the HAP Contract, the level of operating expenses, project management, adverse changes in applicable laws and regulations, general economic conditions and other factors in the surrounding market area for the Project. The Borrower intends to rent all of the units in the Project to persons or families of moderate and low income and the amount of rent that may be charged for such units may be materially less than market rates. In addition to these factors, other adverse changes or events may occur from time to time which may have a negative impact on the occupancy level and rental income of the Project.

Failure of the Borrower to make payments when due under the Mortgage Loan will result in an event of default under the Mortgage Loan and the Financing Agreement and may result in a mandatory prepayment of all or a

portion of the Bonds. The Mortgage Loan will not be accelerated unless directed by Fannie Mae in its sole discretion in which case the Bonds will remain outstanding and will remain secured by the MBS guaranteed as to timely payment of principal and interest by Fannie Mae. See "SECURITY FOR AND SOURCES OF PAYMENT FOR THE BONDS" herein. If Fannie Mae accelerates the Mortgage Loan as a result of any event of default under the Mortgage Loan, the Mortgage Loan will be paid in full, and the stated principal balance of the MBS will be passed through to the holder of the MBS. In this case, no yield maintenance or other prepayment premiums will be payable to the Trustee as holder of the MBS.

The Mortgage Loan is a non-recourse obligation of the Borrower with respect to which neither the Borrower nor its partners have personal liability and as to which the Borrower and its partners have not pledged for the benefit of the Lender any of their respective assets, other than the Project and its rents, profits and proceeds.

Bonds are Pass-Through Bonds; Interest Payment Lag

As described elsewhere herein, following the MBS Delivery Date, the Bonds are pass-through securities designed to pass through to registered owners of the Bonds principal and interest payments on the MBS one Business Day after receipt by the Trustee of such payments on the MBS. Interest payments on the Bonds will equal interest accrued on the Bonds during the prior calendar month and shall be made from interest payments received by the Trustee on the MBS, which payments on the MBS shall be received on the 25th day of each month, or the next Business Day if the 25th is not a Business Day.

Although interest accrues on the MBS during a calendar month, the Trustee will not receive such payment on the MBS until the 25th day in the following calendar month, or the next succeeding Business Day if such day is not a Business Day. In addition, the Bonds mature on the Bond Maturity Date; however, the final principal payment on the MBS will occur on the 25th day of the month in which the Bond Maturity Date occurs (or the succeeding Business Day if such day is not a Business Day) and such payment will be passed through to Bondholders on the following Business Day after receipt by the Trustee. Because of these delays, the effective yield on the Bonds will be lower than the Pass-Through Rate on the MBS and the stated interest rate on the Bonds.

Pass-Through Certificate

If the MBS is issued by Fannie Mae and acquired by the Trustee as collateral for the Bonds, Fannie Mae's obligations will be solely as provided in the MBS and in the Fannie Mae MBS Prospectus and the related form of Prospectus Supplement for MBS Certificate. The obligations of Fannie Mae under the MBS will be obligations solely of Fannie Mae, a federally chartered corporation, and will not be backed by the full faith and credit of the United States of America. The Bonds are not and will not be a debt of the United States of America or any other agency or instrumentality of the United States of America or of Fannie Mae. The Bonds are not and will not be guaranteed by the full faith and credit of Fannie Mae or the United States of America.

It is possible, in the event of the insolvency of Fannie Mae, or the occurrence of some other event precluding Fannie Mae from honoring its obligations to make payments as stated in the MBS, if issued, that the financial resources of the Borrower will be the only source of payment on the Bonds. There can be no assurance that the financial resources of the Borrower will be sufficient to pay the principal of, premium if any, and interest on the Bonds in the event the Trustee is forced to seek recourse against the Borrower. See "SECURITY FOR AND SOURCES OF PAYMENT FOR THE BONDS" herein.

Performance of the Project and Estimated Rental Revenue Vacancies

The economic feasibility of the Project depends in large part upon the Project's being substantially occupied at rentals adequate to maintain substantial occupancy throughout the term of the Bonds at sufficient rents and to cover all operating expenses of the Project and debt service on the Mortgage Loan. Although representatives of the Borrower believe, based on surveys of the area where the Project is located, that a substantial number of persons currently need housing facilities such as the Project, occupancy of the Project may be affected by competition from existing housing facilities or from housing facilities which may be constructed in the area served by the Project. While the Borrower believes the Project is needed, there may be difficulties in keeping it substantially occupied. Furthermore, no assurance can be given that the low-income tenants are able to afford the rental rates of the Project, notwithstanding

the below-market rental rates. Restrictions imposed under the Code on tenant income and the rent that can be charged could have an adverse effect on the Borrower's ability to satisfy its obligations under the Financing Agreement, especially if operating expenses should increase beyond what was anticipated.

Limited Liability of Issuer

Notwithstanding anything in the Indenture or in the Bonds, the Issuer shall not be required to advance any money derived from any source other than the Trust Estate, consisting of MBS Revenues and other assets pledged under the Indenture for any of the purposes of the Indenture.

No agreements or provisions contained in the Indenture, nor any agreement, covenant or undertaking by the Issuer contained in any document executed by the Issuer in connection with the Project, or the issuance, sale and delivery of the Bonds shall give rise to any pecuniary liability of the Issuer or a charge against its general credit, or shall obligate the Issuer financially in any way except from the application of the Trust Estate, consisting of MBS Revenues and other proceeds pledged to the payment of the Bonds and the proceeds of the Bonds. No failure of the Issuer to comply with any term, condition, covenant or agreement in the Indenture or in any document executed by the Issuer in connection with the Project, or the issuance, sale and delivery of the Bonds shall subject the Issuer to liability for any claim for damages, costs or other financial and pecuniary charge except to the extent that the same can be paid or recovered from the Financing Agreement or the Trust Estate, consisting of MBS Revenues and other assets pledged to the payment of the Bonds or the proceeds of the Bonds.

THE BONDS AND THE INTEREST THEREON ARE LIMITED OBLIGATIONS OF THE ISSUER, PAYABLE SOLELY FROM THE TRUST ESTATE UNDER THE INDENTURE. NEITHER THE ISSUER, ANY OF ITS COMMISSIONERS, THE STATE, NOR ANY POLITICAL SUBDIVISION THEREOF (EXCEPT THE ISSUER, TO THE LIMITED EXTENT SET FORTH IN THE INDENTURE) NOR ANY PUBLIC AGENCY SHALL IN ANY EVENT BE LIABLE FOR THE PAYMENT OF THE PRINCIPAL OF, PREMIUM (IF ANY) OR INTEREST ON THE BONDS OR FOR THE PERFORMANCE OF ANY PLEDGE, OBLIGATION OR AGREEMENT OF ANY KIND WHATSOEVER EXCEPT AS SET FORTH IN THE INDENTURE, AND NONE OF THE BONDS OR ANY OF THE ISSUER'S AGREEMENTS OR OBLIGATIONS SHALL BE CONSTRUED TO CONSTITUTE AN INDEBTEDNESS OF OR A PLEDGE OF THE FAITH AND CREDIT OF OR A LOAN OF THE CREDIT OF OR A MORAL OBLIGATION OF ANY OF THE FOREGOING WITHIN THE MEANING OF ANY CONSTITUTIONAL OR STATUTORY PROVISION WHATSOEVER. THE ISSUER HAS NO TAXING POWER.

Secondary Markets and Prices

No representation is made concerning the existence of any secondary market for the Bonds. The Underwriter will not be obligated to repurchase any of the Bonds, nor can any assurance be given that any secondary market will develop following the completion of the offering of the Bonds. Further, there can be no assurance that the initial offering prices for the Bonds will continue for any period of time. Furthermore, the Bonds should be purchased for their projected returns only and not for any resale potential, which may or may not exist.

Future Legislation; IRS Examination

The Project, its operation and the treatment of interest on the Bonds are subject to various laws, rules and regulations adopted by the local, State and federal governments and their agencies. There can be no assurance that relevant local, State or federal laws, rules and regulations will not be amended or modified or interpreted in the future in a manner that could adversely affect the Bonds, the Trust Estate created under the Indenture, the Project, or the financial condition of or ability of the Borrower to comply with its obligations under the various transaction documents.

In recent years, the Internal Revenue Service (the "**IRS**") has increased the frequency and scope of its examination and other enforcement activity regarding tax exempt bonds. Currently, the primary penalty available to the IRS under the Code is a determination that interest on bonds is subject to federal income taxation. Such event could occur for a variety of reasons, including, without limitation, failure to comply with certain requirements imposed by the Code relating to investment restrictions, periodic payments of arbitrage profits to the United States of America, the timely and proper use of Bond proceeds and the facilities financed therewith and certain other matters. See "TAX

MATTERS" herein. No assurance can be given that the IRS will not examine the Issuer, the Borrower, the Project or the Bonds. If the Bonds are examined, it may have an adverse impact on their price and marketability.

Potential Impact of COVID-19

The spread of the strain of coronavirus commonly known as COVID-19 is altering the behavior of businesses and people in a manner that is having negative effects on global, state and local economies. There can be no assurances that the spread of a pandemic, including the strain of coronavirus known as COVID-19, will not materially impact both local and national economies and, accordingly, have a materially adverse impact on the Project's operating and financial viability. This could include, among other things, the length of time necessary to complete the construction and/or rehabilitation of the Project, suspension or delay of site inspections and other on-site meetings, the engagement of material participants in the Project, the length of time necessary to conduct lease-up at the Project, and increased delinquencies and/or vacancies, all of which could impact the Borrower's ability to cover scheduled debt service payments on the Mortgage Loan and result in an acceleration thereof and a corresponding redemption of the Bonds. See "DESCRIPTION OF THE BONDS — Mandatory Redemption of Bonds" herein.

Legislative Response to COVID-19

Recent federal legislation, passed to address the economic effects of COVID-19, known as the Coronavirus Aid, Relief, and Economic Security (CARES) Act (the "CARES Act"), provides for a temporary moratorium on eviction of tenants until July 25, 2020 due to nonpayment of rents when the landlord's mortgage on that property is supplemented or assisted in any way by HUD. Such provision would apply to the Project which receives HUD assistance under the HAP Contract. If such provision of the CARES Act was extended, such eviction moratorium and the Borrower's inability to evict non-paying tenants of the Project and replace them with paying tenants would also be extended. No assurances can be given that subsequent federal, state or local legislation enacted in response to the COVID-19 pandemic will not adversely affect the Borrower's ability to collect rent and evict tenants for nonpayment of rent or otherwise operate the Project as planned.

Summary

The foregoing is intended only as a summary of certain risk factors attendant to an investment in the Bonds. In order for potential investors to identify risk factors and make an informed investment decision, potential investors should be thoroughly familiar with this entire Official Statement and the Appendices hereto.

TAX MATTERS

Opinion of Bond Counsel – Federal Income Tax Status of Interest on the Bonds

Except as qualified below, in the opinion of McGuireWoods LLP, Bond Counsel, assuming continuous compliance with the Borrower's covenants in the Borrower's Tax Certificate to be delivered by the Borrower in connection with the delivery of the Bonds (the "Borrower Tax Certificate"), and based on existing statutes, court decisions, regulations and rulings, and subject to the qualifications described in the remaining paragraphs under this heading, interest on the Bonds (a) is excludable from the gross income of the holders of the Bonds for purposes of federal income taxation pursuant to the Code under existing statutes, regulations and decisions, except as provided in Section 147(a) of the Code with respect to any period during which the Bonds are held by a person who is a "substantial user" of the Project or by a "related person," as such terms are used in Section 147(a) of the Code and the regulations adopted thereunder, and (b) is not a specific item of tax preference for purposes of the federal alternative minimum tax. In the event of noncompliance with certain covenants contained in the Borrower's Tax Certificate, interest on the Bonds would be subject to income taxation by the United States of America from the date of issue. The proposed form of the Opinion of Bond Counsel appears as Appendix I hereto.

Reliance and Assumptions; Effect of Certain Changes

As to questions of fact material to its opinion, Bond Counsel is relying upon and assuming the accuracy of certifications and representations of the Issuer and the Borrower, which Bond Counsel has not independently verified.

In addition, Bond Counsel is assuming continuing compliance with the Covenants (as hereinafter defined) by the Issuer and the Borrower. The Code and the regulations promulgated thereunder contain a number of requirements that must be satisfied after the issuance of the Bonds in order for interest on the Bonds to be and remain excludable from gross income for purposes of federal income taxation. These requirements include, by way of example and not limitation, restrictions on the use, expenditure and investment of the proceeds of the Bonds and the use of the property financed by the Bonds, limitations on the source of the payment of and the security for the Bonds, and the obligation to rebate certain excess earnings on the gross proceeds of the Bonds to the Treasury of the United States (the "Treasury"). The Indenture, the Financing Agreement, the Issuer's Non-Arbitrage Certificate to be delivered by the Issuer at closing (the "Issuer's Non-Arbitrage Certificate") and the Borrower's Tax Certificate contain covenants (the "Covenants") under which the Issuer and the Borrower have agreed to comply. A failure to comply with the Covenants could cause interest on the Bonds to become includable in gross income for federal income tax purposes retroactively to their date of issue. In the event of noncompliance with the Covenants, the available enforcement remedies may be limited by applicable provisions of law and, therefore, may not be adequate to prevent interest on the Bonds from becoming includable in gross income for federal income tax purposes. Compliance by the Issuer with its respective Covenants does not require the Issuer to make any financial contribution for which it does not receive funds from the Borrower.

Bond Counsel has no responsibility to monitor compliance with the Covenants after the date of issue of the Bonds.

Certain requirements and procedures contained, incorporated or referred to in the Indenture, the Financing Agreement, the Issuer's Non-Arbitrage Certificate and the Borrower's Tax Certificate, including the Covenants, may be changed and certain actions may be taken or omitted under the circumstances and subject to the terms and conditions set forth therein. Bond Counsel expresses no opinion concerning any effect on the excludability of interest on the Bonds from gross income for federal income tax purposes of any such subsequent change or action that may be made, taken or omitted upon the advice or approval of counsel other than Bond Counsel.

Certain Collateral Federal Tax Consequences

The following is a brief discussion of certain collateral federal income tax matters with respect to the Bonds. It does not purport to address all aspects of federal taxation that may be relevant to a particular owner thereof. Prospective purchasers of the Bonds, particularly those who may be subject to special rules, are advised to consult their own tax advisors regarding the federal tax consequences of owning or disposing of the Bonds.

Prospective purchasers of the Bonds should be aware that the ownership of tax-exempt obligations may result in collateral federal income tax consequences to certain taxpayers, including, without limitation, financial institutions, certain insurance companies, certain corporations (including S corporations and foreign corporations), certain foreign corporations subject to the "branch profits tax," individual recipients of Social Security or Railroad Retirement benefits, taxpayers who may be deemed to have incurred or continued indebtedness to purchase or carry tax-exempt obligations and taxpayers attempting to qualify for the earned income tax credit.

In addition, prospective purchasers should be aware that the interest paid on, and the proceeds of the sale of, tax-exempt obligations, including the Bonds, are in many cases required to be reported to the IRS in a manner similar to interest paid on taxable obligations. Additionally, backup withholding may apply to any such payments to any owner of a Bond who fails to provide an accurate Form W-9 Request for Taxpayer Identification Number and Certification, or a substantially identical form, or to any owner of a Bond who is notified by the IRS of a failure to report all interest and dividends required to be shown on federal income tax returns. The reporting and withholding requirements do not in and of themselves affect the excludability of interest on the Bonds from gross income for federal tax purposes or any other federal tax consequence of purchasing, holding or selling tax-exempt obligations.

Effects of Future Enforcement, Regulatory and Legislative Actions

The IRS has established a program to audit tax-exempt obligations to determine whether the interest thereon is includable in gross income for federal income tax purposes. If the IRS does audit the Bonds, the IRS will, under its current procedures, treat the Issuer as the taxpayer. As such, the beneficial owners of the Bonds will have only limited rights, if any, to participate in the audit or any administrative or judicial review or appeal thereof. Any action of the

IRS, including but not limited to the selection of the Bonds for audit, or the course or result of such audit, or an audit of other obligations presenting similar tax issues, may affect the marketability or market value of the Bonds.

Legislation affecting tax-exempt obligations is regularly considered by the United States Congress and various state legislatures.

The Treasury and the IRS are continuously drafting regulations to interpret and apply the provisions of the Code and court proceedings may be filed the outcome of which could modify the federal or state tax treatment of tax-exempt obligations. There can be no assurance that legislation proposed or enacted after the date of issue of the Bonds, regulatory interpretation of the Code or actions by a court involving either the Bonds or other tax-exempt obligations will not have an adverse effect on the Bonds' federal or state tax status, marketability or market price of the Bonds or on the economic value of the tax-exempt status of the interest on the Bonds.

Prospective purchasers of the Bonds should consult their own tax advisors regarding the potential consequences of any such pending or proposed federal or state tax legislation, regulations or litigation, as to which Bond Counsel expresses no opinion.

Opinion of Bond Counsel – North Carolina Income Tax Consequences

In the opinion of Bond Counsel, by the terms of the Act, interest on the Bonds shall be exempt from income taxation in the State. Prospective purchasers should consult their own tax advisors regarding the tax status of interest on the Bonds in a particular state or local jurisdiction other than the State. The proposed form of the Opinion of Bond Counsel appears as Appendix I hereto.

NO LITIGATION

The Issuer

There is no proceeding or litigation of any nature now pending or threatened against the Issuer restraining or enjoining the issuance, sale, execution or delivery of the Bonds, or in any way contesting or affecting the validity of the Bonds, any proceedings of the Issuer taken with respect to the issuance or sale thereof, the pledge or application of any money or security provided for the payment of the Bonds, the existence or powers of the Issuer relating to the Bonds or the title of any officers of the Issuer to their respective positions.

The Borrower

There is no legal action, suit, proceeding, investigation or inquiry at law or in equity, before or by any court, agency, arbitrator, public board or body or other entity or person, pending or, to the actual knowledge of the Borrower, threatened in writing against or affecting the Borrower or any partner of the Borrower, in their respective capacities as such, nor, to the knowledge of the Borrower, any basis therefor, (i) which would restrain or enjoin the issuance or delivery of the Bonds, the use of the Official Statement in the marketing of the Bonds or the collection of revenues pledged under or pursuant to the Indenture or (ii) which would in any way contest or affect the organization or existence of the Borrower or (iii) which would contest or have a material and adverse effect upon (A) the due performance by the Borrower of the transactions contemplated by the Official Statement, (B) the validity or enforceability of the Bonds or any other agreement or instrument to which the Borrower is a party and that is used or contemplated for use in the consummation of the transactions contemplated hereby and thereby, (C) the exclusion from gross income for federal income tax purposes of the interest on the Bonds or (D) the financial condition or operations of the Borrower, or (iv) which contests in any way the completeness or accuracy of the Official Statement or (v) which questions the power or authority of the Borrower to carry out the transactions on its part contemplated by the Official Statement, or the power of the Borrower to own or operate the Project. The Borrower is not subject to any judgment, decree or order entered in any lawsuit or proceeding brought against it that would have such an effect.

CERTAIN LEGAL MATTERS

The validity of the Bonds and certain other legal matters are subject to an approving opinion of McGuireWoods LLP, Raleigh, North Carolina, Bond Counsel to the Issuer. A complete copy of the proposed form

of Bond Counsel opinion is contained in APPENDIX I hereto. Certain legal matters will be passed upon for the Borrower by its counsels, Levitt & Boccio, LLP, New York, New York, and Williams Mullen, Raleigh, North Carolina, and for the Underwriter by Tiber Hudson LLC, Washington, D.C. Payment of the fees of certain counsel to the transaction is contingent upon the issuance and delivery of the Bonds as described herein.

UNDERWRITING

Wells Fargo Bank, National Association (the "**Underwriter**"), a "participating underwriter" as defined in 15c2-12 and an "underwriter" as defined in Section 2(a)(11) of the Securities Act of 1933, as amended, has entered into the Bond Purchase Agreement to purchase all of the Bonds, if any of the Bonds are to be purchased, at a price equal to the principal amount thereof. The Bond Purchase Agreement provides that, as compensation for its services, the Underwriter will receive from the Borrower $101,250.00, plus $1,970.75 for certain fees and expenses related to the issuance of the Bonds. The Underwriter's fee shall not include the fee of the Underwriter's counsel. The obligation of the Underwriter to pay for the Bonds is subject to certain terms and conditions set forth in the Bond Purchase Agreement. The Borrower has agreed to indemnify the Underwriter and the Issuer as to certain matters in connection with the Bonds.

The Underwriter may offer and sell the Bonds that it purchases to certain dealers including dealer banks and dealers depositing the Bonds into investment trusts and others at a price lower than the public offering price stated in the Term Sheet. The offering price of the Bonds may be changed from time to time by the Underwriter.

The Underwriter does not guarantee a secondary market for the Bonds and is not obligated to make any such market in the Bonds. No assurance can be made that such a market will develop or continue. Consequently, investors may not be able to resell Bonds should they need or wish to do so for emergency or other purposes.

The Underwriter has provided the following sentences for inclusion in this Official Statement. Wells Fargo Securities is the trade name for certain securities-related capital markets and investment banking services of Wells Fargo & Company and its subsidiaries, including Wells Fargo Bank, National Association, which conducts its municipal securities sales, trading and underwriting operations through the Wells Fargo Bank, NA Municipal Finance Group, a separately identifiable department of Wells Fargo Bank, National Association, registered with the Securities and Exchange Commission as a municipal securities dealer pursuant to Section 15B(a) of the Securities Exchange Act of 1934. Wells Fargo Bank, National Association, acting through its Municipal Finance Group ("**WFBNA**"), the sole underwriter of the Bonds, has entered into an agreement (the "**WFA Distribution Agreement**") with its affiliate, Wells Fargo Clearing Services, LLC (which uses the trade name "Wells Fargo Advisors") ("**WFA**"), for the distribution of certain municipal securities offerings, including the Bonds. Pursuant to the WFA Distribution Agreement, WFBNA will share a portion of its underwriting compensation with respect to the Bonds with WFA. WFBNA has also entered into an agreement (the "WFSLLC Distribution Agreement") with its affiliate Wells Fargo Securities, LLC ("**WFSLLC**"), for the distribution of municipal securities offerings, including the Bonds. Pursuant to the WFSLLC Distribution Agreement, WFBNA pays a portion of WFSLLC's expenses based on its municipal securities transactions. WFBNA, WFSLLC, and WFA are each wholly owned subsidiaries of Wells Fargo & Company ("**WFC**").

The Issuer has not been furnished with any documents relating to the WFA Distribution Agreement or the WFSLLC Distribution Agreement and makes no representations of any kind with respect thereto. The Issuer is not a party to the WFA Distribution Agreement or the WFSLLC Distribution Agreement and has not entered into any agreement or arrangement with WFBNA, WFSLLC or WFA with respect to the offering and sale of the Bonds.

In addition to serving as the Underwriter, Wells Fargo Bank, National Association or one of its affiliates will (i) serve as the Lender to the Borrower and (ii) provide federal low income housing tax credit equity to the Project, and will be compensated for serving in each such capacity. Conflicts of interest could arise by reason of the different capacities in which Wells Fargo Bank, National Association and its affiliates act in connection with the Bonds, the Mortgage Loan and the low income housing tax credit equity.

RATING

Moody's Investors Service, Inc. (the "**Rating Agency**") has assigned to the Bonds the rating set forth on the cover page hereof. An explanation of the significance of such rating may be obtained from the Rating Agency. The rating of the Bonds reflects only the views of the Rating Agency at the time such rating was given, and neither the Issuer nor the Borrower nor the Underwriter makes any representation as to the appropriateness of the rating. There is no assurance that such rating will continue for any given period of time or that it will not be revised downward or withdrawn entirely by the Rating Agency, if in its judgment, circumstances so warrant. Any such downward revision or withdrawal of the rating may have an adverse effect on the market price of the Bonds.

CONTINUING DISCLOSURE

The Borrower, as the only "obligated person" with respect to the Bonds, will enter into a Continuing Disclosure Agreement, dated as of April 1, 2020 (the "Continuing Disclosure Agreement"), with U.S. Bank National Association, acting as Dissemination Agent, pursuant to which the Borrower will agree to provide ongoing disclosure pursuant to the requirements of Rule 15c2-12 of the United States Securities and Exchange Commission (the "**Rule**"). Financial statements will be provided at least annually to the MSRB and notices of certain events will be issued pursuant to the Rule. Information will be filed with the MSRB through its Electronic Municipal Market Access ("**EMMA**") system, unless otherwise directed by the MSRB. A form of the Continuing Disclosure Agreement is attached hereto as APPENDIX G.

A failure by the Borrower to comply with the provisions of the Continuing Disclosure Agreement will not constitute a default under the Financing Agreement (although Bondholders will have any available remedy at law or in equity for obtaining necessary disclosures). Nevertheless, such a failure to comply is required to be reported in accordance with the Rule and must be considered by any broker, dealer or municipal securities dealer before recommending the purchase or sale of the Bonds in the secondary market. Consequently, such a failure may adversely affect the transferability and liquidity of the Bonds.

The Borrower has not previously been subject to the continuing disclosure requirements of the Rule.

THE TRUSTEE

The information under this heading has been provided solely by the Trustee and is believed to be reliable, but has not been verified independently by the Issuer or the Underwriter. No representation whatsoever as to the accuracy, adequacy or completeness of such information is made by the Issuer or the Underwriter.

The Issuer has appointed U.S. Bank National Association as Trustee under the Indenture. The Trustee is a national banking association organized and existing under the laws of the United States of America, having all of the powers of a bank, including fiduciary powers, and is a member of the Federal Deposit Insurance Corporation and the Federal Reserve System.

The Trustee is to carry out such duties as are assigned to it under the Indenture, the Financing Agreement, and the other Financing Documents. Except for the contents of this section, the Trustee has not reviewed or participated in the preparation of this Official Statement and assumes no responsibility for the nature, contents, accuracy or completeness of the information set forth in this Official Statement or for the recitals contained in the Indenture or the Bonds (except for the certificate of authentication on each Bond), or for the validity, sufficiency, or legal effect of any of such documents.

Furthermore, the Trustee has no oversight responsibility, and is not accountable, for the use or application of any of the Bonds authenticated or delivered pursuant to the Indenture or for the use or application of the proceeds of such Bonds. The Trustee has not evaluated the risks, benefits, or propriety of any investment in the Bonds and makes no representation, and has reached no conclusions, regarding the value or condition of any assets or revenues pledged or assigned as security for the Bonds, the technical or financial feasibility of the expected uses of proceeds of the Bonds or the investment quality of the Bonds, about all of which the Trustee expresses no opinion and expressly disclaims the expertise to evaluate.

ADDITIONAL INFORMATION

This Official Statement is submitted in connection with the offering of the Bonds and may not be reproduced or used, as a whole or in part, for any other purpose. Any statements in this Official Statement involving matters of opinion or estimate, whether or not expressly so stated, are intended as such and not as representations of fact. This Official Statement is not to be construed as a contract or agreement between the Issuer and the purchasers or holders of any of the Bonds

The summaries and explanation of, or references to, the Act, the Indenture and the Bonds included in this Official Statement do not purport to be comprehensive or definitive. Such summaries, explanations and references are qualified in their entirety by reference to each such document, copies of which are on file with the Trustee.

The information contained in this Official Statement is subject to change without notice and no implication shall be derived therefrom or from the sale of the Bonds that there has been no change in the affairs of the Issuer, the Borrower or the Project from the date hereof.

This Official Statement has been deemed final in accordance with the Rule. The execution and delivery of this Official Statement has been duly authorized by the Borrower.

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This Official Statement has been duly authorized, executed and delivered by the Issuer and the Borrower.

INLIVIAN

By: /s/ A. Fulton Meachem, Jr.
A. Fulton Meachem, Jr.
Chief Executive Officer

[Signatures continue on following page]

[Borrower signature page to Official Statement]

NORTHCROSS PRESERVATION, L.P.,
a New York limited partnership

By: Northcross Preservation GP, LLC,
a New York limited liability company,
its general partner

By: /s/ Matthew Finkle
Matthew Finkle
Vice President

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APPENDIX A
FANNIE MAE MORTGAGE-BACKED SECURITIES PROGRAM

This summary of the Fannie Mae Mortgage Backed Securities Program, the Fannie Mae Certificates and the documents referred to herein has not been provided or approved by Fannie Mae, does not purport to be comprehensive and is qualified in its entirety by reference to the Fannie Mae MBS Prospectus (Multifamily Fixed-Rate Yield Maintenance) for Guaranteed Mortgage Pass-Through Certificates (the "Fannie Mae MBS Prospectus") which will be available and can be found if and when the MBS is issued, by inputting the CUSIP shown in Appendix H hereto into Fannie Mae's multifamily disclosure system, DUS Disclose (https://mfdusdisclose.fanniemae.com/#/home). The template for the Fannie Mae MBS Prospectus, as of the date of this Official Statement, can be found at https://www.fanniemae.com/resources/file/mbs/pdf/fixed-rate-yield-maintenance-120119.pdf. The template for the Fannie Mae MBS Prospectus may change from time to time. The Fannie Mae MBS Prospectus, if and when available, will consist of the template for the Fannie Mae MBS Prospectus applicable at the time of the issuance of the MBS with the cover page completed with the MBS-specific information, an Additional Disclosure Addendum substantially in the form attached as Schedule I to this Appendix A, and an Annex A containing information substantially consistent with the Term Sheet attached hereto as Appendix H.

Security.....	Guaranteed Mortgage Pass-Through Certificates (Multifamily Residential Mortgage Loans)
General	Fannie Mae is a government-sponsored enterprise that was chartered by the U.S. Congress in 1938 under the name "Federal National Mortgage Association" to support liquidity and stability in the secondary mortgage market, where existing mortgage loans are purchased and sold. The address of our principal office is 1100 15th Street, NW, Washington, DC 20005; the telephone number is 800-2FANNIE (800-232-6643). Fannie Mae has been under conservatorship since September 6, 2008. The conservator, the Federal Housing Finance Agency ("FHFA"), succeeded to all rights, titles, powers and privileges of Fannie Mae and of any shareholder, officer or director of the company with respect to the company and its assets. For additional information on the conservatorship, see **"FANNIE MAE — Regulation and Conservatorship"** in the Fannie Mae MBS Prospectus. Fannie Mae's regulators include FHFA, the U.S. Department of Housing and Urban Development ("HUD"), the Securities and Exchange Commission (the "SEC"), and the U.S. Department of the Treasury (the "Treasury"). The Office of Federal Housing Enterprise Oversight, the predecessor of FHFA, was Fannie Mae's safety and soundness regulator prior to enactment of the Federal Housing Finance Regulatory Reform Act of 2008. On September 7, 2008, Fannie Mae entered into a senior preferred stock purchase agreement with the Treasury pursuant to which Fannie Mae issued to it one million shares of senior preferred stock and a warrant to purchase, for a nominal price, shares of common stock equal to 79.9% of the outstanding common stock of Fannie Mae. **Nevertheless, Fannie Mae alone is responsible for making payments under its guaranty. The MBS, if issued by Fannie Mae and acquired by the Trustee, and payments of principal and interest on the MBS, will not be guaranteed by the United States and do not constitute a debt or obligation of the United States or any of its agencies or instrumentalities other than Fannie Mae.**
Sponsor and Depositor	Fannie Mae is the sponsor of this offering of certificates and the depositor of the mortgage loans into the trust.

Description of MBS.....	The MBS, if issued by Fannie Mae and acquired by the Trustee, will represent a pro rata undivided beneficial ownership interest in the Mortgage Loan. See "MORTGAGE LOAN" in the Official Statement. Fannie Mae will issue the MBS in book-entry form on the book-entry system of the U.S. Federal Reserve Banks. The book-entry MBS will not be convertible into physical certificates.
Minimum Denomination	Fannie Mae will issue the MBS in minimum denominations of $1,000, with additional increments of $1.
Issue Date	The date specified on the front cover page, which is the first day of the month in which the MBS is issued.
Settlement Date	The date specified on the front cover page, which is a date no later than the last business day of the month in which the issue date occurs.
Distribution Date	The "Distribution Date" is the 25th day of each month which is the date designated for payments to the Trustee as holder of the MBS, if issued. If that day is not a Business Day, payments will be made on the next Business Day. The first Distribution Date for the MBS will occur in the month following the month in which the MBS is issued. For example, if the issue date is January 1st, the distribution date is February 25th or, if February 25th is not a Business Day, the first Business Day following February 25th.
Maturity Date	The date specified on the front cover page, which is the date that the final payment is due on the last mortgage loan remaining in the pool.
Use of Proceeds	The MBS is backed by a pool of one or more mortgage loans that Fannie Mae recently acquired or already owned. Fannie Mae is issuing the MBS either in exchange for the recently acquired mortgage loans or for cash proceeds that are generally used for purchasing other mortgage loans or for general corporate purposes.
Interest.....	On each Distribution Date, Fannie Mae will pass through on the MBS, if issued, one month's interest at the "Pass-Through Rate". Because Fannie Mae's guaranty requires it to supplement amounts received by the trust as required to permit timely payment of interest, the amount of interest distributed to certificateholders on a Distribution Date will not be affected by any loss mitigation measure, taken with respect to, or other loan modification made to, the Mortgage Loan while it remains in the trust. As described under the caption "**MATERIAL FEDERAL INCOME TAX CONSEQUENCES"** which can be found at *https://www.fanniemae.com/resources/file/mbs/pdf/fixed-rate-yield-maintenance-120119.pdf*, the MBS and payments on the MBS, including interest payments thereon, are subject to federal income taxation. Such interest payments only become excluded from gross income for federal income tax purposes and excluded from taxation by the State, to the extent described elsewhere herein, when applied by the Trustee to pay interest due on the Bonds. See "TAX MATTERS" in the Official Statement herein.

Principal ..... Fannie Mae will receive collections on the Mortgage Loan on a monthly basis. The period Fannie Mae uses to differentiate between collections in one month and collections in another month is called the due period. The due period is the period from and including the second calendar day of the preceding month in which the Distribution Date occurs to and including the first calendar day of the month in which the Distribution Date occurs.

On each Distribution Date, Fannie Mae will pass through principal of the MBS, if issued, as follows:

- the aggregate amount of the scheduled principal due on the Mortgage Loan in the pool during the related due period; and
- the aggregate amount of the unscheduled principal payments specified below:
    - the stated principal balance of the Mortgage Loan as to which prepayment in full was received during the calendar month immediately preceding the month in which that Distribution Date occurs;
    - the stated principal balance of the Mortgage Loan if it was purchased from the pool during the calendar month immediately preceding the month in which that Distribution Date occurs; and
    - the amount of any partial prepayments on the Mortgage Loan that were received during the calendar month immediately preceding the month in which that Distribution Date occurs.

Because Fannie Mae's guaranty requires it to supplement amounts received by the trust as required to permit timely payment of the principal amounts specified above, the amount of principal distributed to certificateholders on a Distribution Date will **not** be affected by any loss mitigation measure, taken with respect to, or other loan modification made to, the Mortgage Loan while it remains in the trust.

Fannie Mae may treat a prepayment in full received on the first Business Day of a month as if the prepayment were received on the last Business Day of the preceding month. If Fannie Mae does so, it passes through these prepayments on the Distribution Date in the same month in which the prepayment actually was received. For example, if a prepayment on the Mortgage Loan in full is actually received on the first Business Day of July, it would be treated as if it had been received on the last Business Day of June and, therefore, would be passed through on July 25 (or the next Business Day, if July 25 is not a Business Day).

The Mortgage Loan permits the reamortization of principal after a permitted voluntary prepayment or an involuntary partial prepayment caused by the receipt of proceeds from insurance or condemnation. A reamortization of the Mortgage Loan will cause a change in the amount of principal that is passed through to holders of the MBS.

On or about the fourth Business Day of each month, Fannie Mae publishes the monthly pool factor for each issuance of its Certificates. If an investor multiplies the monthly pool factor by the original principal balance of the MBS, the investor will obtain the current principal balance of the MBS, after giving effect to the monthly principal payment to be passed through on the Distribution Date in that month. The most current pool factor is generally available through DUS Disclose on Fannie Mae's Web site at https://mfdusdisclose.fanniemae.com/#/home.

Guaranty ..... Fannie Mae guarantees to each trust that on each Distribution Date it will supplement amounts received by the trust as required to permit payments on the MBS in an amount equal to:

- the aggregate amounts of scheduled and unscheduled principal payments described in "—Principal" above, and
- an amount equal to one month's interest on the MBS, as described in "—Interest" above.

In addition, Fannie Mae guarantees to the related trust that it will supplement amounts received by the trust as required to make the full and final payment of the unpaid principal balance of the related certificates on the Distribution Date in the month of the maturity date specified in the prospectus supplement.

Certificateholders have certain limited rights to bring proceedings against the Treasury if Fannie Mae fails to pay under its guaranty. The total amount that may be recovered from the Treasury is subject to limits imposed in the senior preferred stock purchase agreement. For a description of certificateholders' rights to proceed against Fannie Mae and the Treasury, see **"FANNIE MAE—Certificateholders' Rights Under the Senior Preferred Stock Purchase Agreement"** in the Fannie Mae MBS Prospectus.

Prepayments ..... A borrower may voluntarily prepay the loan in full. Except during the open period, each mortgage loan in the pool requires payment of a prepayment premium if the loan is prepaid voluntarily, as disclosed on Annex A. A portion of the prepayment premium, if collected, may be shared with certificateholders under the circumstances described in "**YIELD, MATURITY AND PREPAYMENT CONSIDERATIONS—Maturity and Prepayment Considerations—Prepayment of a Mortgage Loan**" in the Fannie Mae MBS Prospectus. **Fannie Mae does not guarantee to any trust the payment of any prepayment premiums**.

Master Servicing/Servicing ..... Fannie Mae is responsible as master servicer for certain duties. Fannie Mae has contracted with the mortgage servicer identified on Annex A to perform servicing functions for us subject to our supervision. Fannie Mae refers to this servicer or any successor servicer as its primary servicer. In certain limited circumstances, Fannie Mae may act as primary servicer. For a description of Fannie Mae's duties as master servicer and the responsibilities of its primary servicer, see "**THE TRUST DOCUMENTS-Collections and Other Servicing Practices**" and "**FANNIE MAE PURCHASE PROGRAM-Servicing Arrangements**" in the Fannie Mae MBS Prospectus.

Business Day	Any day other than a Saturday or Sunday, a day when the fiscal agent or paying agent is closed, a day when the Federal Reserve Bank of New York is closed or is authorized or obligated by law or executive order to remain closed, or, for purposes of withdrawals from a certificate account, a day when the Federal Reserve Bank is closed in the district where the certificate account is maintained if the related withdrawal is being made from that certificate account.
Trust Documents	If issued, the MBS will be issued pursuant to the 2017 Multifamily Master Trust Agreement effective as of December 1, 2017, as supplemented by a trust issue supplement for that issuance. Certain pertinent provisions of the trust agreement in the Fannie Mae MBS Prospectus will apply. Investors should refer to the trust agreement and the related trust issue supplement for a complete description of their rights and obligations as well as those of Fannie Mae in its various capacities. The trust agreement may be found on Fannie Mae's Web site: http://www.fanniemae.com.
Trustee	Fannie Mae serves as the trustee for the trust pursuant to the terms of the trust agreement and the related trust issue supplement.
Paying Agent	An entity designated by Fannie Mae to perform the functions of a paying agent. The Federal Reserve Bank of New York currently serves as Fannie Mae's paying agent for certificates such as the MBS.
Fiscal Agent.....	An entity designated by Fannie Mae to perform certain administrative functions for the trust. The Federal Reserve Bank of New York currently serves as Fannie Mae's fiscal agent for certificates such as the MBS.
Multifamily Mortgage Loan Pool.	Each mortgage loan in the pool is a fixed-rate loan included in one of the following categories: • Fixed-rate loans with monthly payments of interest only during their entire loan terms, with a balloon payment of all outstanding principal at maturity; • Fixed-rate loans with monthly payments of interest only during specified initial periods, followed by monthly payments of principal and interest for their remaining loan terms, with a balloon payment of all outstanding principal at maturity; • Fixed-rate loans with monthly payments of interest only during specified initial periods, followed by monthly payments of principal and interest that fully amortize over their remaining loan terms; • Fixed-rate loans with monthly payments of principal and interest during their entire loan terms, with a balloon payment of all outstanding principal at maturity; and • Fixed-rate loans that fully amortize over their loan terms.
Multifamily Mortgage Loans.....	Each mortgage loan in the pool was acquired from a multifamily mortgage loan seller that Fannie Mae has approved. A mortgage loan may have been originated by the seller or may have been acquired by the seller from the originator of the loan, which may or may not be an approved mortgage loan seller. Each mortgage loan that Fannie Mae acquires either meets its published standards (except to the extent that Fannie Mae permits waivers from those standards) or is reviewed by Fannie Mae before delivery to determine its suitability. Fannie Mae may modify its standards from time to time.

Types of Property	Each mortgage loan in the pool is secured by a lien on one or more of the following types of property: • Multifamily residential properties; • Cooperative housing projects; • Dedicated student housing; • Manufactured housing communities; • Military housing; or • Seniors housing Annex A discloses the type of property securing each mortgage loan in the pool and the priority of each lien. Any type of property may also be considered affordable housing; Annex A discloses certain affordable housing characteristics.
Termination	The trust will terminate when the certificate balance of the certificates has been reduced to zero, and all required distributions have been passed through to certificateholders. Fannie Mae has no unilateral option to cause an early termination of the trust other than by purchasing a mortgage loan from the pool for a reason permitted by the trust documents.
Federal Income Tax Consequences	The mortgage pool will be classified as a fixed investment trust. Each beneficial owner of a certificate will be treated as the owner of a pro rata undivided interest in each of the mortgage loans included in the pool. Accordingly, each owner will be required to include in income its pro rata share of the entire income from each mortgage loan in the pool, and certain owners will be entitled to deduct their pro rata share of the expenses of the trust, subject to the limitations described in the prospectus. See "**MATERIAL FEDERAL INCOME TAX CONSEQUENCES - Application of Revenue Ruling 84-10-Expenses of the Trust**" in the Fannie Mae MBS Prospectus.
Legal Investment Considerations .	Under the Secondary Mortgage Market Enhancement Act of 1984, the certificates offered by this prospectus will be considered "securities issued or guaranteed by … the Federal National Mortgage Association." Nevertheless, investors should consult their own legal advisor to determine whether and to what extent the certificates of an issuance constitute legal investments for them.
ERISA Considerations.....	For the reasons discussed in "ERISA CONSIDERATIONS" in the Fannie Mae MBS Prospectus, an investment in the certificates by a plan subject to the Employee Retirement Income Security Act ("ERISA") will not cause the assets of the plan to include the mortgage loans underlying the certificates or the assets of Fannie Mae under the fiduciary provisions of ERISA or the prohibited transaction provisions of ERISA or section 4975 of the Internal Revenue Code of 1986, as amended (the "Code").

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SCHEDULE I

FORM OF PROPOSED ADDITIONAL DISCLOSURE ADDENDUM

The following information supplements the information in the Fannie Mae MBS Prospectus. In the event of any inconsistency between the information provided in this Addendum and the information in the Fannie Mae MBS Prospectus, the information in this Addendum shall prevail.

The mortgage loan is an affordable housing loan and, accordingly, the mortgaged property is subject to affordable housing regulatory requirements that impose income restrictions on tenants of the mortgaged property. See "**THE MORTGAGE LOANS — Affordable Housing Loans**"; "**RISK FACTORS — RISKS RELATING TO YIELD AND PREPAYMENT — Prepayments Relating to Specific Types of Mortgage Loans and Mortgaged Properties — The successful operation of a mortgaged property securing an affordable housing mortgage loan may depend upon additional factors**" in the Fannie Mae MBS Prospectus for additional information. In addition, the mortgaged property has received an allocation of low-income housing tax credits and the property owner has selected the occupancy option under the Consolidated Appropriations Act of 2018 referred to as "income averaging." See "**THE MORTGAGE LOANS — Affordable Housing Loans — LIHTC Loans**" and "**RISK FACTORS — RISKS RELATING TO YIELD AND PREPAYMENT — Prepayments Relating to Specific Types of Mortgage Loans and Mortgaged Properties — An affordable housing mortgage loan may be secured by a mortgaged property that has received an allocation of low-income housing tax credits but that fails to remain in compliance with the requirements for maintaining eligibility to receive the tax credits due to operations of the property or a casualty on the property**" in the Fannie Mae MBS Prospectus for additional information.

The MBS certificates will initially serve as collateral for a tax-exempt issue of multifamily housing bonds (the "Bonds") issued by INLIVIAN (the "Issuer") pursuant to and secured by an indenture of trust by and between the Issuer and U.S. Bank National Association, as trustee, and will be held as collateral for the Bonds. The mortgage loan documents provide that the mortgage loan is cross-defaulted with certain agreements relating to the Bonds entered into at the time of the issuance of the Bonds, including but not limited to the indenture authorizing the Bonds and any housing regulatory agreements that limit rents, impose income restrictions or otherwise restrict the use of the property.

Because the mortgage loan documents provide that the mortgage loan is cross-defaulted with certain of the agreements relating to the Bonds, a default under any of the cross-defaulted documents may trigger an event of default on the mortgage loan. If Fannie Mae accelerates the mortgage loan as a result of any event of default under the mortgage loan, the mortgage loan will be paid in full, and the stated principal balance of the certificates will be passed through to the holder of the certificates. In this case, no yield maintenance or other prepayment premiums will be payable to the holder of the certificates.

In addition to the matters described above, the eligible multifamily lender originating the mortgage loan may request the disclosure of additional matters relating to the mortgage loan or, upon delivery of the mortgage loan to Fannie Mae, in Fannie Mae's discretion, it may determine that matters identified in the Term Sheet attached as Appendix H to the Official Statement or otherwise may need to be disclosed in the Additional Disclosure Addendum provided in connection with the issuance of the MBS certificates.

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APPENDIX B
DEFINITIONS OF CERTAIN TERMS

Certain capitalized terms used in this Official Statement are defined below. The following is subject to all the terms and provisions of the Indenture, to which reference is hereby made and copies of which are available from the Issuer or the Trustee.

"Act" means the North Carolina Housing Authorities Law, Article 1 of Chapter 157 of the General Statutes of North Carolina, as amended.

"Authorized Borrower Representative" means any person who, at any time and from time to time, is designated as the Borrower's authorized representative by written certificate furnished to the Issuer and the Trustee containing the specimen signature of such person and signed on behalf of the Borrower by or on behalf of any authorized general partner of the Borrower, which certificate may designate an alternate or alternates. The Trustee may conclusively presume that a person designated in a written certificate filed with it as an Authorized Borrower Representative is an Authorized Borrower Representative until such time as the Borrower files with it (with a copy to the Issuer) a written certificate revoking such person's authority to act in such capacity.

"Authorized Denomination" means $1,000 or any integral multiple of $1 in excess thereof.

"Authorized Officer" means, as applicable, (a) any member of the Board of Commissioners of the Issuer or any other person designated to act on behalf of the Issuer by the Resolution, and (b) any Vice President or Assistant Vice President of the Trustee having regular responsibility for corporate trust matters.

"Bankruptcy Code" means the Federal Bankruptcy Code, Title 11 of the United States Code.

"Beneficial Owner" means the purchaser of a beneficial interest in the Bonds.

"Bond" or "Bonds" means the Multifamily Green Tax-Exempt Mortgage-backed Bonds (GREEN M-TEBS) (Northcross Townhomes), Series 2020 in the principal amount of $13,500,000 authorized under and secured by the Indenture and issued pursuant to the Indenture.

"Bond Counsel" means an attorney at law or a firm of attorneys of recognized expertise in the field of federal income tax matters relating to municipal securities selected by the Issuer and acceptable to the Trustee.

"Bond Dated Date" means April 1, 2020.

"Bond Maturity Date" means May 1, 2037. The final payment of principal with respect to the MBS will be made on May 25, 2037 (or, if such date is not a Business Day, the next Business Day) and will be passed through to the Bondholders on the next succeeding Business Day after receipt of the final payment on the MBS.

"Bond Proceeds Fund" means the Fund of that name created and so designated pursuant to the Indenture.

"Bond Purchase Agreement" means the Bond Purchase Agreement, dated April 14, 2020, among the Underwriter, the Issuer and the Borrower.

"Bond Register" means the registration books of the Issuer maintained by the Trustee as provided in the Indenture on which registration and transfer of the Bonds is to be recorded.

"Bondholder" or "holder" or "owner" of any Bond or any similar term shall mean the person in whose name any Bond is registered.

"Book-Entry Bonds" means the Bonds for which a Depository or its Nominee is the Bondholder.

"Borrower" means Northcross Preservation, L.P., a New York limited partnership, or any of its permitted successors or assigns.

"Business Day" means any day other than a Saturday or Sunday, a day when the fiscal agent or paying agent for the MBS is closed, a day when the Federal Reserve Bank of New York is closed, or a day when the Federal Reserve Bank is closed in a district where a securities account is located if the related withdrawal is being made from that securities account, and, with respect to the Bonds, any such day that is also a day on which the Trustee is open for business.

"Closing Date" means April 15, 2020.

"Code" means the United States Internal Revenue Code of 1986, as amended, and the Regulations thereunder, or any successor statute, together with corresponding and applicable final, temporary or proposed regulations and revenue rulings issued or amended with respect thereto by the Treasury Department or Internal Revenue Service of the United States.

"Costs of Issuance" means costs to the extent incurred in connection with, and allocable to, the issuance of the Bonds within the meaning of Section 147(g) of the Code. For example, "issuance costs" include the following costs, but only to the extent incurred in connection with, and allocable to, the borrowing: Underwriter's fee; counsel fees; financial advisory fees; fees paid to an organization to evaluate the credit quality of an issue; trustee fees; paying agent fees; registrar, certification and authentication fees; accounting fees; printing costs for bonds and offering documents; public approval process costs; engineering and feasibility study costs; guarantee fees, other than qualified guarantees; and similar costs.

"Counsel's Opinion," "Opinion of Counsel," or "Opinion" means a written opinion, including opinions supplemental thereto, signed by an attorney or firm of attorneys (who may be counsel for the Issuer, the Borrower or Fannie Mae) acceptable to the Trustee.

"Depository" means, initially, DTC and any replacement securities depository appointed under the Indenture.

"DTC" means The Depository Trust Company, New York, New York.

"Electronic Means" means an email, a facsimile transmission or any other electronic means of communication approved in writing by Fannie Mae.

"Eligible Funds" means:

(a) the proceeds of the Bonds or any other amounts received by the Trustee from the Underwriter;

(b) moneys drawn on a letter of credit;

(c) any amounts received by the Trustee representing advances to the Borrower of proceeds of the Mortgage Loan;

(d) any other amounts for which the Trustee has received an Opinion of Counsel to the effect that the use of such amounts to make payments on the Bonds would not violate Section 362(a) of the Bankruptcy Code (or that relief from the automatic stay provisions of such Section 362(a) would be available from the bankruptcy court) or be avoidable as preferential payments under Section 547 or 550 of the Bankruptcy Code should the Borrower become a debtor in proceedings commenced under the Bankruptcy Code;

(e) any payments held by the Trustee for a continuous period of 123 days, provided that no act of bankruptcy with respect to the Borrower has occurred during such period; and

(f) investment income derived from the investment of the money described in (a) through (e) above.

"Eligible Investments" means any of the following investments which at the time are legal investments for moneys of the Issuer which are then proposed to be invested therein and each of which investments must mature or be guaranteed to be able to be tendered at a price of par at such time or times as to enable timely disbursements to be made from the fund in which such investment is held or allocated in accordance with the terms of the Indenture:

(a) Government Obligations; and

(b) to the extent permitted herein, shares or units in any money market mutual fund rated "Aaa-mf" by Moody's (or if Moody's is not the Rating Agency or a new rating scale is implemented, the equivalent rating category given by the Rating Agency for that general category of security) (including mutual funds of the Trustee or its affiliates or for which the Trustee or an affiliate thereof serves as investment advisor or provides other services to such mutual fund and receives reasonable compensation therefor) registered under the Investment Company Act of 1940, as amended, whose investment portfolio consist solely of direct obligations of the government of the United States of America.

"Event of Default" means any occurrence or event specified in the Indenture.

"Extension Deposit" means the deposit of Eligible Funds described in the Indenture.

"Extraordinary Issuer Fees and Expenses" means the expenses and disbursements payable to the Issuer under the Indenture for Extraordinary Services and Extraordinary Expenses, including extraordinary fees, costs and expenses incurred by the Issuer, Bond Counsel and counsel to the Issuer which are to be paid by the Borrower pursuant to the Financing Agreement.

"Extraordinary Services" and "Extraordinary Expenses" mean all services rendered and all reasonable expenses properly incurred by the Trustee or the Issuer under the Indenture or the Financing Agreement, other than Ordinary Services and Ordinary Expenses. Extraordinary Services and Extraordinary Expenses shall specifically include but are not limited to services rendered or expenses incurred by the Trustee or the Issuer in connection with, or in contemplation of, an Event of Default.

"Extraordinary Trustee Fees and Expenses" means the expenses and disbursements payable to the Trustee under the Indenture for Extraordinary Services and Extraordinary Expenses, including extraordinary fees, costs and expenses incurred by the Trustee and the Trustee's counsel which are to be paid by the Borrower pursuant to the Financing Agreement.

"Fannie Mae" means Fannie Mae, a corporation organized and existing under the Federal National Mortgage Association Charter Act, 12 U.S.C., § 1716 et seq., and its successors.

"Fannie Mae Certificate" means a guaranteed mortgage pass-through Fannie Mae mortgage backed security issued by Fannie Mae in book-entry form, recorded in the name of the Trustee or its nominee, guaranteed as to timely payment of principal of and interest by Fannie Mae, and backed by the Mortgage Loan.

"Financing Agreement" means the Financing Agreement dated as of April 1, 2020 among the Issuer, the Borrower and the Trustee.

"Financing Documents" means the Financing Agreement, the Regulatory Agreement, the Tax Certificate, the Indenture and the Bond Purchase Agreement.

"Fund" or "Account" means a fund or account created by or pursuant to the Indenture.

"Government Obligations" means direct obligations of the United States of America (including obligations issued or held in book-entry form on the books of the Department of the Treasury), and obligations on which the full and timely payment of principal and interest is unconditionally guaranteed by the United States of America.

"Indenture" means the Indenture of Trust dated as of April 1, 2020 by and between the Issuer and the Trustee, as it may from time to time be amended, modified or supplemented by Supplemental Indentures.

"Investor Limited Partner" means Wells Fargo Affordable Housing Community Development Corporation, a North Carolina corporation, and its successors and/or assigns.

"Issuer" means INLIVIAN, a public instrumentality and political subdivision of the State, together with its successors and assigns.

"Issuer Fees and Expenses" means, collectively, the Ordinary Issuer Fees and Expenses and the Extraordinary Issuer Fees and Expenses. The Issuer Fees and Expenses shall be payable by the Borrower, and not from funds pledged to the benefit of the Trust Estate.

"Lender" means Wells Fargo Bank, National Association, and its successors and assigns.

"LGC" means the North Carolina Local Government Commission, a division of the Department of the State Treasurer, or any successor governmental agency performing a similar function, or its designated representative. Any action required to be taken by the LGC under this Indenture or any other Financing Document may be taken by the Secretary of the LGC or other designated representative of the LGC.

"MBS" shall mean the Fannie Mae Certificate identified in the Indenture that is pledged by the Issuer to the Trustee pursuant to the Indenture.

"MBS Dated Date" means the 1st day of the month in which the MBS is delivered.

"MBS Delivery Date" means the date on which the Trustee receives the MBS backed by the Mortgage Loan, which shall occur not later than the MBS Delivery Date Deadline.

"MBS Delivery Date Deadline" means June 25, 2020, or, if such day is not a Business Day, the following Business Day, as such date may be extended pursuant to the Indenture.

"MBS Factor" means the applicable factor posted by Fannie Mae (as of the Closing Date, on Fannie Mae's website through DUS Disclose at https://mfdusdisclose.fanniemae.com/#/home) on the MBS from time to time as the Mortgage Loan amortizes, which represents the percentage of the original balance of the MBS that is outstanding as of a given date.

"MBS Purchase Price" means the principal amount outstanding on the Mortgage Loan as of the MBS Delivery Date plus accrued interest on the MBS from the MBS Dated Date to the MBS Delivery Date at the Pass-Through Rate.

"MBS Revenues" means all payments made under and pursuant to the MBS.

"Moody's" means Moody's Investors Service, Inc., a Delaware corporation, and its successors and assigns, or if it is dissolved or no longer assigns credit ratings, then any other nationally recognized statistical rating agency, designated by Fannie Mae, that assigns credit ratings.

"Mortgage" means the Multifamily Deed of Trust, Assignment of Leases and Rents, Security Agreement and Fixture Filing, dated as of April 15, 2020, together with all riders and exhibits, securing the Mortgage Loan, executed by the Borrower in favor of the Lender, as may be amended from time to time.

"Mortgage Loan" means the interest-bearing loan for multifamily housing relating to the Bonds which is evidenced by the Mortgage Note and secured by the Mortgage and the Multifamily Loan and Security Agreement.

"Mortgage Loan Amortization Schedule" means the mortgage loan amortization schedule delivered by the Lender to the Trustee on the Closing Date, as the same may be replaced by an amended mortgage loan amortization schedule delivered to the Trustee pursuant to the Financing Agreement.

"Mortgage Loan Documents" means, collectively, the Mortgage Note, the Mortgage, the Multifamily Loan and Security Agreement and all other documents, agreements and instruments evidencing, securing or otherwise relating to the Mortgage Loan, as each such document, agreement or instrument may be amended, supplemented or restated from time to time. Neither the Financing Agreement nor the Regulatory Agreement nor any document evidencing, securing or otherwise relating to any subordinate mortgage is a Mortgage Loan Document and neither document is secured by the Mortgage.

"Mortgage Note" means the Multifamily Note dated the Closing Date from the Borrower payable to the order of the Lender evidencing the Borrower's obligation to repay the Mortgage Loan, as the same may be amended from time to time.

"Multifamily Loan and Security Agreement" means the Multifamily Loan and Security Agreement dated April 15, 2020, between the Borrower and the Lender, as the same may be amended from time to time.

"Negative Arbitrage Account" means the Negative Arbitrage Account of the Revenue Fund created pursuant to the Indenture.

"Negative Arbitrage Deposit" means Eligible Funds to be deposited on the Closing Date into the Negative Arbitrage Account, as set forth in the Indenture.

"Nominee" means the nominee of the Depository, which may be the Depository, as determined from time to time pursuant to the Indenture.

"Ordinary Issuer Fees and Expenses" means collectively, (a) an issuance fee in an amount equal to one and one-quarter percent (1.25%) of the principal amount of the Bonds, payable on the Closing Date, and (b) an annual fee equal to 0.125% of the outstanding principal amount of the Bonds payable on each April 15, beginning April 15, 2021. The Ordinary Issuer Fees and Expenses and all amounts due to the Issuer for Extraordinary Services and all Extraordinary Expenses of the Issuer will be paid directly by the Borrower pursuant to the Financing Agreement.

"Ordinary Services" and "Ordinary Expenses" mean those services normally rendered, and those expenses normally incurred, by an issuer or a trustee under instruments similar to the Indenture.

"Ordinary Trustee Fees and Expenses" means amounts due to the Trustee for the Ordinary Services and the Ordinary Expenses of the Trustee incurred in connection with its duties under the Indenture, payable annually in advance on the Closing Date and on each anniversary thereof in the amount of $2,750 (together with an acceptance fee of $2,500 payable upon execution of the Indenture). The Ordinary Trustee Fees and Expenses and all amounts due to the Trustee for Extraordinary Services and all Extraordinary Expenses of the Trustee will be paid directly by the Borrower pursuant to the Financing Agreement.

"Outstanding" means, when used with respect to the Bonds and as of any date, all Bonds theretofore authenticated and delivered under the Indenture except:

(a) any Bond cancelled by the Trustee or delivered to the Trustee for cancellation;

(b) any Bond for the payment or redemption of which either (i) moneys equal to the principal amount or Redemption Price thereof, as the case may be, with interest to the date of maturity or redemption date, or (ii) specified types of Eligible Investments or moneys in the amounts, of the maturities and otherwise as described and required under the Indenture, shall have theretofore been deposited with the Trustee in trust (whether upon or prior to

maturity or the redemption date of such Bond) and, except in the case of a Bond to be paid at maturity, as to which any required redemption notice shall have been given or provided for in accordance with the Indenture, and

(c) any Bond in lieu of or in exchange for which another Bond shall have been authenticated and delivered pursuant to the Indenture.

"Participant" means a member of, or a participant in, the Depository.

"Pass-Through Rate" means the rate set forth in APPENDIX H — TERM SHEET hereto.

"Payment Date" means (i) the 26th day of the month following the month in which the Closing Date occurs and the 26th day of each month thereafter, or the next succeeding Business Day if such 26th day is not a Business Day, until and including the 26th day of the month in which the MBS Delivery Date occurs, (ii) commencing in the first month immediately following the month in which the MBS Delivery Date occurs, the Business Day immediately after the date of receipt by the Trustee of a payment received on the MBS, and (iii) with respect to any redemption in lieu of an exchange of the Bonds for the MBS pursuant to the Indenture, the day on which the Trustee receives funds pursuant to the transfer of the applicable amount of the MBS to or upon the order of the Issuer. The payment of interest on a Payment Date shall relate to the interest accrued during the preceding calendar month. There shall be no further accrual of interest on the Bonds from the Bond Maturity Date.

"Project" means the multifamily rental housing development, known as Northcross Townhomes, located in Charlotte, North Carolina, on the site described in the Mortgage.

"Project Costs" means the following costs of the Project:

(a) Costs incurred directly or indirectly for or in connection with the acquisition (including the acquisition of a fee simple interest), construction, rehabilitation, improvement and equipping of the Project, including costs incurred in respect of the Project for preliminary planning and studies; architectural, legal, engineering, accounting, consulting, supervisory and other services; labor, services and materials; and recording of documents and title work and insurance.

(b) Premiums attributable to any surety bonds and insurance required to be taken out and maintained during the construction period with respect to the Project.

(c) Taxes, assessments and other governmental charges in respect of the Project that may become due and payable during the construction period.

(d) Costs incurred directly or indirectly in seeking to enforce any remedy against any contractor or subcontractor in respect of any actual or claimed default under any contract relating to the Project.

(e) Subject to the limitations set forth in the Tax Certificate, Costs of Issuance, including, financial, legal, accounting, cash flow verification, printing and engraving fees, charges and expenses, and all other such fees, charges and expenses incurred in connection with the authorization, sale, issuance and delivery of the Bonds, including, without limitation, the fees and expenses of the Trustee properly incurred under the Indenture that may become due and payable during the construction period.

(f) Any other costs, expenses, fees and charges properly chargeable to the cost of acquisition, construction, rehabilitation, improvement and equipping of the Project.

(g) Payment of interest on the Bonds during the construction period.

"Rating Agency" means Moody's, S&P or any other nationally recognized securities rating agency then rating the Bonds, or such rating agency's successors or assigns.

"Rebate Fund" means the Fund created and so designated in the Indenture.

"Record Date" means the close of business on the last Business Day of the calendar month immediately preceding each Payment Date.

"Redemption Price" means the amount required to be delivered to pay principal of, interest on, and redemption premium, if any, in connection with a redemption of the Bonds in accordance with the provisions of the Indenture.

"Regulations" means the federal income tax regulations promulgated or proposed under the Code by the Department of the Treasury, as the same may hereafter be amended, including without limitation regulations promulgated by the Department of the Treasury to implement the requirements of Section 148 of the Code.

"Regulatory Agreement" means the Regulatory Agreement and Declaration of Restrictive Covenants relating to the Project, dated as of April 1, 2020, by and among the Issuer, the Trustee and the Borrower, as it may be amended, supplemented or restated from time to time.

"Rehabilitation Fund" means the Fund created and so designated pursuant to the Indenture.

"Representation Letter" has the meaning given to such term in the Indenture.

"Reserved Rights" means those certain rights of the Issuer under the Financing Documents to which the Issuer is a party to indemnification and to payment or reimbursement of fees and expenses of the Issuer, its right to receive notices and to enforce notice and reporting requirements, its right to inspect and audit the books, records and premises of the Borrower and of the Project, its right to collect attorneys' fees and related expenses, its right to specifically enforce the Borrower's covenant to comply with applicable federal tax law and State law (including the Act and the rules and regulations of the Issuer, if any), its rights under the Indenture to exercise the option to redeem Bonds or to exchange Bonds, and its right to give or withhold consent to amendments, changes, modifications and alterations to the Financing Documents relating to the Reserved Rights.

"Resolution" means the resolution of the Issuer adopted on March 17, 2020, authorizing the issuance and sale of the Bonds.

"Revenue Fund" means the Fund created and so designated in the Indenture.

"S&P" means S&P Global Ratings, and its successors and assigns, or if it is dissolved or no longer assigns credit ratings, then any other nationally recognized statistical rating agency, designated by Fannie Mae, that assigns credit ratings.

"State" means the State of North Carolina.

"Substitute Depository" means a securities depository appointed as successor to DTC under the Indenture.

"Supplemental Indenture" means any indenture hereafter duly authorized and entered into between the Issuer and the Trustee amending or supplementing the Indenture in accordance with the provisions thereof.

"Tax Certificate" means, collectively, the Non-Arbitrage Certificate of the Issuer and the Tax Certificate of the Borrower, as amended, supplemented or otherwise modified from time to time.

"Trust Estate" means all the property, rights, moneys, securities and other amounts pledged and assigned to the Trustee pursuant to the Indenture.

"Trustee" means U.S. Bank National Association, a national banking association.

"Trustee Fees and Expenses" means, collectively, the Ordinary Trustee Fees and Expenses and the Extraordinary Trustee Fees and Expenses.

"Underwriter" means Wells Fargo Bank, National Association.

APPENDIX C
SUMMARY OF CERTAIN PROVISIONS OF THE INDENTURE

The following is a summary of certain provisions of the Indenture which are not described elsewhere in the Official Statement. This summary does not purport to be comprehensive, and reference should be made to the Indenture for a full and complete statement of its provisions.

Authorization, Transfer and Registration, and Terms of Bonds

Authorization of Bonds. The Bonds of the Issuer are authorized by the Indenture to be issued in an aggregate principal amount set forth in the Indenture and shall be issued subject to the terms, conditions and limitations established in the Indenture as provided therein. The Bonds shall be issued initially as Book-Entry Bonds. The Bonds may be executed by or on behalf of the Issuer, authenticated by the Trustee and delivered or caused to be delivered by the Trustee to the original purchasers thereof upon compliance with the requirements set forth in the Indenture.

Execution of Bonds. The Bonds shall be signed by, or bear the facsimile or manual signature of, an Authorized Officer of the Issuer, and attested to by the manual or facsimile signature of another Authorized Officer of the Issuer. In case any one or more of the officers of the Issuer who shall have signed any of the Bonds or whose signature appears on any of the Bonds shall cease to be such officer before the Bonds so signed shall have been actually authenticated or delivered or caused to be delivered by the Trustee or issued by the Issuer, such Bonds may, nevertheless, be authenticated and issued and, upon such authentication, delivery and issue, shall be as binding upon the Issuer as if the persons who signed such Bonds or whose signatures appear on any of the Bonds had not ceased to hold such offices until such delivery. Any Bond may be signed on behalf of the Issuer by such persons as at the actual time of execution of the Bonds shall be duly authorized or hold the proper office in the Issuer, although at the date of issuance and delivery of the Bonds such persons may not have been so authorized or have held such office.

Bonds Mutilated, Lost, Destroyed or Stolen. If any Bond shall become mutilated, the Issuer, at the expense of the owner of such Bond shall execute, and the Trustee shall thereupon authenticate and deliver, a new Bond of like tenor in exchange and substitution for the Bond so mutilated, but only upon surrender to the Trustee of the Bond so mutilated. Every mutilated Bond so surrendered to the Trustee shall be cancelled by it and delivered to, or upon the order of, the Issuer. If any Bond shall be lost, destroyed or stolen, evidence of such loss, destruction or theft may be submitted to the Trustee and, if such evidence shall be satisfactory to it and indemnity satisfactory to the Trustee shall be given, the Issuer, at the expense of the owner of such Bond, shall execute, and the Trustee shall thereupon authenticate and deliver, a new Bond of like tenor. The Trustee may require payment of a sum not exceeding the actual cost of preparing each new Bond authenticated and delivered under this section and of the expenses which may be incurred by the Issuer and the Trustee in the premises. Any Bond authenticated and delivered under the provisions of this section in lieu of any Bond alleged to be lost, destroyed or stolen shall constitute an original additional contractual obligation on the part of the Issuer whether or not the Bond so alleged to be lost, destroyed or stolen shall be at any time enforceable by anyone, and shall be equally and proportionately entitled to the benefits of the Indenture with all other Bonds secured by the Indenture. If any such Bond shall have matured, or is about to mature, instead of issuing a new Bond the Trustee may pay the same without surrender thereof upon receipt of the aforementioned indemnity.

Registration, Transfer and Exchange of Bonds; Persons Treated as Owners.

The Issuer shall cause books for the registration, transfer and exchange of the Bonds as provided in the Indenture to be kept by the Trustee, which is constituted and appointed the bond registrar with respect to the Bonds (the "**Bond Registrar**"). At reasonable times and under reasonable regulations established by the Trustee, said books may be inspected and copied by the Issuer or by owners (or a designated representative thereof) of a majority in aggregate principal amount of the Bonds then Outstanding.

The registration of each Bond is transferable by the registered owner thereof in person or by its attorney duly authorized in writing at the designated corporate trust office of the Trustee. Upon surrender for registration of transfer of any Bond at such office, the Trustee shall authenticate and deliver in the name of the transferee or transferees a new Bond of the same maturity or maturities and Authorized Denomination for the same aggregate principal amount. Bonds to be exchanged shall be surrendered at said designated corporate trust office of the Trustee, and the Trustee

shall authenticate and deliver in exchange therefor a Bond of equal aggregate principal amount of the same maturity and Authorized Denomination.

All Bonds presented for registration of transfer, exchange or payment (if so required by the Issuer or the Trustee) shall be accompanied by a written instrument or instruments of transfer or authorization for exchange, in form and with guaranty of signature satisfactory to the Trustee, duly executed by the registered owner or by its duly authorized attorney.

The Issuer, the Bond Registrar and the Trustee shall not be required (i) to issue, register the transfer of or exchange any Bonds during a period beginning at the Trustee's opening of business on the applicable Record Date and ending at the Trustee's close of business on the applicable Payment Date; or (ii) to register the transfer of or exchange any Bond selected, called or being called for redemption as provided in the Indenture. No charge shall be made to any Bondholder for the privilege of registration of transfer as provided in the Indenture, but any Bondholder requesting any such registration of transfer shall pay any tax or governmental charge required to be paid therefor.

New Bonds delivered upon any registration of transfer or exchange shall be valid obligations of the Issuer, evidencing the same debt as the Bonds surrendered, shall be secured by the Indenture and shall be entitled to all of the security and benefits hereof to the same extent as the Bonds surrendered.

The person in whose name any Bond is registered shall be deemed the owner thereof by the Issuer and the Trustee, and any notice to the contrary shall not be binding upon the Issuer or the Trustee. Notwithstanding anything in the Indenture to the contrary, to the extent the Bonds are Book Entry Bonds, the provisions of the Indenture shall govern the exchange and registration of Bonds.

Mandatory Redemption of Bonds

The Bonds are subject to mandatory redemption prior to maturity as follows:

Mandatory Redemption Prior to MBS Delivery Date. On any Payment Date that occurs prior to or during the month in which the MBS is delivered to the Trustee, the Bonds are subject to mandatory redemption in part in an amount equal to the amount due on the first day of the month in which such Payment Date occurs as shown in the Mortgage Loan Amortization Schedule, payable with respect to principal, from money on deposit in the Bond Proceeds Fund, and with respect to interest, from money on deposit in the Revenue Fund.

Mandatory Redemption Upon Failure to Purchase the MBS. The Bonds are subject to mandatory redemption in whole five (5) calendar days after the MBS Delivery Date Deadline at a Redemption Price equal to 100% of the Outstanding principal amount thereof, plus interest accrued but unpaid from the first day of the month in which the last Payment Date occurred (or, if no Payment Date has occurred, from the Closing Date) to, but not including, such redemption date, if the MBS Delivery Date has not occurred on or prior to the MBS Delivery Date Deadline, payable with respect to principal first, from money on deposit in the Bond Proceeds Fund, and with respect to premium, if any, and interest, from money on deposit in the Revenue Fund.

Mandatory Redemption on the MBS Delivery Date. The Bonds are subject to mandatory redemption in part on the MBS Delivery Date at a Redemption Price equal to 100% of the principal amount of the Bonds to be redeemed, plus interest accrued but unpaid from the first day of the month in which the last Payment Date occurred to the MBS Delivery Date, in an amount equal to the difference between (i) the principal amount of the MBS purchased on the MBS Delivery Date and (ii) the aggregate principal amount of the Bonds Outstanding as of the first day of the month in which the MBS Delivery Date occurred, payable with respect to principal first, from money on deposit in the Bond Proceeds Fund, and with respect to interest and premium, if any, from money on deposit in the Revenue Fund and other Eligible Funds.

Mandatory Redemption Following the MBS Delivery Date. Following the MBS Delivery Date, the Bonds are subject to mandatory redemption in whole or in part in an amount equal to, and one Business Day after the date on which, each principal payment or prepayment is received pursuant to the MBS at a Redemption Price equal to 100% of the principal amount received pursuant to the MBS, plus interest and premium, if any, received pursuant to the MBS.

Mandatory Redemption in Lieu of Exchange. The Bonds are subject to mandatory redemption in whole or in part in the event the Issuer elects pursuant to the Indenture to redeem a Beneficial Owner's Bonds for an amount equal to the Cash Value in lieu of delivering to the Beneficial Owner of the Bonds its proportional interest in the MBS based upon its proportional interest in the Bonds. Any such redemption shall be made in the amounts, from the sources and in accordance with the provisions of the Indenture.

Notwithstanding anything to the contrary in the Indenture, the Bonds are not subject to optional redemption other than in connection with a prepayment of the Mortgage Loan.

Notice of Redemption

Anytime the Bonds are subject to redemption in whole or in part pursuant to the Indenture, the Trustee, in accordance with the provisions of the Indenture, shall give at least twenty (20) days' notice, in the name of the Issuer, of the redemption of the Bonds, which notice shall specify the following: (i) the maturity and principal amounts of the Bonds to be redeemed; (ii) the CUSIP number, if any, of the Bonds to be redeemed; (iii) the date of such notice; (iv) the issuance date for such Bonds; (v) the interest rate on the Bonds to be redeemed; (vi) the redemption date; (vii) any conditions to the occurrence of the redemption; (viii) the place or places where amounts due upon such redemption will be payable; (ix) the Redemption Price; (x) the Trustee's name and address with a contact person and a phone number; and (xi) that on the redemption date, the Redemption Price shall be paid. Notice delivered as required in this heading "Notice of Redemption" with respect to a redemption described under the heading "Mandatory Redemption Upon Failure to Purchase the MBS," above, may be rescinded and annulled on or before the MBS Delivery Date Deadline if (i) the MBS is delivered on or prior to the MBS Delivery Date Deadline or (ii) the MBS Delivery Date Deadline is extended pursuant to the Indenture. Neither the giving of such notice by the Trustee nor the receipt of such notice by the Bondholders shall be a condition precedent to the effectiveness of any such redemption. Notwithstanding anything herein to the contrary, no notice of redemption shall be required with respect to redemptions described under the headings "Mandatory Redemption Prior to MBS Delivery Date" and "Mandatory Redemption Following the MBS Delivery Date," above, and notice of redemption required in connection with a redemption described under the heading "Mandatory Redemption in Lieu of Exchange," above, shall be given as described in the Indenture.

The Bonds to be redeemed in part pursuant to the Indenture will be selected in accordance with the operational arrangements of DTC or any successor Substitute Depository, and any partial prepayments pursuant thereto shall be made in accordance with the "Pro Rata Pass-Through Distributions of Principal" procedures of DTC or comparable procedures of any successor Substitute Depository.

In the event that the MBS has not been purchased by, and delivered to, the Trustee ten (10) Business Days prior to the MBS Delivery Date Deadline (as such date may be extended under the Indenture), the Trustee shall provide, ten (10) Business Days prior to the MBS Delivery Date Deadline, to the Borrower, the Lender, the Issuer and the Underwriter written notice of such non-purchase.

Notwithstanding the foregoing set forth in this section, no prior notice shall be a prerequisite to the effectiveness of any redemption under the heading "Mandatory Redemption of Bonds" which redemption shall occur and be effective irrespective of whether the Trustee fulfills its obligation, if any, to provide the notice with respect to the heading "Redemption," above, required under this heading "Notice of Redemption."

Payment of Redemption Price

With respect to any redemption pursuant to the heading "Mandatory Redemption of Bonds" above, notice having been given in the manner provided in the heading "Notice of Redemption" above (or not required to be given as a result of a redemption pursuant to the heading "Mandatory Redemption of Bonds" above), and all conditions to the redemption contained in such notice, if applicable, having been met, the Bonds so called for redemption shall become due and payable on the redemption date so designated at the Redemption Price specified in the heading "Mandatory Redemption of Bonds" above, and, except in the case of a redemption as described under the heading "Mandatory Redemption of Bonds – Mandatory Redemption Following the MBS Delivery Date" above, upon presentation and surrender thereof at the offices specified in such notice, together with, in the case of Bonds presented by other than the registered owner, a written instrument of transfer duly executed by the registered owner or its duly

authorized attorney; provided, however, that so long as the Bonds are registered in the name of the Depository, payment for such redeemed Bonds shall be made in accordance with the Representation Letter of the Issuer (or in the case of a redemption pursuant to the Indenture, in accordance with the provisions of the Indenture). If, on the redemption date, moneys for the redemption of all of the Bond or the Bonds to be redeemed, together with all accrued interest on such Bonds, which shall equal all interest accrued on the MBS, if delivered, to the redemption date, shall be held by the Trustee so as to be available therefor on said date and if any required notice of redemption shall have been given as aforesaid, then, from and after the redemption date, interest on the Bonds so called for redemption shall cease to accrue.

Extension of MBS Delivery Date Deadline

At any time prior to the MBS Delivery Date Deadline, the Borrower may extend the MBS Delivery Date Deadline by (i) providing to the Trustee, the Lender, the Issuer, the Rating Agency and the Underwriter written notice of any extension of the MBS Delivery Date Deadline and (ii) depositing Eligible Funds for the credit of the Negative Arbitrage Account of the Revenue Fund in an amount, taking into account amounts already on deposit therein, sufficient to pay interest due on the Bonds to the date that is five (5) calendar days after the extended MBS Delivery Date Deadline (the "Extension Deposit"). Extension Deposits may continue to be made by or on behalf of the Borrower until the MBS Delivery Date occurs or the Borrower declines to make an Extension Deposit resulting in the mandatory redemption pursuant to the Indenture; provided, however, the MBS Delivery Date Deadline may not be extended to a date that is later than the third anniversary of the Bond Dated Date unless prior to any extension beyond such date there shall be filed with the Trustee and the Issuer an Opinion of Bond Counsel to the effect that such extension will not, in and of itself, adversely affect the exclusion of interest on the Bonds from gross income for Federal income tax purposes. The cost of such opinion shall be the sole responsibility of the Borrower.

Delivery of MBS

The obligation of the Trustee to purchase the MBS on the MBS Delivery Date shall be subject to receipt by the Trustee of written notification from the Lender upon which the Trustee may rely and act without further investigation certifying that the MBS duly executed by Fannie Mae is available for purchase by the Trustee at the MBS Purchase Price, and meets the following requirements:

(a) the principal amount of the MBS will equal from time to time the then current principal amount of the Bonds, except for principal payments received which have not been remitted to owners of the Bonds;

(b) the MBS bears interest at the Pass-Through Rate payable on the 25th day of each month, commencing on the 25th day of the month following the month in which the Trustee purchases the MBS, or if any such 25th day is not a Business Day, the next succeeding Business Day, and have a final maturity date that is the same as the Bond Maturity Date; and

(c) the MBS provides that timely payment of principal (whether on any scheduled Payment Date or prior thereto upon any mandatory prepayment of the Mortgage Note or upon any optional prepayment of the Mortgage Note or upon declaration of acceleration following a default thereunder and interest on the MBS) is guaranteed to the record owner of the MBS, regardless of whether corresponding payments of principal and interest on the Mortgage Loan are paid when due; and

(d) the MBS shall be acquired by the Trustee on behalf of the Issuer, shall be held at all times by the Trustee in trust for the benefit of the Bondholders and shall be held only in book-entry form through the United States Federal Reserve Bank book-entry system, pursuant to which the MBS shall have been registered on the records of the Federal Reserve Bank in the name of the Trustee.

The MBS shall be registered in the name of the Trustee or its designee. The Trustee shall receive confirmation in writing that the Depository is holding the MBS on behalf of, and has identified the MBS on its records as belonging to, the Trustee. Upon purchase of the MBS on the MBS Delivery Date, the Trustee shall post a

notification to this effect on the Electronic Municipal Market Access website of the Municipal Securities Rulemaking Board.

Pledge of Trust Estate

The pledge and assignment of and the security interest granted in the Trust Estate pursuant to the granting clauses of the Indenture for the payment of the principal of, premium, if any, and interest on the Bonds, in accordance with their terms and provisions, and for the payment of all other amounts due under the Indenture, shall attach, be perfected and be valid and binding from and after the time of the delivery of the Bonds by the Trustee or by any person authorized by the Trustee to deliver the Bonds. The Trust Estate so pledged and then or thereafter received by the Trustee shall immediately be subject to the lien of such pledge and security interest without any physical delivery thereof or further act, and the lien of such pledge and security interest shall be valid and binding and prior to the claims of any and all parties having claims of any kind in tort, contract or otherwise against the Issuer irrespective of whether such parties have notice thereof.

Establishment of Funds

The Trustee shall establish, maintain and hold in trust the following funds, each of which shall be maintained by the Trustee as a separate and distinct fund or account, and each of which shall be disbursed and applied only as authorized in the Indenture:

(a) Revenue Fund, including therein a Negative Arbitrage Account;

(b) Bond Proceeds Fund;

(c) Rehabilitation Fund; and

(d) Rebate Fund.

Application of Funds on MBS Delivery Date

On the MBS Delivery Date, upon the receipt of written notice from the Lender, which notice shall also set forth the amount of funds to be withdrawn from the following Funds and Accounts to complete the purchase, the Trustee shall remit to the Lender, from amounts on deposit in the Bond Proceeds Fund, as payment for the MBS, an amount equal to the aggregate principal amount of the MBS,, plus, from the Revenue Fund (and, to the extent amounts in the Revenue Fund, other than amounts in the Negative Arbitrage Account therein, are insufficient for such purposes, from the Negative Arbitrage Account therein), accrued and unpaid interest on the MBS at the Pass-Through Rate from the first of the month in which the MBS was delivered to, but not including, the MBS Delivery Date.

Revenue Fund

(a) On any Payment Date that occurs prior to or during the month in which the MBS is delivered to the Trustee, the Trustee shall disburse from the Revenue Fund (and, to the extent amounts in the Revenue Fund, other than amounts in the Negative Arbitrage Account therein, are insufficient for such purposes, from the Negative Arbitrage Account therein), an amount equal to the amount of interest due on the Bonds pursuant to the Mortgage Loan Amortization Schedule.

(b) There shall be deposited into the Negative Arbitrage Account of the Revenue Fund, as and when received, (i) the Negative Arbitrage Deposit and (ii) any Extension Deposit.

(c) There shall be deposited into the Revenue Fund, as and when received, (i) all moneys received by the Trustee representing principal payments or repayments, and premium, if any, under the MBS, together with all other amounts required pursuant to this Indenture to be deposited therein, (ii) accrued interest on the Bonds from the Bond Dated Date to the Closing Date, (iii) any other amounts specified in the Indenture, and (iv) all moneys received

by the Trustee representing interest payments under the MBS, to be held therein pending distribution in accordance with the terms of the Indenture.

(d) On the MBS Delivery Date, the Trustee shall remit from the Revenue Fund (and, to the extent amounts in the Revenue Fund, other than amounts in the Negative Arbitrage Account therein, are insufficient for such purposes, from the Negative Arbitrage Account therein) to the Lender accrued and unpaid interest on the MBS at the Pass-Through Rate from and including the first calendar day of the month in which the MBS was delivered to, but not including, the MBS Delivery Date.

(e) On the first Business Day following the Payment Date in the first full month following the MBS Delivery Date, the Trustee shall transfer to the Rehabilitation Fund any amounts then on deposit in the Negative Arbitrage Account of the Revenue Fund and shall immediately close such subaccount.

(f) On the first Business Day following receipt of any MBS Revenues and the deposit thereof into the Revenue Fund pursuant to subsection (c) above, the Trustee shall pay to the Bond owners all amounts so received from money on deposit in the Revenue Fund. All payments of principal and interest shall be paid to Bond owners in proportion to the principal amount of Bonds owned by each Bond owner as set forth on the records of the Trustee at the close of business on the applicable Record Date.

(g) If the Trustee does not receive a scheduled payment on the MBS by 5:00 p.m. Eastern Time on the 25th day of any month (or the next succeeding Business Day if such day of the month is not a Business Day), the Trustee shall immediately notify Fannie Mae and immediately demand payment under the terms of the guaranty thereof.

Bond Proceeds Fund

Amounts deposited into the Bond Proceeds Fund shall be used by the Trustee (i) on any Payment Date that occurs prior to or during the month in which the MBS is delivered to the Trustee, to fund the Bond redemptions in accordance with the Indenture, and (ii) to pay the principal portion of the MBS Purchase Price on the MBS Delivery Date in accordance with the Indenture. All investment earnings from amounts on deposit in the Bond Proceeds Fund shall be transferred to the Revenue Fund.

Rehabilitation Fund

The Trustee shall establish, create and maintain a Rehabilitation Fund under the Indenture and moneys shall be held in the Rehabilitation Fund for reasons of convenience and tax accounting only. On the Closing Date, the Lender will deliver funds to the Trustee for deposit into the Rehabilitation Fund. The Rehabilitation Fund shall not be a part of the Trust Estate. Amounts on deposit in the Rehabilitation Fund shall be disbursed by the Trustee to fund the Project Costs pursuant to requisitions executed by the Borrower and approved by the Lender in the form attached to the Indenture as an exhibit. The moneys in the Rehabilitation Fund shall, pending disbursement to the Borrower at the written direction of the Lender, pursuant to the terms of the Multifamily Loan and Security Agreement, be pledged by the Borrower to the Lender until the MBS Delivery Date, and thereafter to Fannie Mae. The Trustee shall hold such funds as custodian for Lender as the pledgee and not for the Bondholders.

Investment of Funds

The moneys held by the Trustee shall constitute trust funds for the purposes of the Indenture. Any moneys attributable to each of the Funds and Accounts under the Indenture shall be invested, by the Trustee, at the written direction or telephonic direction (promptly confirmed in writing) of the Borrower, in Eligible Investments which mature or are redeemable at par, without penalty, on or before the date on which such funds are expected to be needed for the purposes for which they are held. Notwithstanding anything in the Indenture to the contrary except as otherwise set forth in this sentence, (i) prior to the MBS Delivery Date, all amounts in the Bond Proceeds Fund and the Revenue Fund shall be invested solely in Eligible Investments, and (ii) following the MBS Delivery Date, payments received with respect to the MBS shall be uninvested. All investment earnings from amounts on deposit in the Bond Proceeds Fund and the Revenue Fund shall be credited to the Revenue Fund. If the Trustee does not receive written direction

or telephonic direction (promptly confirmed in writing) from the Borrower regarding the investment of funds, the Trustee shall invest solely in Eligible Investments described in clause (b) of the definition of Eligible Investments, which shall mature or be redeemable at par without penalty at the times set forth in the preceding sentence. The Trustee may make any and all such investments through its own banking department or the banking department of any affiliate.

Eligible Investments representing an investment of moneys attributable to any Fund shall be deemed at all times to be a part of such Fund. Such investments shall be sold at the best price obtainable (at least par) whenever it shall be necessary to do so in order to provide moneys to make any transfer, withdrawal, payment or disbursement from such Fund. In the case of any required transfer of moneys to another such Fund, such investments may be transferred to that Fund in lieu of the required moneys if permitted by the Indenture as an investment of moneys in that Fund.

All Eligible Investments acquired by the Trustee pursuant to the Indenture shall be purchased in the name of the Trustee and shall be held for the benefit of the Bondholders pursuant to the terms of the Indenture. The Trustee shall take such actions as shall be necessary to assure that such Eligible Investments are held pursuant to the terms of the Indenture and are subject to the trust and security interest created in the Indenture.

The Trustee shall not be liable or responsible for any loss resulting from any investment made in accordance with the Indenture. The Trustee or its affiliates may act as sponsor, principal or agent in the acquisition or disposition of investments. The Trustee may commingle investments made under the Funds and Accounts established under the Indenture, but shall account for each separately.

In computing for any purpose under the Indenture the amount in any Fund on any date, obligations so purchased shall be valued at the lower of cost or par exclusive of accrued interest, and may be so valued as of any time within four days prior to such date.

The Issuer acknowledges that regulations of the Comptroller of the Currency grant the Borrower the right to receive brokerage confirmations of the security transactions as they occur. The Borrower specifically waives such notification to the extent permitted by law and will receive periodic cash transaction statements that will detail all investment transactions.

Particular Covenants

Payment of Bonds. Subject to the other provisions of the Indenture, the Issuer shall duly and punctually pay or cause to be paid, solely from amounts available in the Trust Estate, the principal of, premium, if any, and interest on the Bonds, at the dates and places and in the manner described in the Bonds, according to the true intent and meaning thereof. The Bonds are not a general obligation of the Issuer, but are payable solely from the Trust Estate.

The payment and other obligations of the Issuer with respect to the Bonds are intended to be, and shall be, independent of the payment and other obligations of the issuer or maker of the Mortgage Note and the MBS, even though the principal amount of both instruments is expected to be identical, except in the case of a default with respect to one or more of the instruments.

Tax Covenants. The Issuer shall not take any action that will cause the interest paid on the Bonds to be includable in gross income for federal income tax purposes or to be subject to personal income taxation by the State. In furtherance of the foregoing covenant, the Issuer particularly covenants and agrees with the Bondholders as follows:

(a) No part of the proceeds of the Bonds or any other funds of the Issuer shall be used by the Issuer at any time directly or indirectly to acquire securities or obligations, the acquisition of which, or which in any other manner, would cause any Bond to be an arbitrage bond as defined in Section 148 of the Code and any applicable regulations promulgated thereunder.

(b) The Issuer will not knowingly take any action or permit or suffer any action to be taken if the result of the same would be to cause the Bonds to be "federally guaranteed" within the meaning of Section 149(b) of the Code and any applicable regulations promulgated thereunder.

(c) To comply with any provisions of the Tax Certificate applicable to it.

In the event of a conflict between the provisions under the above heading "Tax Covenants" and the Tax Certificate, the provisions of the Tax Certificate shall control.

Extension of Payment of Bonds. The Issuer shall not directly or indirectly extend or assent to the extension of the maturity of the principal due on any of the Bonds or the time of payment of interest due on the Bonds, and if the time for payment of any such claims for interest shall be extended through any other means, such Bonds or claims for interest shall not be entitled in case of any default hereunder to any payment out of the Trust Estate or the funds (except funds held in trust for the payment of particular Bonds pursuant to the Indenture) held by the Trustee, except subject to the provisions of the Indenture and subject to the prior payment of the principal of all Bonds issued and Outstanding the maturity of which has occurred and has not been extended and of such portion of the accrued interest on the Bonds which is not represented by such extended claims for interest.

If an Extension Deposit has not been made pursuant to the Indenture, such that the aggregate balance in the Bond Proceeds Fund and the Revenue Fund is equal to 100% of the principal amount of the Bonds plus interest accrued on the Bonds to the date which is five (5) calendar days following the MBS Delivery Date Deadline (as such date may be extended under the Indenture), then the Bonds shall be subject to mandatory redemption as set forth in the Indenture.

Discharge of Indenture

Defeasance. (a) If all Bonds shall be paid and discharged as provided in this section, then all obligations of the Trustee and the Issuer under the Indenture with respect to all Bonds shall cease and terminate, except only (i) the obligation of the Trustee to pay or cause to be paid to the owners thereof all sums due with respect to the Bonds and to register, transfer, (ii) the obligation of the Issuer to pay the amounts owing to the Trustee under the Indenture from the Trust Estate, and (iii) the obligation of the Issuer to comply with the Indenture. Any funds held by the Trustee at the time of such termination which are not required for payment to Bondholders or for payment to be made by the Issuer, shall be paid as provided in the Indenture.

Any Bond or portion thereof in an Authorized Denomination shall be deemed no longer Outstanding under the Indenture if paid or discharged in any one or more of the following ways:

(i) by well and truly paying or causing to be paid the principal of, premium, if any, and interest on such Bond which have become due and payable; or

(ii) by depositing with the Trustee, in trust, cash which, together with the amounts then on deposit in the Revenue Fund and dedicated to this purpose, is fully sufficient to pay when due all principal of, and premium, if any, and interest on such Bond to the maturity or earlier redemption date thereof; or

(iii) by depositing with the Trustee, in trust, any investments listed under the definition of Eligible Investments in such amount as in the written opinion of a certified public accountant or nationally recognized verification agent will, together with the interest to accrue on such Eligible Investments without the need for reinvestment, be fully sufficient to pay when due all principal of, and premium, if any, and interest on such Bond to the maturity or earlier redemption date thereof, notwithstanding that such Bond shall not have been surrendered for payment.

(b) Notwithstanding the foregoing, no deposit under clauses (ii) and (iii) of subsection (a) above shall be deemed a payment of such Bond until the earlier to occur of:

(i) if such Bond is by its terms subject to redemption within 45 days, proper notice of redemption of such Bond shall have been previously given in accordance with the Indenture to the holder

thereof or, in the event such Bond is not by its terms subject to redemption within 45 days of making the deposit under clauses (ii) and (iii) of subsection (a) above, the Issuer shall have given the Trustee irrevocable written instructions to mail by first-class mail, postage prepaid, notice to the holder of such Bond as soon as practicable stating that the deposit required by clauses (ii) or (iii) of subsection (a) above, as applicable, has been made with the Trustee and that such Bond is deemed to have been paid and further stating such redemption date or dates upon which money will be available for the payment of the principal and accrued interest thereon; or

(ii) the maturity of such Bond.

(c) The Trustee shall be entitled to receive a report from a nationally recognized accounting firm or other nationally recognized verification agent to provide for the payment of all Bonds to be defeased pursuant to this section.

(d) In addition to the circumstances described in paragraph (a) above, any Bond or portion thereof in an Authorized Denomination shall be deemed no longer Outstanding under the Indenture if and to the extent of an exchange of such Bond or portion thereof for the MBS or an interest therein as provided in the Indenture.

Defaults and Remedies

Events of Default. Each of the following shall constitute an Event of Default under the Indenture:

(a) On and after the MBS Delivery Date, failure by Fannie Mae to pay principal, interest or premium, if any, due under the MBS (upon such failure, the Trustee shall notify Fannie Mae not later than the next Business Day (all such notices to be promptly confirmed in writing) and require the failure to be remedied);

(b) Failure to pay the principal, interest or premium, if any, on the Bonds when the same shall become due; or

(c) Default in the observance or performance of any other covenant, agreement or condition on the part of the Issuer in the Indenture and the continuation of such default for a period of 90 days after written notice to the Issuer from the Trustee or the registered owners of at least 75% in aggregate principal amount of the Bonds Outstanding at such time specifying such default and requiring the same to be remedied.

The Trustee will immediately notify in writing the Issuer, the Bondholders, the Lender, the Investor Limited Partner and Fannie Mae after an Authorized Officer of the Trustee obtains knowledge or receives notice of the occurrence of an Event of Default or an event which would become an Event of Default with the passage of time or the giving of notice, or both.

Acceleration; Rescission of Acceleration

(a) Upon (i) the occurrence of an Event of Default under item (a) under the heading "Defaults and Remedies – Events of Default," above, or (ii) prior to the MBS Delivery Date, the occurrence of an Event of Default under item (b) under the heading "Defaults and Remedies – Events of Default," above, the Trustee may, and upon the written request of the holders of not less than seventy-five percent (75%) in aggregate principal amount of the Bonds Outstanding, shall declare (and shall deliver written notice of such declaration to the Issuer, the Lender, the Borrower and Fannie Mae) the principal of all Bonds Outstanding, premium, if any, and the interest accrued thereon immediately due and payable.

(b) An Event of Default (i) following the MBS Delivery Date, under item (b) under the heading "Defaults and Remedies – Events of Default," above, or (ii) under item (c) under the heading "Defaults and Remedies – Events of Default," above, shall not give rise to an acceleration pursuant to this heading "Acceleration; Rescission of Acceleration," provided, however, that following such an Event of Default, the holder of one hundred percent (100%) of the Bonds Outstanding may direct the Trustee in writing to transfer the MBS to it or its designee, in which

case, the Trustee shall transfer and deliver to such requesting Beneficial Owner the Trustee's beneficial ownership interest in the MBS. The transfer described in this paragraph shall take effect as set forth in, and shall be governed by, the following terms:

(i) The Trustee shall transfer and deliver to such requesting owner the Trustee's beneficial ownership interest in the MBS promptly following (i) delivery to the Trustee (via DTC withdrawal or of the Bonds being exchanged, and (ii) payment by the requesting owner of the Trustee's exchange fee ($1,000 as of the date of the Indenture) with respect to such Bonds;

(ii) The MBS will be in book-entry form;

(iii) Transfers of the MBS will be made in accordance with current market practices, including the applicable provisions of the SIFMA's Uniform Practices for the Clearance Settlement of Mortgage Backed Securities and Other Related Securities;

(iv) Upon receipt of such Bonds from the requesting Beneficial Owner, the Trustee will promptly cancel the Bonds being exchanged, which will not be reissued;

(v) An MBS delivered in such an exchange will not be exchangeable for Bonds;

(vi) The MBS delivered in such an exchange will also be subject to any applicable disclosure requirements concerning MBSs that have been issued in connection with the multifamily mortgage lending program of a governmental housing finance agency and financed by tax-exempt obligations; and

(vii) Interest on such MBS is not excludable from gross income for federal income tax purposes. Owners of Bonds should consult their own tax advisors concerning that and other tax consequences of any exchange of a Bond for the MBS.

(c) The acceleration of the Bonds will not constitute a default under, or by itself cause the acceleration of, the MBS. If at any time after the Bonds shall have been so declared due and payable, and before any judgment or decree for the payment of the money due shall have been obtained or entered, the Issuer, the Borrower, the Investor Limited Partner or Fannie Mae, as applicable, shall pay to or deposit with the Trustee a sum sufficient to pay all principal of the Bonds then due (other than solely by reason of such declaration) and all unpaid installments of interest (if any) on all the Bonds then due with interest at the rate borne by the Bonds on such overdue principal and (to the extent legally enforceable) on such overdue installments of interest, and the reasonable expenses of the Trustee shall have been made good or cured or adequate provisions shall have been made therefor, and all other defaults hereunder have been made good or cured or waived in writing by the holders of a majority in principal amount of the Bonds Outstanding, then and in every case, the Trustee on behalf of the holders of all the Bonds shall rescind and annul such declaration and its consequences; but no such rescission and annulment shall extend to or shall affect any subsequent Event of Default, nor shall it impair or exhaust any right or power consequent thereon.

Other Remedies; Rights of Bondholders.

Subject to the Indenture, upon the happening and continuance of an Event of Default, the Trustee in its own name and as trustee of an express trust, on behalf and for the benefit and protection of the holders of all Bonds, may also proceed to protect and enforce any rights of the Trustee and, to the full extent that the holders of such Bonds themselves might do, the rights of such Bondholders under the laws of the State or under the Indenture by such of the following remedies as the Trustee shall deem most effectual to protect and enforce such rights:

(a) By pursuing any available remedies under the Financing Agreement, the Regulatory Agreement or the MBS; and

(b) Upon an Event of Default under paragraph (a) under the heading "Events of Default" above only, by realizing or causing to be realized through sale or otherwise upon the security pledged hereunder (including the sale or disposition of the Trustee's interest in the MBS); and

(c) By action or suit in equity, to enjoin any acts or things which may be unlawful or in violation of the rights of the Bondholders and to execute any other papers and documents and do and perform any and all such acts and things as may be necessary or advisable in the opinion of the Trustee in order to have the respective claims of the Bondholders against the Issuer allowed in any bankruptcy or other proceeding.

If an Event of Default shall have occurred, and if requested by the holders of not less than 75% (or 100% as set forth in the Indenture) in aggregate principal amount of the Bonds then Outstanding, and upon being indemnified to its satisfaction, the Trustee shall be obligated to exercise one or more of the rights and powers conferred by the Indenture as the Trustee, being advised by counsel, shall deem to be in the best interests of the Bondholders subject to the limitations set forth above and in the Indenture.

No right or remedy by the terms of the Indenture conferred upon or reserved to the Trustee (or to the Bondholders) is intended to be exclusive of any other right or remedy, but each and every such right and remedy shall be cumulative and shall be in addition to any other right or remedy given to the Trustee or to the Bondholders under the Indenture, the Financing Agreement, the Regulatory Agreement or the MBS or now or hereafter existing at law or in equity.

No delay or omission to exercise any right or power accruing upon any default or Event of Default shall impair any such right or power or shall be construed to be a waiver of any such default or Event of Default or acquiescence therein and every such right and power may be exercised from time to time as often as may be deemed expedient.

No waiver of any default or Event of Default under the Indenture, whether by the Trustee or by the Bondholders, shall extend to or shall affect any subsequent default or Event of Default or shall impair any rights or remedies consequent thereon.

Waivers of Events of Default.

The Trustee shall waive any Event of Default hereunder and its consequences and rescind any declaration of maturity of principal of, premium, if any, and interest on the Bonds upon the written request of the holders of a majority in aggregate principal amount of all Bonds then Outstanding with respect to which there is an Event of Default; provided, however, that there shall not be waived (a) any default in the payment of the principal amount of any Bonds at the date of maturity specified therein or upon proceedings for mandatory redemption, or (b) any default in the payment when due of the interest or premium, if any, on any such Bonds, unless prior to such waiver or rescission all arrears of interest, with interest (to the extent permitted by law) at the rate borne by the Bonds in respect of which such Event of Default shall have occurred on overdue installments of interest or all arrears of payments of principal or premium, if any, when due (whether at the stated maturity thereof or upon proceedings for mandatory redemption) as the case may be, and all expenses of the Trustee in connection with such monetary default, shall have been paid or provided for, and in case of any such waiver or rescission, the Issuer, the Borrower, the Trustee and the Bondholders shall be restored to their former positions and rights under the Indenture respectively.

No such waiver or rescission shall extend to any subsequent or other default, or impair any right consequent thereto; and no delay or omission of the Trustee or of any Bondholders to exercise any right or power accruing upon any Event of Default shall impair any right or power or shall be construed to be a waiver of any such Event of Default, or acquiescence therein.

Termination of Proceedings

In case any proceeding taken by the Trustee on account of any Event of Default shall have been discontinued or abandoned for any reason or determined adversely to the Trustee, then in every such case the Issuer, the Borrower, the Trustee and the Bondholders shall be restored to their former positions and rights under the Indenture, respectively, and all rights, remedies, powers and duties of the Trustee shall continue as though no such proceeding had been taken.

Supplemental Indentures

Supplemental Indentures Effective upon Acceptance. For any one or more of the following purposes and at any time or from time to time, the Issuer and the Trustee may enter into a Supplemental Indenture which, upon the execution and delivery thereof by the Issuer and by the Trustee, and with the prior written consent of Fannie Mae, but without the necessity of consent of the Bondholders, shall be fully effective in accordance with its terms:

(a) To add to the covenants or agreements of the Issuer contained in the Indenture other covenants or agreements to be observed by the Issuer or to otherwise revise or amend the Indenture in a manner which are/is not materially adverse to the interests of the Bondholders;

(b) To add to the limitations or restrictions contained in the Indenture other limitations or restrictions to be observed by the Issuer which are not contrary to or inconsistent with the provisions of the Indenture as theretofore in effect;

(c) To surrender any right, power or privilege reserved to or conferred upon the Issuer in the Indenture, provided that the surrender of such right, power or privilege is not contrary to or inconsistent with the covenants and agreements of the Issuer contained in the Indenture and is not materially adverse to the interests of the Bondholders;

(d) To confirm, as further assurance, any pledge of the Trust Estate under the Indenture and the subjection to any lien on or pledge of the Trust Estate created or to be created by the Indenture;

(e) To appoint a co-trustee or successor Trustee or successor co-trustee;

(f) To cure any ambiguity, supply any omission or cure or correct any defect or inconsistent provision in the Indenture;

(g) To insert such provisions clarifying matters or questions arising under the Indenture as are necessary or desirable and are not materially adverse to the interests of the Bondholders; and

(h) To make such changes and modifications that are necessary or desirable to provide for all interest, principal and premium paid with respect to the Bonds are in the exact respective amounts of the payments of interest, principal and premium paid under and pursuant to the MBS.

Supplemental Indentures Requiring Consent of Bondholders. In addition to those amendments to the Indenture which are authorized under the heading "Supplemental Indentures Effective Upon Acceptance" above, any modification or amendment of the Indenture may be made by a Supplemental Indenture with the written consent, given as hereinafter provided under the heading "Consent of Bondholders" below, of Fannie Mae and the holders of at least two thirds in aggregate principal amount of the Bonds Outstanding at the time such consent is given; provided, however, that no such modification or amendment shall (a) permit a change in the terms of redemption or maturity of the principal amount of any Outstanding Bond or an extension of the date for payment of any installment of interest thereon or a reduction in the principal amount of, premium, if any, or the rate of interest on any Outstanding Bond without the consent of the holder of such Bond, (b) reduce the proportion of Bonds the consent of the holders of which is required to effect any such modification or amendment or to effectuate an acceleration of the Bonds prior to maturity, (c) permit the creation of a lien on the Trust Estate pledged under the Indenture prior to or on a parity with the lien of the Indenture, (d) deprive the holders of the Bonds of the lien created by the Indenture upon the Trust Estate (except as expressly provided in the Indenture), without (with respect to (b) through (d)) the consent of the holders of all Bonds then Outstanding, or (e) change or modify any of the rights or obligations of the Trustee without the written consent thereto of the Trustee.

Consent of Bondholders. The Issuer and the Trustee may, at any time, execute and deliver a Supplemental Indenture making a modification or amendment permitted by the provisions under the heading "Supplemental Indentures Requiring Consent of Bondholders" above, to take effect when and as provided in this section. A copy of such Supplemental Indenture (or brief summary thereof or reference thereto in a form approved by the Trustee),

together with a request to Bondholders for their consent thereto in form satisfactory to the Trustee, shall be mailed by the Trustee to the Bondholders. Such Supplemental Indenture shall not be effective unless there shall have been filed with the Trustee (a) the written consents of Fannie Mae and the holders of the proportion of Outstanding Bonds specified under the heading "Supplemental Indentures Requiring Consent of Bondholders" above, and (b) an Opinion of Bond Counsel stating that such Supplemental Indenture has been duly and lawfully entered into by the Issuer in accordance with the provisions of the Indenture, is authorized or permitted by the provisions of the Indenture, and, when effective, will be valid and binding upon the Issuer. Each such consent of the Bondholders shall be effective only if accompanied by proof of the holding, at the date of such consent, of the Bonds with respect to which such consent is given, which proof shall be such as is permitted by the Indenture. A certificate or certificates by the Trustee that it has examined such proof and that such proof is sufficient under the provisions of the Indenture shall be conclusive that the consents have been given by the holders of the Bonds described in such certificate or certificates. Any such consent shall be binding upon the holder of the Bonds giving such consent and upon any subsequent holder of such Bonds and of any Bonds issued in exchange therefor (whether or not such subsequent holder thereof has notice thereof). At any time after the holders of the required proportion of Bonds shall have filed their consents to such Supplemental Indenture, the Trustee shall make and file with the Issuer a written statement that the holders of such required proportion of Bonds have filed and given such consents. Such written statement shall be conclusive that such consents have been so filed and have been given. Within 90 days after filing such statement, the Trustee shall mail to the Bondholders a notice stating in substance that such Supplemental Indenture (which may be referred to as a Supplemental Indenture executed by the Issuer on a stated date, a copy of which is on file with the Trustee) has been consented to by the holders of the required proportion of Bonds and will be effective as provided in this section, but failure to mail such notice shall not prevent such Supplemental Indenture from becoming effective and binding as provided in this section. The Trustee shall file with the Issuer proof of the mailing of such notice to the Bondholders. A record, consisting of the papers required or permitted by this section to be filed with the Trustee, shall be proof of the matters therein stated. Such Supplemental Indenture making such modification or amendment shall be deemed conclusively binding upon the Issuer, the Trustee and the holders of all Bonds upon the execution thereof and the filing by the Trustee with the Issuer of the statement that the required proportion of Bondholders have consented thereto.

The Issuer may conclusively rely upon the Trustee's determination that the requirements of this section have been satisfied.

Modification by Unanimous Consent. Notwithstanding anything contained in the foregoing provisions of the Indenture, the terms and provisions of the Indenture and the rights and obligations of the Issuer and the Bondholders under the Indenture, in any particular, may be modified or amended in any respect upon execution and delivery of a Supplemental Indenture by the Issuer and the Trustee making such modification or amendment and the consent to such Supplemental Indenture of Fannie Mae and the holders of all of the Bonds then Outstanding, such consent to be given and proved as provided under the heading "Consent of Bondholders" above except that no notice to Bondholders shall be required; provided, however, that no such modification or amendment shall change or modify any of the rights or obligations of the Trustee without the written assent thereto of the Trustee, in addition to the consent of the Bondholders.

Concerning the Trustee

Trustee. U.S. Bank National Association is appointed by the Indenture as Trustee. The Trustee shall signify its acceptance of the duties and obligations imposed upon it by the Indenture by executing the Indenture.

Responsibility of the Trustee. The recitals of fact in the Indenture and in the Bonds contained shall be taken as the statements of the Issuer and the Trustee assumes no responsibility for the correctness of the same. The Trustee shall not be deemed to make any representations as to the validity or sufficiency of the Indenture or of any Bonds issued under the Indenture or in respect of the security afforded by the Indenture and the Trustee shall incur no responsibility in respect thereof. The Trustee shall, however, be responsible for its representations contained in its certificate on the Bonds. The Trustee shall not be under any responsibility or duty with respect to the issuance of the Bonds for value or the application of any moneys paid to the Issuer. The Trustee shall be under no obligation or duty to perform any act which would require it to expend or risk its own funds or otherwise incur any financial liability in the performance of its duties under the Indenture, or in the exercise of any of its rights or powers, if it shall have reasonable grounds for believing that repayment of such funds or adequate indemnity against such risk or liability is

not reasonably assured to it. The Trustee shall not be liable in connection with the performance of its duties under the Indenture except for its own negligence or willful misconduct.

Fees, Charges and Expenses of Trustee. Notwithstanding any provision to the contrary in the Indenture, but subject to the limitations set forth in the definition of Extraordinary Trustee Fees and Expenses as defined in the Indenture, the Trustee shall be entitled to payment for reasonable fees for its services rendered under the Indenture and the Financing Agreement and reimbursement for all advances, counsel fees and other expenses reasonably made or incurred by the Trustee (including any co-Trustee) in connection with such services which shall be paid from time to time as provided in the Financing Agreement; provided that no such amounts shall be paid to the Trustee from the proceeds of the MBS. Upon an Event of Default under paragraph (a) under the heading "Events of Default" above as a result of a failure by Fannie Mae to make payment under the MBS, but only upon such an Event of Default, the Trustee shall have a lien upon the Trust Estate for Extraordinary Trustee Fees and Expenses. The Issuer shall require the Borrower to indemnify and save harmless the Trustee against any liabilities which the Trustee may incur in the exercise and performance of its powers and duties under the Indenture, the Financing Agreement and the Regulatory Agreement which are not due to its own negligence or willful misconduct, and to reimburse the Trustee for any fees and expenses of the Trustee to the extent they exceed funds available under the Indenture for the payment thereof, subject only to the right of the Borrower to contest the reasonableness of any such fees or the necessity for any such expenses. The Trustee shall continue to perform its duties and obligations under the Indenture until such time as its resignation or removal is effective pursuant to the Indenture.

Merger or Consolidation of Trustee. Any corporation or association into which the Trustee may be converted or merged, or with which it may be consolidated, or to which it may sell or transfer its trust business and assets as a whole or substantially as a whole, or any corporation or association resulting from any such conversion, sale, merger, consolidation or transfer to which it is a party, ipso facto shall be and become successor Trustee under the Indenture and vested with all of the title to the Trust Estate and all the trusts, powers, discretions, immunities, privileges and all other matters as was its predecessor, without the execution or filing of any instrument or any further act, deed or conveyance on the part of any of the parties to the Indenture, anything in the Indenture to the contrary notwithstanding.

Resignation by Trustee. The Trustee and any successor Trustee may at any time resign from the trusts created by the Indenture by giving 30 days' written notice to the Issuer and Fannie Mae, and such resignation shall only take effect upon the appointment, pursuant to the Indenture, of, and acceptance by, a successor Trustee. The successor Trustee shall give notice of such succession by first class mail, postage prepaid, to each Bondholder at the address of such Bondholder shown on the Bond Register.

Removal of Trustee. The Trustee may be removed at any time by an instrument or concurrent instruments in writing delivered to the Trustee and to Fannie Mae, and signed by the Issuer (or if an Event of Default shall have occurred and be continuing, by the owners of a majority in aggregate principal amount of the Bonds then Outstanding, in which event such instrument or instruments in writing shall also be delivered to the Issuer) provided that such removal shall not take effect until the appointment of a successor Trustee by the Issuer (or by the Bondholders).

Appointment of Successor Trustee.

In case at any time the Trustee or any successor thereto shall resign or shall be removed or shall become incapable of acting, or shall be adjudged a bankrupt or insolvent, or if a receiver, liquidator or conservator of such Trustee or of its property shall be appointed, or if any public officer shall take charge or control of such Trustee or of its property or affairs, a successor may be appointed by the Issuer with the approval of Fannie Mae (if it is not in default in its obligations under the MBS), or if Fannie Mae does not approve a successor the Issuer proposes to appoint, or if the Issuer is in default under the Indenture, by the holders of a majority in aggregate principal amount of the Bonds then Outstanding, excluding any Bonds held by or for the account of the Issuer, by an instrument or concurrent instruments in writing signed by such Bondholders, or their attorneys duly authorized in writing, and delivered to such successor Trustee, notification thereof being given to the Issuer, Fannie Mae, the Borrower, the Investor Limited Partner and the predecessor Trustee. If in a proper case no appointment of a successor Trustee shall have been made pursuant to the foregoing provisions of this section within 30 days after the Trustee shall have given to the Issuer written notice as provided in the Indenture or after the occurrence of any other event requiring or authorizing such appointment, the Trustee or any Bondholder may apply to any court of competent jurisdiction to appoint a successor.

The court may thereupon, after such notice, if any, as such court may deem proper and prescribe, appoint a successor Trustee.

Any Trustee appointed under the provisions of this section shall be a bank, trust company or national banking association, having a designated office within the State, having trust powers, with prior experience as trustee under indentures under which multifamily housing revenue bonds of public agencies or authorities are issued, and having a capital and surplus acceptable to the Issuer, the Lender and Fannie Mae, willing and able to accept the office on reasonable and customary terms in light of the circumstances under which the appointment is tendered and authorized by law to perform all the duties imposed upon it by the Indenture, if there be such an institution meeting such qualifications willing to accept such appointment.

Transfer of Rights and Property to Successor Trustee.

Any successor Trustee appointed under the Indenture shall execute, acknowledge and deliver to its predecessor Trustee, and also to the Issuer and Fannie Mae, and any Bondholder which shall request the same, an instrument accepting such appointment, and thereupon such successor Trustee, without any further act, deed or conveyance, shall become fully vested with all moneys, estates, properties, rights, powers, duties and obligations of such predecessor Trustee, with like effect as if named in the Indenture as such Trustee, but the Trustee ceasing to act shall nevertheless, on the written request of the Issuer, Fannie Mae or the successor Trustee, execute, acknowledge and deliver such instruments of conveyance and further assurance and do such other things as reasonably may be required for more fully and certainly vesting and confirming in such successor Trustee all the right, title and interest of the predecessor Trustee in and to any properties held by it under the Indenture, and shall pay over, assign and deliver to the successor Trustee any money or other property subject to the trusts and conditions set forth in the Indenture. Should any deed, conveyance or instrument in writing from the Issuer be required by such successor Trustee for more fully and certainly vesting in and confirming to such successor Trustee any such moneys, estates, properties, rights, powers and duties, any and all such deeds, conveyances and instruments in writing, on request, and so far as may be authorized by law, shall be executed, acknowledged and delivered by the Issuer.

Collection of MBS Payments

The Trustee shall cause the MBS to be registered in the name of the Trustee or in the name of the nominee of the Trustee with such additional recitals as appropriate to indicate that the MBS is to be held by the Trustee in its capacity as Trustee under the Indenture subject to the provisions of the Indenture. In the event that any amount payable to the Trustee under the MBS is not received by the Trustee within one Business Day of the date such payment is due, the Trustee shall notify Fannie Mae or (if directed by Fannie Mae) the paying agent for the MBS by telephone (such notification to be immediately confirmed by Electronic Means or other means of instantaneous written communication) that such payment has not been received in a timely manner and request that such payment be made by wire transfer of immediately available funds to the account of the Trustee or such custodian, as the case may be.

Miscellaneous Provisions

No Recourse on Bonds. All covenants, stipulations, promises, agreements and obligations of the Issuer contained in this Indenture shall be deemed to be the covenants, stipulations, promises, agreements and obligations of the Issuer and not of any of its officers or employees or members of its governing body, past, present or future, in his or her individual capacity, and no recourse shall be had for the payment of the principal of, premium, if any, or Redemption Price or purchase price of or interest on the Bonds or for any claim based thereon or on this Indenture or the Financing Documents against any such member, officer, employee or agent of the Issuer, past present or future, or any natural person executing the Bonds.

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APPENDIX D
SUMMARY OF CERTAIN PROVISIONS OF THE FINANCING AGREEMENT

The following is a summary of certain provisions of the Financing Agreement which are not described elsewhere in the Official Statement. This summary does not purport to be comprehensive, and reference should be made to the Financing Agreement for a full and complete statement of its provisions.

Definitions

Capitalized terms used but not defined herein shall have the means given them in the Indenture and the Financing Agreement.

The Bonds and the Proceeds Thereof

The Issuer has authorized the issuance of the Bonds in the aggregate principal amount set forth in the Financing Agreement and Bonds in such amount shall be issued and Outstanding as of the Closing Date. The obligations of the Issuer, the Trustee and the Borrower under the Financing Agreement are expressly conditioned upon (i) the sale, issuance and delivery of the Bonds, (ii) receipt by the Trustee of the amounts set forth in the Indenture, and (iii) the making of the Mortgage Loan by the Lender. Neither the Issuer, the Lender, the Trustee nor Fannie Mae shall have any liability for any fees, costs or expenses, including, without limitation, issuance costs relating to the Bonds; all of such fees, costs and expenses shall be paid by the Borrower.

Sources, Deposits and Uses

Upon the issuance and delivery of the Bonds, the Lender will make the Mortgage Loan to the Borrower. To the extent proceeds of the Mortgage Loan remain after disbursements made on the Closing Date, the Lender will deliver funds to the Trustee for deposit into the Rehabilitation Fund to be applied by the Borrower to pay Project Costs pursuant the Indenture. The Trustee shall apply the proceeds of the Bonds as provided in the Indenture to secure the Bonds until the MBS Delivery Date and then to purchase the MBS. The Borrower accepts the Mortgage Loan from the Lender, upon the terms and conditions set forth in the Financing Agreement, in the Mortgage Loan Documents and in the Indenture, and subject to the terms and conditions of the Regulatory Agreement. The Issuer has caused the proceeds of the Bonds to be provided to the Trustee for deposit to the Bond Proceeds Fund. The Borrower acknowledges its obligation to pay all amounts necessary to pay principal of, premium, if any, and interest on the Bonds as provided in the Indenture. The Borrower has made arrangements for the delivery to the Trustee of the MBS and of certain other Eligible Funds as contemplated in the Financing Agreement and in the Indenture. Payments on the MBS received by the Trustee shall be credited to amounts due from the Borrower for payment of principal of, premium, if any, and interest on the Bonds.

Notification of Prepayment of Mortgage Note

The Borrower shall cause the Lender to notify the Trustee promptly of the receipt of any prepayment of the Mortgage Note, whether upon acceleration, by reason of application of insurance or condemnation proceeds, optional prepayment or otherwise. If such prepayment results in revisions to the Mortgage Loan Amortization Schedule, the Borrower shall cause the Lender to provide the revised Mortgage Loan Amortization Schedule to the Trustee.

Events of Default

Each of the following shall constitute an event of default under the Financing Agreement, and the term "Event of Default" shall mean, whenever used in the Financing Agreement, any one or more of the following events (after taking into account any applicable notice and cure period):

(i) Failure by the Borrower to pay any amounts due under the Financing Agreement at the times and in the amounts required by the Financing Agreement; or

(ii) Failure by the Borrower to observe or perform any covenants, agreements or obligations in the Financing Agreement on its part to be observed or performed (other than as provided in clause (i) above) for a period of thirty (30) days after receipt of written notice specifying such failure and requesting that it be remedied, given to the Borrower by any party to the Financing Agreement; provided, however, that if said failure shall be such that it cannot be corrected within such period, it shall not constitute an Event of Default if the failure is correctable without material adverse effect on the Bonds and if corrective action is instituted by the Borrower within such period and diligently pursued until the failure is corrected, and provided further that any such failure shall have been cured within ninety (90) days of receipt of notice of such failure; or

(iii) Breach of any of the covenants, agreements or obligations of the Borrower under or the occurrence of a default which is continuing under the Regulatory Agreement, including any exhibits thereto; or

(iv) The occurrence of an Event of Default caused by the Borrower under and as defined in the Indenture or under any of the other Financing Documents.

Nothing contained in this section is intended to amend or modify any of the provisions of the Mortgage Loan Documents or to bind the Borrower, the Lender or Fannie Mae to any notice and cure periods other than as expressly set forth in the Mortgage Loan Documents.

Remedies Upon an Event of Default

(a) Subject to subsection (d) below, whenever any Event of Default shall have occurred and be continuing, the Issuer or the Trustee may take any one or more of the following remedial steps:

(i) By any suit, action or proceeding, pursue all remedies now or hereafter existing at law or in equity to collect all amounts then due and thereafter to become due under the Financing Agreement, to enforce the performance of any covenant, obligation or agreement of the Borrower under the Financing Agreement (subject to the nonrecourse provisions of the Financing Agreement and the Regulatory Agreement) or to enjoin acts or things which may be unlawful or in violation of the rights of the Issuer or the Trustee.

(ii) Take whatever other action at law or in equity may appear necessary or desirable to enforce any monetary obligation of the Borrower under the Financing Agreement or to enforce any other covenant, obligation or agreement of the Borrower under (1) the Financing Agreement or (2) the Regulatory Agreement.

(iii) Have access to and inspect, examine, audit and make copies of the books and records and any and all accounts, data and income tax and other tax returns of the Borrower.

(b) The provisions of subsection (a) of this section are subject to the condition that if, after any Event of Default, except a default under the Regulatory Agreement, (i) all amounts which would then be payable under the Financing Agreement by the Borrower if such Event of Default had not occurred and was not continuing shall have been paid by or on behalf of the Borrower, and (ii) the Borrower shall have also performed all other obligations in respect of which it is then in default under the Financing Agreement and shall have paid the charges and expenses of the Issuer and the reasonable charges and expenses of the Trustee, including reasonable attorney fees and expenses paid or incurred by either the Issuer or the Trustee in connection with such default, then and in every such case, such Event of Default may be waived and annulled by the Trustee, but no such waiver or annulment shall extend to or affect any subsequent Event of Default or impair any right or remedy consequent thereon.

(c) Subject to the limitations of the Regulatory Agreement and the Financing Agreement, the Issuer, without the consent of the Trustee, but only after written notice to the Trustee, the Borrower, the Lender and Fannie Mae, may take whatever action at law or in equity may appear necessary or desirable to enforce performance and observance of any Reserved Right of the Issuer; provided that, the Issuer may not (i) terminate the Financing

Agreement or cause the Mortgage Loan to become due and payable, (ii) cause the Trustee to declare the principal of all Bonds then Outstanding and the interest accrued thereon to be immediately due and payable, or cause the Trustee to accelerate, foreclose or take any other action or seek other remedies under the Financing Documents, the Mortgage Loan Documents or any other documents contemplated thereby or by the Financing Agreement to obtain such performance or observance, (iii) cause the acceleration, foreclosure or taking of any other action or the seeking of any remedies under the Mortgage Loan Documents, (iv) initiate or take any action which may have the effect, directly or indirectly, of impairing the ability of the Borrower to timely pay the principal, interest and other amounts due under the Mortgage Loan, or (v) interfere with or attempt to influence the exercise by Fannie Mae of any of its rights under the Financing Documents or the Mortgage Loan Documents.

(d) Except as required to be deposited in the Rebate Fund pursuant to the Financing Documents any amounts collected pursuant to action taken under this section shall, after the payment of the costs and expenses of the proceedings resulting in the collection of such moneys and of the expenses, liabilities and advances incurred or made by the Trustee, the Issuer, the Lender or Fannie Mae and their respective counsel, be applied in accordance with the provisions of the Indenture. No action taken pursuant to this section shall relieve the Borrower from the Borrower's obligations pursuant to the Financing Agreement.

(e) No remedy conferred upon or reserved to the Issuer or the Trustee in the Financing Agreement is intended to be exclusive of any other available remedy or remedies, but each and every such remedy shall be cumulative and shall be in addition to every other remedy now or hereafter existing pursuant to any other agreement at law or in equity or by statute.

(f) Notwithstanding any other provision of the Financing Agreement to the contrary, after the MBS Delivery Date, so long as Fannie Mae is not in default under the MBS, none of the Issuer, the Trustee or any Person under their control shall exercise any remedies or direct any proceedings under the Financing Agreement or the Mortgage Loan Documents, other than to (i) enforce rights under the MBS, (ii) enforce the tax covenants in the Indenture and the Financing Agreement, or (iii) enforce rights of specific performance under the Regulatory Agreement; provided, however, that any enforcement under (ii) or (iii) above shall not include seeking monetary damages.

Notice of Default: Rights to Cure

The Issuer and the Trustee shall each give notice to the other and the Trustee shall give notice to the Investor Limited Partner, the LGC and the Lender of the occurrence of any Event of Default by the Borrower under the Financing Agreement of which it has actual knowledge. The Lender and the Investor Limited Partner shall each have the right, but not the obligation, to cure any such default by the Borrower, and upon performance by the Lender or the Investor Limited Partner to the satisfaction of the Issuer and the Trustee of the covenant, agreement or obligation of the Borrower with respect to which an Event of Default has occurred, the parties to the Financing Agreement shall be restored to their former respective positions, it being agreed that the Lender and the Investor Limited Partner shall each have the right to repayment from the Borrower of moneys it has expended and any other appropriate redress for actions it has taken to cure any default by the Borrower; provided that the Borrower's reimbursement obligation shall be non-recourse to the same extent as the underlying obligation is non-recourse to the Borrower and its partners, members, shareholders, directors, officers, employees or agents.

Amendment

The Financing Agreement and all other documents contemplated by the Financing Agreement to which the Issuer is a party may be amended or terminated only if permitted by the Indenture, and no amendment to the Financing Agreement shall be binding upon, any party to the Financing Agreement until such amendment is reduced to writing and executed by the parties thereto; provided that no amendment, supplement or other modification to the Financing Agreement or any other Financing Document shall be effective without the prior written consent of Fannie Mae.

Limited Liability of the Issuer

The Issuer shall not be obligated to pay the principal (or Redemption Price) of, premium, if any, or interest on the Bonds, except from the Trust Estate. Neither the faith and credit nor the taxing power of the State or any political subdivision thereof, nor the faith and credit of the Issuer or any member is pledged to the payment of the principal (or Redemption Price), premium, if any, or interest on the Bonds. The Issuer shall not be liable for any costs, expenses, losses, damages, claims or actions, of any conceivable kind on any conceivable theory, under or by reason of or in connection with the Financing Agreement, the Bonds or the Indenture, except only to the extent amounts are received for the payment thereof from the Borrower under the Financing Agreement or from the MBS.

The Borrower acknowledges that the Issuer's sole source of moneys to repay the Bonds will be provided by the Trust Estate, and agrees that if the payments to be made under the Financing Agreement shall ever prove insufficient to pay all principal (or Redemption Price), premium, if any, and interest on the Bonds as the same shall become due (whether by maturity, redemption, acceleration or otherwise), then upon notice from the Trustee, the Borrower shall pay such amounts as are required from time to time to prevent any deficiency or default in the payment of such principal (or Redemption Price), premium, if any, or interest, including, but not limited to, any deficiency caused by acts, omissions, nonfeasance or malfeasance on the part of the Trustee, the Borrower, the Issuer or any third party, subject to any right of reimbursement from the Trustee, the Issuer or any such third party, as the case may be, therefor.

APPENDIX E
SUMMARY OF CERTAIN PROVISIONS OF THE REGULATORY AGREEMENT

The following is a summary of certain provisions of the Regulatory Agreement. The summary does not purport to be complete or definitive and is qualified in its entirety by reference to the Regulatory Agreement, copies of which are on file with the Issuer and the Trustee.

Definitions

"**Act**" means the North Carolina Housing Authorities Law (Article 1 of Chapter 157 of the North Carolina General Statutes), as amended.

"**Adjusted Family Income**" means the anticipated annual income of a person (together with the anticipated annual income of all persons who intend to reside with such person in one residential unit), as determined in a manner consistent with Section 8 of the United States Housing Act of 1937, or if such program is terminated, under such program as in effect immediately before such termination.

"**Available Units**" means residential units in a residential rental project that are actually occupied and residential units in the project that are unoccupied and have been leased at least once after becoming available for occupancy, provided that a residential unit that is not available for occupancy due to renovations is not an Available Unit and does not become an Available Unit until it has been leased for the first time after the renovations are completed.

"**Bond Counsel**" means McGuireWoods LLP or any other law firm of nationally recognized standing in the field of municipal finance law whose opinions are generally accepted by purchasers of tax-exempt obligations that is acceptable to the Issuer.

"**Bondholder**" means, with respect to any Bond, the registered owner of such Bond.

"**Bonds**" means the $13,500,000 in aggregate principal amount of the INLIVIAN Multifamily Green Tax-Exempt Mortgage-Backed Bonds (GREEN M-TEBS) (Northcross Townhomes), Series 2020.

"**Borrower**" means Northcross Preservation, L.P., a New York limited partnership, together with its permitted successors and assigns.

"**Business Day**" means a day (a) that is not a Saturday or a Sunday or a day on which (i) banking institutions in the City of New York or in the city in which the principal office of the Trustee is located are authorized or obligated by law or executive order to be closed, or (ii) The New York Stock Exchange is closed, and (b) on which the United States Government makes payments of principal and interest on its Treasury obligations.

"**Closing Date**" means the date of issuance of the Bonds.

"**Code**" means the Internal Revenue Code of 1986, as amended and supplemented from time to time, or any successor statute, and applicable final, temporary or proposed regulations thereunder.

"**Commercial Facilities**" means that part of the Project, if any, not consisting of (i) that portion of the building or buildings of the Project containing residential units and (ii) any facilities, or portions thereof, that are approved by the Issuer and are properly allocable and are directly related and essential to the portions of such building or buildings containing residential units for purposes of Section 142(d) of the Code, including the Recreation Facilities hereinafter defined and the portion of the parking facilities hereinafter described and the tenant laundry facilities which are intended for use by the Project's residential tenants.

"**Compliance Certificate**" means the Compliance Certificate substantially in the form attached as an exhibit to the Regulatory Agreement, as such form may be revised by the Issuer from time to time upon advice of Bond Counsel.

"**Financing Agreement**" means the Financing Agreement, dated as of April 1, 2020, among the Borrower, the Issuer and the Trustee, under which the Issuer loaned the proceeds of the Bonds to the Borrower, together with any amendments, modifications or supplements thereto.

"**Income Certification**" means a Certification of Tenant Eligibility substantially in the form of an exhibit attached to the Regulatory Agreement, as such form may be revised by the Issuer from time to time upon advice of Bond Counsel.

"**Income Tax Regulations**" means any applicable final, proposed or temporary regulations and revenue rulings under the Code. References to a section of the Income Tax Regulations shall be deemed to include any analogous section of revised or successor regulations.

"**Indenture**" means the Indenture of Trust, dated as of April 1, 2020, by and between the Issuer and the Trustee, under which the Bonds are issued and secured, as the same may be amended, modified or supplemented from time to time.

"**Investor Limited Partner**" means Wells Fargo Affordable Housing Community Development Corporation, and its successors and/or assigns.

"**Issuer**" means INLIVIAN, a public body and body corporate and politic created and existing under the laws of the State of North Carolina, together with its permitted successors and assigns.

"**Lender**" shall have the meaning given such term in the Indenture.

"**Loan**" means the proceeds provided by the Issuer to the Borrower pursuant to the Financing Agreement.

"**Low Income Persons or Families**" or "**Low Income Tenants**" means persons whose aggregate Adjusted Family Income does not exceed 60% of the Median Gross Income for the Area determined by the Secretary of Housing and Urban Development in a manner consistent with determinations of low income families under Section 8 of the United States Housing Act of 1937, as amended (or, if such program is terminated, under such program as in effect immediately before such termination), with adjustments for smaller and larger families. For purposes of this definition, the occupants of a residential unit shall not be deemed to be Low Income Persons or Families or Low Income Tenants if all the occupants of such residential unit at any time are "students," as defined in Section 152(f)(2) of the Code, unless an occupant falls within the exceptions set forth in Section 42(i)(3)(D) of the Code as provided through Section 142(d)(2)(c) of the Code.

"**Median Gross Income for the Area**" means the median income for the households in the area which includes the City of Charlotte, North Carolina, as determined from time to time by the Secretary of Housing and Urban Development, under Section 8 of the United States Housing Act of 1937, as amended (or if such program is terminated, median income determined under the program in effect immediately before such termination), in each case as adjusted for family size, all in accordance with Section 142(d) of the Code.

"**Mortgage**" has the meaning given such term in the Indenture.

"**Project**" means the residential rental housing development known as Northcross Townhomes, consisting of 99 units, and located in the City of Charlotte, North Carolina on the Real Property.

"**Qualified Project Period**" means that period, beginning on the later of the first day on which at least ten percent (10%) of the residential units in the Project are occupied or the Closing Date, and ending on the latest of:

(i) the date which is 15 years after the later of the Closing Date or the date on which fifty percent (50%) of the residential units in the Project are occupied, or

(ii) the first day on which no tax-exempt private activity bond issued with respect to the Project is outstanding, or

(iii) the date on which any assistance provided with respect to the Project under Section 8 of the United States Housing Act of 1937, as amended, terminates.

"**Qualified Residential Rental Project**" means any project for residential rental property if at all times during the Qualified Project Period, such project meets the requirements of Section 142(d)(1)(A) or (B) of the Code, whichever is elected by the Issuer at the time of issuance of the Bonds.

"**Real Property**" means the land described in an exhibit attached to the Regulatory Agreement.

"**Recreation Facilities**" means any recreational or exercise facilities located on the Real Property.

"**Rental Housing**" means similarly constructed proximate housing units made available for rental, and not ownership, to members of the general public, each of which units shall contain complete living facilities which are to be used on other than a transient basis and facilities which are functionally related and subordinate to the living facilities and which meet the requirements of Section 142(d) of the Code. Rental Housing shall at all times be constructed and maintained in accordance with the applicable building code standards within the City of Charlotte, North Carolina.

"**State**" means the State of North Carolina.

"**Substantial Rehabilitation**" means the acquisition of an existing residential rental project where more than 90% of the residential units in the Project are not Available Units at any time within 60 days after the later of (1) the date the Project is acquired or (2) the issue date of the Bonds.

"**Trustee**" means U.S. Bank National Association, the trustee designated as such under the Indenture or any successor trustee under the Indenture, together with their respective successors and assigns.

Qualified Residential Rental Project

The Issuer and the Borrower declare their understanding and intent that the Project is to be owned, managed and operated, as a Qualified Residential Rental Project. The Issuer elects the "40-60" test as set forth in Section 142(d)(1)(B) of the Code. To that end, and in compliance with the Act, the Borrower represents, covenants and agrees as follows:

(a) that the Project is being acquired, rehabilitated, and equipped for the purpose of providing multifamily residential rental property, and the Project shall be owned, managed and operated as multifamily Rental Housing, all in accordance with Section 142(d)(1) of the Code and Section 1.103-8(b) of the Income Tax Regulations, as the same may be amended from time to time and applicable to the Project;

(b) that all of the dwelling units in the Project will be similarly constructed and each such dwelling unit shall contain complete facilities for living, sleeping, eating, cooking and sanitation for a single person or a family;

(c) that during the Qualified Project Period:

(i) none of the dwelling units in the Project shall ever be leased or rented for a period of less than thirty (30) days; and

(ii) neither the Project nor any portion thereof shall ever be used as a hotel, motel, dormitory, fraternity house, sorority house, rooming house, hospital, sanitarium, nursing home, rest home, or trailer court or park;

(d) that during the Qualified Project Period (i) the dwelling units in the Project shall be leased and rented or made available for rental on a continuous basis to members of the general public (except for applicable age restrictions and income restrictions), (ii) at least 40% of the Available Units in the Project shall be leased and rented or made available for rental on a continuous basis to Low Income Tenants; and (iii) the Borrower shall not give

preference in renting dwelling units in the Project to any particular class or group of persons, other than Low Income Tenants as provided in the Regulatory Agreement or any preferences approved by the Issuer or required by the United States Department of Housing and Urban Development; provided, however, that an insubstantial number of dwelling units in the Project may be occupied by maintenance, security or managerial employees of the Borrower or its property manager, which employees must be reasonably necessary for operation of the Project;

(e) that during the Qualified Project Period no part of the Project will at any time be owned or used by a cooperative housing corporation;

(f) that the Project will consist of one or more discrete edifices or other man-made construction, each consisting of an independent foundation, outer walls and roof, all of which will be (i) owned by the same person for federal tax purposes, (ii) located on a common tract of land or two or more tracts of land which are contiguous except for being separated only by a road, street, stream or similar property (tracts are contiguous if their boundaries meet at one or more points), and (iii) financed by the Loan of the Issuer or otherwise pursuant to a common plan of financing, and which will consist entirely of:

(i) units which are similarly constructed; and

(ii) facilities functionally related and subordinate in purpose and size to property described in (i) above, e.g., parking areas, laundries, swimming pools, tennis courts and other Recreation Facilities (none of which may be unavailable to any person because such person is a Low Income Tenant) and other facilities which are reasonably required for the Project, e.g., heating and cooling equipment, trash disposal equipment or units for residential managers or maintenance personnel;

(g) that during the Qualified Project Period the Project will not include a unit in a building where all units in such building are not also included in the Project;

(h) that during the Qualified Project Period the Borrower will not convert the Project from residential rental property to condominium ownership or other use;

(i) that during the Qualified Project Period no dwelling unit in the Project shall be occupied by the Borrower at any time unless the Borrower resides in a dwelling unit in a building or structure which contains at least five dwelling units and unless the resident of such dwelling unit is a resident manager or other necessary employee (e.g., maintenance and security personnel);

(j) that less than 25% of the proceeds of the Bonds will be used for the acquisition of land;

(k) that during the Qualified Project Period, the Borrower will not discriminate on the basis of age (except for applicable age restrictions), race, creed, religion, color, sex, marital status, or national origin in the lease, use or occupancy of the Project or in connection with the employment or application for employment of persons for the operation and management of the Project;

(l) that during the Qualified Project Period, the Borrower will require all tenants moving into units with existing leases, which units have previously qualified as Low Income Tenant units, to be put on the lease in addition to the current tenant on the lease and to require recertification of said unit within 12 months of the new tenant(s) moving into the unit.

Unless the above provisions of this section are amended as permitted under the Regulatory Agreement, the above provisions of this section shall remain in effect during the Qualified Project Period; provided, however, the Borrower may be discharged from its obligations under the above provisions of this section and "Low Income Tenants" below to the extent only that the same are assumed by any successor in interest to the Borrower pursuant to "Sale, Lease or Transfer of Project" below.

Low Income Tenants

In order to satisfy the requirements of the Act and Section 142(d) of the Code, the Borrower represents, covenants and agrees that, as follows:

(a) (i) commencing on the later of the first date on which 10% of the units in the Project are occupied or the issue date of the Bonds, (1) at least 40% of the Available Units in the Project shall be occupied by Low Income Tenants before any Available Units are rented or leased to any other tenants and (2) after initial rental occupancy of such dwelling units by Low Income Tenants, at least 40% of the Available Units in the Project at all times shall be rented to and occupied (or held available for rent if previously rented to and occupied by a Low Income Tenant) by Low Income Tenants as required by Section 142(d) of the Code. For the purpose of the requirement that not less than 40% of the Available Units be occupied by Low Income Tenants, if a tenant qualified as a Low Income Tenant upon occupancy, the income of that tenant shall be treated as continuing to not exceed the applicable income limit, notwithstanding that such tenant's income may subsequently exceed the applicable income limit; provided, however, that such person shall no longer be qualified as a Low Income Tenant as of the most recent determination (as provided in paragraph (e) below) if the tenant's Adjusted Family Income exceeds 140% of the then applicable income limit. If it is determined that a tenant's Adjusted Family Income exceeds 140% of the applicable income limit, the Borrower may avoid non-compliance with the rules set forth in the Regulatory Agreement if the next available unit of comparable or smaller size not counted as occupied by a Low Income Tenant is rented to a qualifying Low Income Tenant;

(ii) notwithstanding subclause (a)(i) above, if the proceeds of the Bonds are financing the acquisition and rehabilitation of an existing residential rental project (other than Substantial Rehabilitation, to which subclause (a)(i) above will apply), the Borrower shall have twelve months beginning on the date of issuance of the Bonds (the "Transition Period") to satisfy the requirement that at least 40% of the Available Units are occupied by Low Income Tenants. The failure to satisfy the set-aside requirement of this subclause (a)(ii) by the last day of the Transition Period will cause the Project not to be a Qualified Residential Rental Project as of the issue date of the Bonds issued to finance the Project unless the Bonds issued to finance the Project are redeemed as soon as possible, but in no event later than eighteen months after the issue date of the Bonds;

(b) the income of all tenants who occupy or will occupy the units in the Project will be verified by the Borrower by obtaining an Income Certification and with respect to Low Income Tenants, (i) if the occupant is employed, an employer's written verification of current anticipated annual income or at least four consecutive pay stubs, (ii) if the occupant is self-employed, the occupant shall provide an annualized profit and loss statement or copies of business receipts, checks or prior years' federal income tax returns or (iii) if the occupant is not employed, the occupant shall provide evidence of governmental income or rental assistance and of any other income. Each such certification shall be dated (i) not later than the date of execution of the lease, but in no event more than five days prior to the initial occupancy of such tenant in the Project (and the Borrower shall require such tenant to notify the Borrower of any material change of information in the Income Certification between execution thereof and initial occupancy of such tenant in the Project), and (ii) at least annually thereafter, in each case in the form and containing such information as may be required by Section 142(d) of the Code, initially in the form attached as an exhibit to the Regulatory Agreement, as the same may be from time to time amended by the Borrower with the consent of the Issuer on the advice of Bond Counsel (a copy of which amendments shall be provided to the Issuer, the Trustee and the Lender), or in such other form and manner as may be required by applicable rules, rulings, procedures, official statements, regulations or policies now or hereafter promulgated or proposed by the Department of the Treasury or the Internal Revenue Service with respect to obligations issued under Section 142(a)(7) of the Code;

(c) during the Qualified Project Period, the Borrower shall maintain complete and accurate records pertaining to the dwelling units occupied or to be occupied by Low Income Tenants, including Income Certifications, and will permit any duly authorized representative of the Issuer, the Trustee, the Department of the Treasury or the Internal Revenue Service to inspect the books and records of the Borrower pertaining to the Income Certifications of Low Income Tenants residing in the Project for the purpose of verifying compliance by the Borrower under the Regulatory Agreement upon reasonable notice and at reasonable times. The Borrower agrees that in the event of an Internal Revenue Service, Department of Treasury or Issuer audit of compliance with the Regulatory Agreement as authorized by this paragraph, the Borrower will pay all reasonable fees and expenses of the Issuer, its authorized

representatives, and its counsel actually incurred in connection with such audit. The Borrower shall keep information as set forth in this paragraph for a period of three years following the end of the Qualified Project Period;

(d) during the Qualified Project Period, (i) the Borrower shall immediately notify the Trustee and the Issuer if at any time the dwelling units in the Project are not occupied or available for occupancy as provided in paragraph (a) above, (ii) the Borrower shall prepare and submit to the Issuer and, if requested, the Lender, not later than the fifteenth (15th) day of the month following the initial occupancy of any of the units in the Project and not later than the fifteenth (15th) day following the end of each six months thereafter, a Compliance Certificate substantially in the form attached as an exhibit to the Regulatory Agreement executed by the Borrower stating, among other matters, the number of dwelling units of the Project which were occupied or were deemed to be occupied by Low Income Tenants during such period, and (iii) so long as any Bonds remain Outstanding, the Borrower shall prepare and submit a copy of each Compliance Certificate required under clause (ii) of this subsection to the Trustee upon request;

(e) during the Qualified Project Period, the Borrower shall make the determination of whether the income of a tenant of a unit in the Project exceeds the applicable limit at least annually on the basis of the current income of the tenant by causing each tenant to execute a recertification of their annual income. The Borrower shall require in the lease of each Low Income Tenant that the tenant fill out an annual income recertification to help the Borrower determine whether the tenant still qualifies as a Low Income Tenant. The Borrower shall provide in each tenant's lease that completion and execution of such certificates by the tenant is a substantial obligation, noncompliance with which can result in termination of tenancy; and

(f) the Borrower shall prepare and file with the Trustee, the Lender and the Issuer true copies of each IRS Form 8703 - "Annual Certification of a Residential Rental Project" (or any successor form thereto) as completed and filed with the Internal Revenue Service for each calendar year during the Qualified Project Period, which certification shall be filed within thirty (30) days after each anniversary of the completion date of the rehabilitation of the Project or at such other times as may be prescribed in the Income Tax Regulations promulgated under Section 142(d)(7) of the Code.

The benefits of "Qualified Residential Rental Project" above and this section shall inure to, and may be enforced by, the Trustee and the Issuer and their successors and assigns for the Qualified Project Period.

Compliance with Act, Code and Rules

(a) The Borrower covenants and agrees that (i) it will comply with all requirements of the Act, and the rules applicable to it or to the Project; (ii) at no time will it take any action, or fail to take any action, which action or failure to act would adversely affect the exclusion from gross income of the interest on the Bonds for federal income tax purposes; (iii) at least 95% of the net proceeds of the Bonds will be applied to finance a Qualified Residential Rental Project; and (iv) it will maintain the Project at all times during the Qualified Project Period in such a manner that the Project qualifies as a Qualified Residential Rental Project and pursuant thereto, forty percent (40%) or more of the residential units in such Project will be occupied by Low Income Persons or Families, with adjustments for smaller and larger families within the respective meanings ascribed to such quoted terms in Section 142(d) of the Code. In connection with the foregoing and with the Regulatory Agreement, the Borrower agrees to execute and deliver such amendments and supplements to the Regulatory Agreement as the Issuer (with a copy to Bond Counsel and the Trustee) or Bond Counsel (with a copy to the Issuer and the Trustee) reasonably shall determine to be necessary to preserve the exclusion of the interest on the Bonds of the holders thereof from gross income for federal income tax purposes.

(b) The Borrower agrees that it will not request any disbursement under the Loan for:

(i) the acquisition of a building (and any fixtures thereto as of the date of acquisition), the "first use" of which is not pursuant to such acquisition within the meaning of Section 147(d) of the Code, unless the Borrower shall expend from Loan proceeds or other available sources, an amount at least equal to fifteen percent (15%) of "the portion of the cost of acquiring such building (and equipment) financed with the proceeds" of the Bonds for "rehabilitation expenditures" within the meaning of Section 147(d) and of the Code with respect to such building and fixtures;

(ii) the acquisition of land (or an interest therein) in any amount which would cause the aggregate amount therefore and thereupon disbursed for such costs to equal or exceed twenty-five percent (25%) of the net proceeds of the sale of the Bonds; or

(iii) any portion of the Project which would cause the "average reasonably expected economic life", as determined in the manner and as of the time provided by Section 147(b) of the Code, of the portion of the Project that has been, or pursuant to such requested disbursement is to be, financed with proceeds of the Loan to be less than one day more than eighty-three and one-third percent (83 1/3%) of the "average maturity" of the Bonds within the meaning of Section 147(b) of the Code.

If for any reason disbursements under this paragraph (b) in excess of the limits imposed by subclauses (i), (ii) or (iii) set forth above shall be made, or if, assuming after any disbursement that no further disbursements were made under the Financing Agreement, such limits would be violated by measurement against the amount of disbursements theretofore made, the Borrower agrees to take all steps necessary to assure the exclusion of the interest payable on the Bonds of the holders thereof from gross income for federal income tax purposes.

(c) The Borrower agrees that it will not request any disbursement under the Loan for any costs of:

(i) any portion of the Project constituting a "health club facility," a "facility primarily used for gambling," or a "store the principal business of which is the sale of alcoholic beverages for consumption off premises" within the meaning of Section 147(e) of the Code;

(ii) land, or an interest therein, to be used for "farming purposes" within the meaning of Section 147(c) of the Code; or

(iii) any property, other than a building (and fixtures located therein as of the date of the building's acquisition), the "first use" of which is not pursuant to such acquisition within the meaning of Section 147(d) of the Code.

Sale, Lease or Transfer of the Project

(a) The Borrower shall not sell, lease (other than to resident tenants in the normal course of business), exchange, assign, convey, transfer or otherwise dispose of all or substantially all of the Project nor have a change of any general partner of the Borrower (herein collectively called "Disposition") without the prior written consent of the Issuer (such consent not unreasonably to be withheld). Notwithstanding anything to the contrary contained in the Financing Documents (as defined in the Indenture), the withdrawal, removal and/or replacement of Borrower's general partner for cause in accordance with Borrower's Amended and Restated Agreement of Limited Partnership (the "Partnership Agreement") shall not require the consent of Issuer and shall not constitute a default under any of the Financing Documents or accelerate the maturity of the Loan so long as the general partner is replaced with an affiliate of the Investor Limited Partner. Issuer shall not unreasonably withhold its consent to the substitute general partner if it is other than an affiliate of either the Investor Limited Partner or the General Partner. Notwithstanding the foregoing, the substitute general partner shall assume all of the rights and obligations of the removed general partner under all of the Financing Documents. It is expressly agreed that in connection with determining whether to grant or withhold such consent to a Disposition, the Issuer may (but is not obligated to) (i) consider the creditworthiness of the party to whom such Disposition will be made, its ability to provide services specifically to Low Income Tenants, its prior operation of low income rental housing, its operation of other housing facilities in Charlotte, North Carolina, if any, and its management ability with respect to the Project; (ii) consider whether or not any security for the performance of the obligations under the Regulatory Agreement will be impaired in any material way by the proposed Disposition; (iii) consider such other factors as the Issuer may deem appropriate; (iv) require that the Issuer be reimbursed for all reasonable costs and expenses incurred by the Issuer for investigating the creditworthiness and management ability of the party to whom such Disposition will be made and in determining whether the Issuer's security will be impaired by the proposed Disposition; (v) require the payment to the Issuer of a transfer fee equal to the reasonable costs of investigating and approving the Disposition and documenting the Disposition in its records; (vi) require the payment of its reasonable attorney's fees actually incurred in connection with such Disposition; (vii) require the execution of modification agreements, supplemental security documents and financing statements, where appropriate, reasonably satisfactory in form and substance to the Issuer, it being understood and agreed that no material change shall be

required to any of the terms and conditions of the Financing Agreement, the Regulatory Agreement or any related instrument or agreement as a condition for the approval of any such Disposition; and (viii) require the payment of the Issuer's annual fee prorated to the date of disposition of the Project. The foregoing provisions shall not operate to limit in any manner any requirements that the Borrower obtain the consent of any other party to such Disposition under the terms of the Financing Agreement or any of the other documents executed in connection with the Bonds.

(b) The Borrower covenants that upon a Disposition, it will require the party to whom a Disposition will be made to assume in writing, in a form acceptable to the Issuer and the Trustee, all duties and obligations of the Borrower under the Regulatory Agreement, including this section, in the event of a subsequent Disposition by such party prior to expiration of the Qualified Project Period. The Borrower shall deliver the assumption agreement to the Issuer and the Trustee concurrently with the Disposition.

(c) It is expressly stipulated and agreed that any Disposition of the Project by the Borrower in violation of this section shall be null, void and without effect, and shall be ineffective to relieve the Borrower of its obligations under the Regulatory Agreement and the Financing Agreement. In the event that the Issuer approves the Disposition of the Project in accordance with this section, and the transferee has agreed to perform the obligations of the Borrower under the Financing Agreement and the Regulatory Agreement in accordance with the terms and conditions of the Financing Agreement and the Regulatory Agreement, the Borrower shall be released from its obligations under the Regulatory Agreement automatically and without further action by the Issuer, and the Issuer shall confirm such release by recordable written instrument, if requested to do so by the Borrower.

(d) Except as permitted in paragraph (a) above, so long as any portion of the Bonds remains outstanding, there shall be no transfer by any party of more than a 50% ownership interest in the Borrower, nor shall there be any other similarly significant change in the ownership interest, control or relative distribution thereof, of the Borrower by any other method or means including, but not limited to, increased capitalization, merger, corporate or other amendments, issuance of additional or new stock or classification of stock, or otherwise, without the prior written consent of the Issuer, which consent shall not be unreasonably withheld; provided, however, that this paragraph shall not apply to transfers of the interests of the Investor Limited Partner in the Borrower.

(e) Any Disposition will be subject to the Issuer and the Trustee receiving an Opinion of Bond Counsel that the transaction contemplated and as carried out will not adversely affect the exclusion of the interest on the Bonds of the holders thereof from gross income for federal income tax purposes.

(f) The restrictions contained in the foregoing provisions of this section shall not be applicable to any of the following exceptions, and the prior consent of the Issuer shall not be required as to such exceptions: (i) any transfer pursuant to or in lieu of a foreclosure under the Mortgage or other similar disposition of the Project, (ii) grants of utility related easements and utility and other service related leases or easements, including without limitation, laundry service leases or television cable easements, over portions of the Project, provided the same are granted in the ordinary course of business in connection with the operation of the Project as contemplated by the Regulatory Agreement, (iii) leases of apartment units to Low Income Tenants or other tenants in accordance with the requirements of the Regulatory Agreement, (iv) any sale or conveyance to a condemning governmental authority as a direct result of a condemnation or a governmental taking or a threat thereof, and (v) any change in allocations of preferred return capital, depreciation or losses or any final adjustments in capital accounts (all of which may be freely transferred or adjusted by Borrower pursuant to Borrower's Partnership Agreement).

Enforcement

(a) The Issuer, the Borrower and the Trustee each covenants that it will not knowingly take or permit any action that would adversely affect the exemption from federal income taxation of interest on the Bonds. Moreover, each covenants to take any lawful action (including amendment of the Regulatory Agreement as may be necessary, in the opinion of Bond Counsel) to comply fully with the requirements of the Act and with all applicable rules, rulings, policies, procedures, regulations or other official statements promulgated or proposed by the Department of the Treasury or the Internal Revenue Service from time to time pertaining to obligations the interest on which is tax-exempt under Section 142(d) of the Code and affecting the Project.

(b) If the Borrower defaults in the performance of its obligations under the Regulatory Agreement or breaches any covenant, agreement or warranty of the Borrower set forth in the Regulatory Agreement, and if such default remains uncured for a period of 60 days after notice thereof shall have been given by the Trustee or the Issuer to the Borrower (or for an extended period approved in writing by Bond Counsel if such default stated in such notice can be corrected, but not within such 60 day period, and if the Borrower commences such correction within such 60 day period, and thereafter diligently pursues the same to completion within such extended period), then the Issuer or the Trustee may apply to any court, state or federal, for specific performance of the Regulatory Agreement or an injunction against any violation of the Regulatory Agreement or any other remedies at law or in equity or any such other actions as it may deem necessary or desirable so as to correct noncompliance with the Regulatory Agreement. Any cure of any Event of Default under the Regulatory Agreement made or tendered by the Investor Limited Partner shall be deemed to be cure by the Borrower, and shall be accepted or rejected by the Issuer and Trustee on the same basis as if made or tendered by the Borrower.

(c) Notwithstanding anything to the contrary stated in the Regulatory Agreement, the Indenture or the Financing Agreement, the Issuer and the Trustee shall have the right to seek specific performance of any of the covenants and requirements of the Regulatory Agreement concerning the rehabilitation and operation of the Project. The Trustee and the Issuer shall have the right, either jointly or severally, to enforce the Regulatory Agreement and require curing of defaults in such shorter periods than specified above as Bond Counsel may determine necessary to maintain the tax-exempt status of interest on the Bonds. The Trustee shall have the right in accordance with this section, following written notice to the Issuer, to exercise any or all of the Issuer's rights or remedies under the Regulatory Agreement.

(d) The Issuer shall receive any reports submitted by the Borrower pursuant to the Regulatory Agreement and shall monitor or cause to be monitored any such reports in accordance with the standards set forth below. In performing their duties and obligations under the Regulatory Agreement, the Issuer, the Trustee and their respective counsel may rely upon statements and certificates of the Borrower and tenants and upon audits of the books and records of the Borrower pertaining to occupancy of the Project.

(e) The Borrower and the Issuer each acknowledges that the primary purposes for requiring compliance by the Borrower with the restrictions provided in the Regulatory Agreement are to comply with the requirements of the Act and to preserve the federal income tax exemption of interest on the Bonds to the Bondholders, and that the Trustee on behalf of the Bondholders who are declared to be third-party beneficiaries of the Regulatory Agreement shall be entitled, for any breach of the provisions thereof, to all remedies both at law and in equity in the event of any default under the Regulatory Agreement.

(f) Notwithstanding the foregoing, enforcement of the Regulatory Agreement shall not serve as a basis for a declaration of default under the Mortgage or acceleration of the Loan or result in any claim under such Loan, or claim against the Project, the proceeds of the Loan, or against the rents or other income from the Project for payment under the Regulatory Agreement.

(g) The Issuer and the Trustee agree that a copy of any notice sent to the Borrower under the Regulatory Agreement shall be sent concurrently to the Investor Limited Partner at the address set forth in the Regulatory Agreement.

Term of Agreement

The Regulatory Agreement shall be in full force and effect from the date thereof for the Qualified Project Period regardless of whether the Bonds remain outstanding; provided, however, that the requirements of the Regulatory Agreement shall:

(a) terminate in the event that involuntary non-compliance with the Regulatory Agreement is caused by fire, seizure, requisition, change in federal law or an action of a federal agency which prevents the Issuer from enforcing the Regulatory Agreement, or condemnation or similar event, and if the Borrower, within a reasonable period, either prepays the Loan in full or uses the amounts received as a consequence of such event to construct another project meeting the requirements of Section 142(d) of the Code; or

(b) cease to apply in the event of an involuntary loss or a substantial destruction of the Project as a result of unforeseen events such as fire, seizure, requisition, condemnation, foreclosure or transfer of title by deed in lieu of foreclosure pursuant to the Mortgage or any other deed of trust with respect to the Project, so long as, within a reasonable time period, either the Bonds are retired in full or the amounts received as a consequence of such event are used to provide a Qualified Residential Rental Project. Notwithstanding the foregoing, the termination provisions of this paragraph shall cease to apply in the event of foreclosure pursuant to the Mortgage, or other mortgage with respect to the Project, transfer of title by deed-in-lieu of foreclosure, or similar event if, at any time subsequent to such event and during the Qualified Project Period, the Borrower or a related person (as defined in Section 1.103 10(e) of the Treasury Regulations) obtains an ownership interest in the Project for tax purposes.

Covenants Run With the Real Property; Term

The Issuer, the Trustee and the Borrower declare their express intent that the covenants, reservations and restrictions set forth in "Qualified Residential Rental Project" and "Low Income Tenants" above (exclusive of the last paragraph of "Qualified Residential Rental Project") shall be deemed covenants running with the land, shall run with the title to the Real Property, and shall pass to and be binding upon the Borrower's successors in title and the Borrower's successors and assigns. Each and every contract, deed or other instrument thereafter executed covering or conveying Real Property or any portion thereof shall conclusively be held to have been executed, delivered and accepted subject to such covenants, regardless of whether or not such covenants are set forth in such contract, deed or other instrument. Unless sooner terminated in accordance with the Regulatory Agreement, such covenants shall continue in full force and effect for the Qualified Project Period, it being expressly agreed and understood that the provisions of the Regulatory Agreement are intended to survive the expiration of the Indenture and the retirement of the Bonds, if such expiration and retirement occur prior to the end of the Qualified Project Period. Upon the expiration of the Qualified Project Period, or if the provisions of the Regulatory Agreement are terminated (in the opinion of Bond Counsel), the Issuer and the Trustee (only to the extent the Trustee has not been released pursuant to the Regulatory Agreement) covenant to execute a release of the covenants of the Borrower in the Regulatory Agreement and provide such release to the Borrower for recordation in the real property records of Mecklenburg County, North Carolina.

APPENDIX F
BOOK-ENTRY SYSTEM

The information in this section concerning DTC and DTC's book-entry system has been obtained from sources that the Issuer and the Borrower believe to be reliable, but neither the Issuer, the Underwriter nor the Borrower take responsibility for the accuracy thereof.

The Depository Trust Company ("DTC"), New York, New York will act as securities depository for the Bonds. The Bonds will be issued as fully-registered securities registered in the name of Cede & Co. (DTC's partnership nominee) or such other name as may be requested by an authorized representative of DTC. One fully-registered bond will be issued for each maturity of the Bonds, each in the aggregate principal amount of such maturity, and will be deposited with DTC or held by the Trustee.

DTC, the world's largest depository, is a limited-purpose trust company organized under the New York Banking Law, a "banking organization" within the meaning of the New York Banking Law, a member of the Federal Reserve System, a "clearing corporation" within the meaning of the New York Uniform Commercial Code, and a "clearing agency" registered pursuant to the provisions of Section 17A of the Securities Exchange Act of 1934. DTC holds and provides asset servicing for over 3.5 million issues of U.S. and non-U.S. equity issues, corporate and municipal debt issues, and money market instruments (from over 100 countries) that DTC's participants ("Direct Participants") deposit with DTC. DTC also facilitates the post-trade settlement among Direct Participants of sales and other securities transactions in deposited securities, through electronic computerized book-entry transfers and pledges between Direct Participants' accounts. This eliminates the need for physical movement of securities certificates. Direct Participants include both U.S. and non-U.S. securities brokers and dealers, banks, trust companies, clearing corporations, and certain other organizations. DTC is a wholly-owned subsidiary of The Depository Trust & Clearing Corporation ("DTCC"). DTCC is the holding company for DTC, National Securities Clearing Corporation and Fixed Income Clearing Corporation, all of which are registered clearing agencies. DTCC is owned by the users of its regulated subsidiaries. Access to the DTC system is also available to others such as both U.S. and non-U.S. securities brokers and dealers, banks, trust companies, and clearing corporations that clear through or maintain a custodial relationship with a Direct Participant, either directly or indirectly ("Indirect Participants"). The DTC Rules applicable to its Participants are on file with the Securities and Exchange Commission.

Purchases of Bonds under the DTC system must be made by or through Direct Participants, which will receive a credit for the Bonds on DTC's records. The ownership interest of each actual purchaser of each Bond ("Beneficial Owner") is in turn to be recorded on the Direct and Indirect Participants' records. Beneficial Owners will not receive written confirmation from DTC of their purchase. Beneficial Owners are, however, expected to receive written confirmations providing details of the transaction, as well as periodic statements of their holdings, from the Direct or Indirect Participant through which the Beneficial Owner entered into the transaction. Transfers of ownership interests in the bonds are to be accomplished by entries made on the records of Direct and Indirect Participants acting on behalf of Beneficial Owners. Beneficial Owners will not receive certificates representing their ownership interests in bonds, except in the event that use of the book-entry system for the bonds is discontinued.

To facilitate subsequent transfers, all Bonds deposited by Direct Participants with DTC are registered in the name of DTC's partnership nominee, Cede & Co., or such other name as may be requested by an authorized representative of DTC. The deposit of Bonds with DTC and their registration in the name of Cede & Co. or such other DTC nominee do not effect any change in beneficial ownership. DTC has no knowledge of the actual Beneficial Owners of the Bonds; DTC's records reflect only the identity of the Direct Participants to whose accounts such Bonds are credited, which may or may not be the Beneficial Owners. The Direct and Indirect Participants will remain responsible for keeping account of their holdings on behalf of their customers.

Conveyance of notices and other communications by DTC to Direct Participants, by Direct Participants to Indirect Participants, and by Direct Participants and Indirect Participants to Beneficial Owners will be governed by arrangements among them, subject to any statutory or regulatory requirements as may be in effect from time to time. Beneficial Owners of Bonds may wish to take certain steps to augment the transmission to them of notices of significant events with respect to the Bonds, such as redemptions, tenders, defaults, and proposed amendments to the transaction documents. For example, Beneficial Owners of Bonds may wish to ascertain that the nominee holding the Bonds for their benefit has agreed to obtain and transmit notices to Beneficial Owners. In the alternative, Beneficial

Owners may wish to provide their names and addresses to the registrar and request that copies of notices be provided directly to them.

Redemption notices shall be sent to DTC. If less than all of the Bonds within a maturity are being redeemed, the amount of the interest of each Direct Participant in such issue to be redeemed shall be determined on a pro rata basis in accordance with the "Pro Rata Pass Through Distributions of Principal" procedures of DTC.

Neither DTC nor Cede & Co. (nor any other DTC nominee) will consent or vote with respect to Bonds unless authorized by a Direct Participant in accordance with DTC's Procedures. Under its usual procedures, DTC mails an Omnibus Proxy to the Issuer as soon as possible after the record date. The Omnibus Proxy assigns Cede & Co.'s consenting or voting rights to those Direct Participants to whose accounts Bonds are credited on the record date (identified in a listing attached to the Omnibus Proxy).

Principal and interest payments on the Bonds will be made to Cede & Co., or such other nominee as may be requested by an authorized representative of DTC. DTC's practice is to credit Direct Participants' accounts upon DTC's receipt of funds and corresponding detail information from the Issuer, on payable date in accordance with their respective holdings shown on DTC's records. Payments by Participants to Beneficial Owners will be governed by standing instructions and customary practices, as is the case with securities held for the accounts of customers in bearer form or registered in "street name," and will be the responsibility of such Participant and not of DTC or its nominee, or the Issuer, subject to any statutory or regulatory requirements as may be in effect from time to time. Payment of principal and interest payments to Cede & Co. (or such other nominee as may be requested by an authorized representative of DTC) is the responsibility of the Issuer, disbursement of such payments to Direct Participants will be the responsibility of DTC, and disbursement of such payments to the Beneficial Owners will be the responsibility of Direct and Indirect Participants.

DTC may discontinue providing its services as depository with respect to the Bonds at any time by giving reasonable notice to the Issuer. Under such circumstances, in the event that a successor depository is not obtained, bonds are required to be printed and delivered.

The Issuer may decide to discontinue use of the system of book-entry transfers through DTC (or a successor securities depository). In that event, the bonds will be printed and delivered.

The information in this section concerning DTC and DTC's book-entry system has been obtained from sources that the Issuer believes to be reliable, but the Issuer takes no responsibility for the accuracy thereof.

APPENDIX G
FORM OF CONTINUING DISCLOSURE AGREEMENT

$13,500,000
INLIVIAN
Multifamily Green Tax-Exempt Mortgage-backed Bonds
(GREEN M-TEBS) (Northcross Townhomes), Series 2020

This Continuing Disclosure Agreement, dated as of April 1, 2020 (this "Continuing Disclosure Agreement"), is executed and delivered by Northcross Preservation, L.P., a New York limited partnership (the "Borrower"), and U.S. Bank National Association, as dissemination agent (the "Dissemination Agent"). The above-captioned bonds (the "Bonds") are being issued pursuant to an Indenture of Trust, dated as of April 1, 2020 (the "Indenture"), between INLIVIAN (the "Issuer") and U.S. Bank National Association (the "Trustee"). Pursuant to the Indenture and Financing Agreement, dated as of April 1, 2020, among the Issuer, the Trustee and the Borrower (the "Financing Agreement"), the Dissemination Agent and the Borrower covenant and agree as follows:

Section 1. Purpose of this Continuing Disclosure Agreement. This Continuing Disclosure Agreement is being executed and delivered by the Borrower and the Dissemination Agent for the benefit of the holders of the Bonds and in order to assist the Participating Underwriter in complying with the Rule (defined below). The Borrower and the Dissemination Agent acknowledge that the Issuer has undertaken no responsibility with respect to any reports, notices or disclosures provided or required under this Continuing Disclosure Agreement, and has no liability to any person, including any holder of the Bonds or Beneficial Owner, with respect to any such reports, notices or disclosures.

Section 2. Definitions. In addition to the definitions set forth in the Indenture, which apply to any capitalized term used in this Continuing Disclosure Agreement unless otherwise defined in this Section, the following capitalized terms shall have the following meanings:

"*Annual Report*" shall mean any Annual Report provided by the Borrower pursuant to, and as described in, Sections 3 and 4 of this Continuing Disclosure Agreement and Exhibit A hereto.

"*Audited Financial Statements*" means, in the case of the Borrower, the annual audited financial statements prepared in accordance with generally accepted accounting principles, if any.

"*Beneficial Owner*" shall mean any person which (a) has the power, directly or indirectly, to vote or consent with respect to, or to dispose of ownership of, any Bonds (including persons holding Bonds through nominees, depositories or other intermediaries), or (b) is treated as the owner of any Bonds for federal income tax purposes.

"*Disclosure Representative*" shall mean the administrator of the Project or his or her designee, or such other person as the Borrower shall designate in writing to the Dissemination Agent from time to time.

"*Dissemination Agent*" shall mean U.S. Bank National Association, acting in its capacity as Dissemination Agent hereunder, or any successor Dissemination Agent designated in writing by the Borrower and which has filed with the Trustee a written acceptance of such designation.

"*Listed Events*" shall mean any of the events listed in Section 5(a) of this Continuing Disclosure Agreement.

"*MSRB*" means the Municipal Securities Rulemaking Board established pursuant to Section 15B(b)(1) of the Securities Exchange Act of 1934. All documents provided to the MSRB shall be in an electronic format and accompanied by identifying information, as prescribed by the MSRB. Initially, all document submissions to the MSRB pursuant to this Continuing Disclosure Agreement shall use the MSRB's Electronic Municipal Market Access (EMMA) system at www.emma.msrb.org.

"*Participating Underwriter*" means Wells Fargo Bank, National Association, and its successors and assigns.

"*Rule*" means Rule 15c2-12(b)(5) adopted by the Securities and Exchange Commission under the Securities Exchange Act of 1934, as the same may be amended from time to time.

Section 3. Provision of Annual Reports. (a) The Borrower will, or will cause the Dissemination Agent to, not later than 180 days following the end of the Borrower's fiscal year, commencing with the fiscal year ending on December 31, 2020, provide to the MSRB an Annual Report which is consistent with the requirements described below. No later than 15 Business Days prior to said date, the Borrower will provide the Annual Report to the Dissemination Agent and the Trustee (if the Trustee is not the Dissemination Agent). In each case, the Annual Report may be submitted as a single document or as separate documents comprising a package and may cross reference other information, provided that the audited financial statements for the prior calendar year of the Borrower may be submitted separately from the balance of the Annual Report.

(b) If by 15 Business Days prior to the date specified in subsection (a) for providing the Annual Report to the MSRB, the Dissemination Agent has not received a copy of the Annual Report, the Dissemination Agent will contact the Disclosure Representative to determine if the Borrower is in compliance with subsection (a).

(c) If the Dissemination Agent is unable to verify that an Annual Report has been provided to the MSRB by the date required in subsection (a), the Dissemination Agent will send in a timely manner a notice to the MSRB in substantially the form attached as Exhibit B to this Continuing Disclosure Agreement.

(d) The Dissemination Agent will file a report with the Borrower and (if the Dissemination Agent is not the Trustee) the Trustee certifying that the Annual Report has been provided pursuant to this Continuing Disclosure Agreement, stating the date it was provided.

Section 4. Content of Annual Reports. The Borrower's Annual Report will contain or incorporate by reference the following:

Financial information with respect to the Project, provided at least annually, of the type included in Exhibit A hereto, which Annual Report may, but is not required to, include Audited Financial Statements. If the Borrower's Audited Financial Statements are not available by the time the Annual Report is required to be filed, the Annual Report will contain unaudited financial statements in a format similar to the financial statements contained in the final Official Statement, and the Audited Financial Statements will be filed in the same manner as the Annual Report when and if they become available.

Any or all of the items listed above may be incorporated by reference from other documents, including official statements of debt issues with respect to which the Borrower is an "Obligated Person" (as defined by the Rule), which have been filed with the MSRB. The Borrower will clearly identify each such other document so incorporated by reference.

Each annual report submitted hereunder shall be in readable portable document format ("PDF") or other acceptable electronic form.

Section 5. Reporting of Listed Events. (a) This Section 5 shall govern the giving of notices of the occurrence of any of the following events (each, a "Listed Event"):

(i) Principal and interest payment delinquencies;

(ii) Non-payment related defaults, if material;

(iii) Unscheduled draws on debt service reserves reflecting financial difficulty;

(iv) Unscheduled draws on credit enhancements reflecting financial difficulty;

(v) Substitution of credit or liquidity providers, or their failure to perform;

(vi) Adverse tax opinions, the issuance by the Internal Revenue Service of proposed or final determinations of taxability, Notices of Proposed Issue (IRS Form 5701-TEB) or other material notices or determinations with respect to the tax status of the Bonds, or other material events affecting the tax status of the Bonds;

(vii) Modifications to rights of holders of the Bonds, if material;

(viii) Bond calls, if material, and tender offers;

(ix) Defeasances;

(x) Release, substitution or sale of property securing repayment of the Bonds, if material;

(xi) Rating changes;

(xii) Bankruptcy, insolvency, receivership or similar event of the Borrower. For purposes of this clause (xii), any such event shall be considered to have occurred when any of the following occur: the appointment of a receiver, fiscal agent or similar officer for the Borrower in a proceeding under the U.S. Bankruptcy Code or in any other proceeding under state or federal law in which a court or governmental authority has assumed jurisdiction over substantially all of the assets or business of the Borrower, or the entry of an order confirming a plan of reorganization, arrangement or liquidation by a court or governmental authority having supervision or jurisdiction over substantially all of the assets or business of the Borrower;

(xiii) The consummation of a merger, consolidation, or acquisition involving the Borrower or the sale of all or substantially all of the assets of the Borrower, other than in the ordinary course of business, the entry into a definitive agreement to undertake such an action or the termination of a definitive agreement relating to any such actions, other than pursuant to its terms, if material;

(xiv) Appointment of a successor or additional trustee or paying agent or the change of the name of a trustee or paying agent, if material;

(xv) Incurrence of a financial obligation of the Borrower, if material, or agreement to covenants, events of default, remedies, priority rights, or other similar terms of a financial obligation of the Borrower, any of which affect security holders, if material; and

(xvi) Default, event of acceleration, termination event, modification of terms, or other similar events under the terms of the financial obligation of the Borrower, any of which reflect financial difficulties.

For purposes of clauses (xv) and (xvi) of this Section 5(a), "financial obligation" is as contemplated by Exchange Act Release No. 34-83885; File No. S7-01-17 (the "Adopting Release").

(b) The Dissemination Agent shall, within three (3) Business Days of obtaining actual knowledge of the occurrence of any potential Listed Event, pursuant to subsection (c) of this Section 5 or otherwise, provide the Disclosure Representative with notice (by facsimile transmission confirmed by telephone or by email). While the Dissemination Agent is also the Trustee, the Dissemination Agent shall be deemed to have actual knowledge of those items listed in clauses (i), (iii) (solely with respect to funds held by the Trustee), (iv), (v), (vii), (viii), (ix), (x) and (xiv) above without the Dissemination Agent having received notice of such event. While the Dissemination Agent is not also the Trustee, the Dissemination Agent shall not be deemed to have actual knowledge of any items listed in clauses (i) - (xiv) above without the Dissemination Agent's having received written notice of such event. For purposes of providing notice to the Disclosure Representative, the Dissemination Agent shall assume that the unscheduled draws described in clauses (iii) and (iv) reflect financial difficulty.

(c) Whenever the Borrower obtains knowledge of the occurrence of a potential Listed Event, the Borrower shall, within five (5) Business Days of obtaining such knowledge and in any event no more than eight (8) Business Days after the occurrence of such event, determine if such event is in fact a Listed Event that is required by

the Rule to be disclosed and provide the Dissemination Agent with notice and instructions pursuant to subsections (d) below.

(d) If the Borrower has determined that a Listed Event is required to be disclosed then the Borrower shall prepare a written notice describing the Listed Event and provide the same to the Dissemination Agent along with instructions to file the same pursuant to subsection (e) below.

(e) If the Dissemination Agent has been provided with a written notice describing a Listed Event pursuant to subsection (c) of this Section 5 or otherwise, and is instructed by the Borrower to report the occurrence of such Listed Event, the Dissemination Agent shall, within two (2) Business Days of its receipt of such written notice and in any event no more than ten (10) Business Days after the occurrence of the Listed Event, file the notice with the MSRB and send a copy to the Borrower.

Section 6. Amendment; Waiver. Notwithstanding any other provision of this Continuing Disclosure Agreement, the Borrower and the Dissemination Agent may amend this Continuing Disclosure Agreement (and the Dissemination Agent will agree to any amendment so requested by the Borrower unless such amendment adversely affects its rights, duties, protections, immunities, indemnities or standard of care, as determined by the Dissemination Agent) and any provision of this Continuing Disclosure Agreement may be waived, provided that the following conditions are satisfied:

(a) If the amendment or waiver relates to the provisions described under paragraph (a) under "Provision of Annual Reports," "Contents of Annual Reports" or paragraph (a) under "Reporting of Listed Events," it may only be made in connection with a change in circumstances that arises from a change in legal requirements, change in law or change in the identity, nature or status of an Obligated Person (as defined in the Rule) with respect to the Bonds or the type of business conducted;

(b) The undertaking, as amended or taking into account such waiver, would, in the opinion of nationally recognized bond counsel, have complied with the requirements of the Rule at the time of the original issuance of the Bonds, after taking into account any amendments or interpretations of the Rule, as well as any change in circumstances; and

(c) The amendment or waiver either (i) is approved by the Holders of the Bonds in the same manner as provided in the Indenture for amendments to the Indenture with the consent of Holders or (ii) does not, in the opinion of nationally recognized bond counsel, materially impair the interests of the Holders or Beneficial Owners of the Bonds.

In the event of any amendment or waiver of a provision of this Continuing Disclosure Agreement, the Borrower will describe such amendment in the next Annual Report and will include, as applicable, a narrative explanation of the reason for the amendment or waiver and its impact on the type (or, in the case of a change of accounting principles, on the presentation) of financial information being presented by the Borrower. In addition, if the amendment relates to the accounting principles to be followed in preparing financial statements, (i) notice of such change will be given in the same manner as for a Listed Event under Section 5(f) hereof and (ii) the Annual Report for the year in which the change is made should present a comparison (in narrative form and also, if feasible, in quantitative form) between the financial statements as prepared on the basis of the new accounting principles and those prepared on the basis of the former accounting principles.

Section 7. Default. In the event of a failure of the Borrower or the Dissemination Agent to comply with any provision of this Continuing Disclosure Agreement, and such failure to comply continues beyond a period of thirty (30) days following written notice to the Borrower, the Borrower or any Holder or Beneficial Owner of the Bonds may, take such actions as may be necessary and appropriate, including seeking, or specific performance by court order, to cause the Borrower or the Dissemination Agent, as the case may be, to comply with its obligations under this Continuing Disclosure Agreement. A default under this Continuing Disclosure Agreement will not be deemed an Event of Default under the Indenture or the Financing Agreement, and the sole remedy under this Continuing Disclosure Agreement in the event of any failure of the Borrower or the Dissemination Agent to comply with this Continuing Disclosure Agreement will be an action to compel performance.

Section 8. Beneficiaries. This Continuing Disclosure Agreement will inure solely to the benefit of the Borrower, the Dissemination Agent, the Participating Underwriter and Holders from time to time of the Bonds and will create no rights in any other person or entity.

Section 9. Additional Information. Nothing in this Continuing Disclosure Agreement shall be deemed to prevent the Borrower from disseminating any other information, using the means of dissemination set forth in this Continuing Disclosure Agreement or any other means of communication, or including any other information in any Annual Report or notice of occurrence of a Listed Event, in addition to that which is required by this Continuing Disclosure Agreement. If the Borrower chooses to include any information in any Annual Report or notice of occurrence of a Listed Event, in addition to that which is specifically required by this Continuing Disclosure Agreement, the Borrower shall have no obligation under this Continuing Disclosure Agreement to update such information or include it in any future Annual Report or notice of occurrence of a Listed Event.

Section 10. Duties, Immunities and Liabilities of Dissemination Agent.

(a) The Dissemination Agent shall have only such duties as are specifically set forth in this Continuing Disclosure Agreement. The Dissemination Agent's obligation to deliver the information at the times and with the contents described herein shall be limited to the extent the Borrower has provided such information to the Dissemination Agent as required by this Continuing Disclosure Agreement. The Dissemination Agent shall have no duty with respect to the content of any disclosures or notice made pursuant to the terms hereof. The Dissemination Agent shall have no duty or obligation to review or verify any information, disclosures or notices provided to it by the Borrower and shall not be deemed to be acting in any fiduciary capacity for the Issuer, the Holders of the Bonds or any other party. The Dissemination Agent shall have no responsibility for the Borrower's failure to report to the Dissemination Agent a Notice Event or a duty to determine the materiality thereof. The Dissemination Agent shall have no duty to determine, or liability for failing to determine, whether the Borrower has complied with this Continuing Disclosure Agreement. The Dissemination Agent may conclusively rely upon Certifications of the Borrower at all times.

The obligations of the Borrower under this Section shall survive resignation or removal of the Dissemination Agent and defeasance, redemption or payment of the Bonds.

(b) The Dissemination Agent may, from time to time, consult with legal counsel (either in-house or external) of its own choosing in the event of any disagreement or controversy, or question or doubt as to the construction of any of the provisions hereof or its respective duties hereunder, and shall not incur any liability and shall be fully protected in acting in good faith upon the advice of such legal counsel. The reasonable fees and expenses of such counsel shall be payable by the Borrower.

(c) All documents, reports, notices, statements, information and other materials provided to the MSRB under this Agreement shall be provided in an electronic format and accompanied by identifying information as prescribed by the MSRB.

Section 11. Notices. All notices, requests, demands or other communications to or upon the respective parties hereto shall be deemed to have been duly given or made when delivered personally or by mail (including overnight and electronic mail) to the party to which such notice, request, demand or other communication is required or permitted to be given or made under this Continuing Disclosure Agreement and addressed as set forth below:

If to the Borrower:

Northcross Preservation, L.P.
c/o Related Companies
60 Columbus Circle, 18th Floor
New York, NY 10023
Attention: Matthew Finkle
Email: mfinkle@related.com

With a copy to:

Levitt & Boccio, LLP
423 West 55th Street, 8th Floor
New York, NY 10019
Attention: David Boccio
Email: dboccio@levittboccio.com

If to the Dissemination Agent:

U.S. Bank National Association
214 N. Tryon Street, 27th Floor
Charlotte, NC 28202
Attention: Corporate Trust
Email: paul.vaden@usbank.com

Section 12. Governing Law. This Continuing Disclosure Agreement shall be governed by the laws of the State of North Carolina.

Section 13. Termination of this Continuing Disclosure Agreement. The Borrower or the Dissemination Agent may terminate this Continuing Disclosure Agreement by giving written notice to the other party at least 30 days prior to such termination. The Dissemination Agent shall be fully discharged at the time any such termination is effective. The Borrower's and the Dissemination Agent's obligations under this Continuing Disclosure Agreement shall terminate upon the legal defeasance, prior redemption or payment in full of all of the Bonds. If such termination occurs prior to the final maturity of the Bonds, the Borrower shall give notice of such termination in a filing with the MSRB.

Section 14. Counterparts. This Continuing Disclosure Agreement may be executed in several counterparts, each of which shall be an original and all of which shall constitute but one and the same instrument.

[Remainder of page intentionally left blank]

IN WITNESS WHEREOF, the parties hereto have caused this Continuing Disclosure Agreement to be executed by their duly authorized representatives as of the date set forth above.

NORTHCROSS PRESERVATION, L.P.,
a New York limited partnership

By: Northcross Preservation GP, LLC,
a New York limited liability company,
its general partner

By: _____
Matthew Finkle
Vice President

[Signatures continue on following page]

[Dissemination Agent's Signature Page to Continuing Disclosure Agreement]

U.S. BANK NATIONAL ASSOCIATION,
as Dissemination Agent

By: _____
Authorized Officer

EXHIBIT A

ANNUAL REPORT

$13,500,000
INLIVIAN
Multifamily Green Tax-Exempt Mortgage-backed Bonds
(GREEN M-TEBS) (Northcross Townhomes), Series 2020
CUSIP:

Report for Period Ending _____

THE PROJECT

Name: Northcross Townhomes

Address: 1801-1835 Griers Grove Road, Charlotte, NC 28216

Number of Units: 99

Number of Units Occupied as of Report Date: _____ [(excluding ___ manager's units)]

OPERATING HISTORY OF THE PROJECT

The following table sets forth a summary of the operating results of the Project for fiscal year ended _____, as derived from the Borrower's [un]audited financial statements.
Revenues
Operating Expenses[1]
Net Operating Income
Debt Service on the Bonds
Net Operating Income/(Loss)
After Debt Service

The average physical occupancy of the Project for the fiscal year ended [___] was [___]% and the average economic occupancy of the Project for the fiscal year ended [___] was [___]%.

[1]Excludes depreciation and other non-cash expenses, includes management fee.

EXHIBIT B

NOTICE OF FAILURE TO
FILE ANNUAL DISCLOSURE REPORT

Name of Issuer:	INLIVIAN
Name of Issue:	Multifamily Green Tax-Exempt Mortgage-backed Bonds (GREEN M-TEBS) (Northcross Townhomes), Series 2020
Name of Borrower:	Northcross Preservation, L.P.
CUSIP:	45753CAA5
Date of Issuance:	April 15, 2020

NOTICE IS HEREBY GIVEN that the above-referenced borrower (the "Borrower") has not provided an Annual Report with respect to the above-named Bonds as required by its Continuing Disclosure Agreement. The undersigned has been informed by the Borrower that it anticipates that Annual Report will be filed by _____.

DATED:_____

U.S. BANK NATIONAL ASSOCIATION,
as Dissemination Agent

By: _____
Authorized Officer

cc: Borrower

APPENDIX H
TERM SHEET

This Term Sheet assumes the related Mortgage Loan is originated in an amount equal to the maximum amount available under the Lender Commitment and that all the conditions to delivery of the MBS have been satisfied and have not been waived or modified. See "Multifamily Schedule of Loan Information" *herein*.

$13,500,000
CLOSING DATE: April 15, 2020
INLIVIAN
Multifamily Green Tax-Exempt Mortgage-Backed Bonds (GREEN M-TEBS) (Northcross Townhomes), Series 2020

FANNIE MAE MULTIFAMILY POOL NUMBER BL6589
BOND CUSIP 45753CAA5

POOL STATISTICS (AS OF CLOSING DATE)

TAX-EXEMPT BOND ISSUE INFORMATION *(Information provided by Issuer for this Official Statement)*	
BOND ISSUER NAME	INLIVIAN ("Issuer")
BOND ISSUE SERIES	Multifamily Green Tax-Exempt Mortgage-Backed Bonds (GREEN M-TEBS) (Northcross Townhomes), Series 2020
BOND ISSUE PAR	$13,500,000
BOND DATED DATE	April 1, 2020
BOND MATURITY DATE	May 1, 2037
BOND ISSUE TAX STATUS	See "TAX MATTERS" in the Official Statement.
BOND ISSUE CUSIP	45753CAA5
COLLATERAL FOR THE BOND ISSUE	Fannie Mae DUS MBS (see pool info below)
BOND ISSUE CREDIT RATING	Moody's "Aaa"
BOND CLOSING DATE	April 15, 2020
BOND PAYMENT DATES	One business day later than payment on underlying Fannie Mae MBS[1]
BOND FIRST PAYMENT DATE	May 26, 2020
BOND FIRST PRINCIPAL PAYMENT DATE	June 26, 2020
BOND FINAL PAYMENT DATE	The Business Day after the MBS payment is received on May 25, 2037, or, if such day is not a Business Day, the next Business Day
ALL OTHER BOND ISSUE TERMS	Same as underlying MBS

[1] There shall be no further accrual of interest from the Bond Maturity Date to the to the date on which the final payment is received with respect to the Bonds. Because of this lag in payment of principal and interest inherent in the payment terms of the Bonds and the one Business Day lag in payment, the effective yield on the Bonds will be lower than the Bond Net Pass-Through Rate on the Bonds.

BOND PREPAYMENT TERMS	See "DESCRIPTION OF THE BONDS – Mandatory Redemption of Bonds" in the Official Statement.
BOND NET PASS THROUGH RATE	2.55%
BOND OFFERING PRICE	100%
BOND UNDERWRITER COMPENSATION	$101,250.00
BOND UNDERWRITER	Wells Fargo Bank, National Association
MANDATORY REDEMPTION OF BONDS	See "THE BONDS – Mandatory Redemption of Bonds" in the Official Statement.
OPTIONAL REDEMPTION OF BONDS	The Bonds are not subject to optional redemption.
BOND EXCHANGE FEATURE	See "DESCRIPTION OF THE BONDS – Optional Exchange of Bonds for MBS" in the Official Statement.
MBS DELIVERY DATE DEADLINE	June 25, 2020, or, if such day is not a Business Day, the following Business Day, which may be extended in accordance with terms of the Indenture
BOND TRUSTEE	U.S. Bank National Association
BOND REMAINING TERM TO MATURITY	From the Closing Date to May 1, 2037
WEIGHTED AVERAGE LIFE	14.7 years
UNDERLYING FANNIE MAE POOL STATISTICS (AS OF ISSUE DATE) *(Information provided by Lender for this Official Statement)*	
NOTE RATE	3.71%
ISSUANCE PASS-THROUGH RATE	2.55%
POOL ISSUANCE UPB	$13,500,000
MAXIMUM ISSUANCE UPB	$13,500,000
POOL MATURITY DATE	May 1, 2037
EXPECTED MBS DELIVERY DATE	May 13, 2020
WEIGHTED AVERAGE ORIGINAL LOAN TERM (MONTHS)	17 years (204 months)
REMAINING TERM TO MATURITY	From the Closing Date to May 1, 2037
NUMBER OF LOANS	1
POOL SECURITY FUNDS TRANSFER TYPE	Fed Wire
TRANSACTION TYPE	DUS
POOL FIRST PAYMENT DATE	25th day of the month following the month in which the MBS is delivered, or the following Business Day if such day is not a Business Day
POOL FINAL PAYMENT DATE	May 25, 2037, or the following Business Day if such day is not a Business Day
SECURITY TYPE	Fannie Mae MBS
SELLER NAME	Wells Fargo Bank, National Association
SERVICER NAME	Wells Fargo Bank, National Association
POOL NUMBER	BL6589
% OF INITIAL POOL BALANCE	100%
POOL PREFIX	HY

MULTIFAMILY SCHEDULE OF LOAN INFORMATION *(Information provided by Lender for this Official Statement)*	
FANNIE MAE LOAN NUMBER	820118104
LOAN MATURITY DATE	May 1, 2037
TIER	2
TIER DROP ELIGIBLE	No
LIEN PRIORITY	First
WEIGHTED AVERAGE LTV	88.82%
WEIGHTED AVERAGE ISSUANCE UW NCF DSCR(x)	1.18x
BALLOON	Yes
OTHER DEBT	No
ORIGINAL UPB	$13,500,000
ISSUANCE UPB	$13,500,000
ISSUANCE UPB/UNIT	$136,364
PREPAYMENT PREMIUM OPTION	Yield Maintenance – CMT as defined in the Fannie Mae Multifamily MBS Prospectus
PREPAYMENT PREMIUM TERM	Fannie Mae yield maintenance premium from Closing Date through April 30, 2030 (120 months).[2] Thereafter, a 1% prepayment penalty shall apply through April 30, 2035 (60 months).[3] Thereafter, no prepayment premium shall apply.
PREPAYMENT PREMIUM END DATE	April 30, 2030 (YM); April 30, 2035 (1%)
FIRST LOAN PAYMENT DATE	June 1, 2020
ORIGINAL TERM (MONTHS)	204 months
WEIGHTED AVERAGE AMORTIZATION TERM (MONTHS)	35 years (420 months)
INTEREST TYPE	Fixed
INTEREST ACCRUAL METHOD	Actual/360
INTEREST ONLY END DATE	N/A
INTEREST ONLY TERM (MONTHS)	N/A
NOTE DATE	April 15, 2020
WEIGHTED AVERAGE ACCRUING NOTE RATE (%)	3.71%
LOAN PURPOSE	Acquisition/Rehabilitation
ISSUANCE NOTE RATE (%)	3.71%
MONTHLY DEBT SERVICE	$57,449.17
MONTHLY DEBT SERVICE AMOUNT PARTIAL IO	N/A
GREEN REWARDS?	Yes

[2] A portion of this prepayment premium, if collected, may be shared with Certficateholders under the circumstances described in "YIELD, MATURITY AND PREPAYMENT CONSIDERATIONS—Maturity and Prepayment Considerations—Prepayment of a Mortgage Loan—Prepayment Premiums" in the Fannie Mae MBS Prospectus.

[3] No portion of this prepayment premium, if collected, will be shared with Certificateholders under any circumstances as is described in "YIELD, MATURITY AND PREPAYMENT CONSIDERATIONS—Maturity and Prepayment Considerations—Prepayment of a Mortgage Loan—Prepayment Premiums" in the Fannie Mae MBS Prospectus.

COLLATERAL INFORMATION *(Information provided by Lender for this Official Statement)*	
LOAN NUMBER	820118104
PROPERTY ID	TBD
PROPERTY NAME	Northcross Townhomes
PROPERTY STREET ADDRESS	1835 Griers Grove Road
PROPERTY CITY	Charlotte
PROPERTY STATE	North Carolina
PROPERTY ZIP CODE	28216
PROPERTY COUNTY	Mecklenburg
MSA	Charlotte–Concord–Gastonia
YEAR BUILT	1972
PHYSICAL OCCUPANCY	98% as of December 31, 2019
UNDERWRITTEN ECONOMIC OCCUPANCY	95%
MAXIMUM PASS-THROUGH RATE	2.55%
MINIMUM PASS-THROUGH RATE	2.55%
REMAINING AMORTIZATION TERM	420 months
ISSUANCE LTV	88.82%, which LTV is based on an underwritten value
ALL-IN ISSUANCE LTV	88.82%, which LTV is based on an underwritten value
UNDERWRITTEN EFFECTIVE GROSS INCOME	$1,449,074
UNDERWRITTEN TOTAL OPERATING EXPENSES	$613,895, including annual replacement reserves
UNDERWRITTEN REPLACEMENT RESERVES	$350 per unit per year
UW NCF ($)	$835,179
CROSS-COLLATERALIZED (Y/N)	N
CROSS-DEFAULTED (Y/N)	N
GENERAL PROPERTY TYPE	Multifamily
SPECIFIC PROPERTY TYPE	Multifamily residential
LAND OWNERSHIP RIGHTS	Fee Simple
PROPERTY VALUE	$15,200,000 as-renovated stabilized (appraisal dated as of February 10, 2020)
SEISMIC RISK	The Project meets any Fannie Mae tests that require any mitigants for seismic risk.
TERRORISM INSURANCE COVERAGE (Y/N)	Y
TOTAL NUMBER OF UNITS	99
AFFORDABLE HOUSING TYPE	Low Income Housing Tax Credit (“LIHTC”) (99 units)
TAXES CURRENTLY ESCROWED	Yes
PROPERTY OWNER	Northcross Preservation, L.P.
SPONSOR	The Related Companies, L.P.
PROPERTY MANAGER	TRG Management Company, LLP

PROPERTY MANAGER EXPERIENCE	The Property Manager currently manages and will continue to manage the Project following the rehabilitation of the Project by the Borrower. The Property is an affiliate of the Borrower. The Property Manager presently manages approximately over 80 properties, including over 10,000 affordable housing units in multiple states. The Property Manager has nearly 40 years of experience managing affordable housing supported by various federal, state and local subsidies including HUD, tax-exempt obligations and federal low-income housing tax credits.
UNIT OF MEASURE	Units
MULTIFAMILY SCHEDULE OF LOAN INFORMATION	
CRA INFORMATION *(Information provided by Borrower for this Official Statement)*	
UNITS AT OR BELOW 50% OF MEDIAN INCOME	Tenant income not to exceed 60% Area Median Income on average across all units (See "The Project Regulation" Section of the Official Statement for more detail
UNITS AT OR BELOW 60% OF MEDIAN INCOME	Tenant income not to exceed 60% Area Median Income on average across all units (See "The Project Regulation" Section of the Official Statement for more detail
UNITS WITH INCOME OR RENT RESTRICTION %	100% (99 units)
AGE RESTRICTED INDICATOR	No
TAX ABATEMENT	No
TAX CREDIT INVESTOR	Wells Fargo Affordable Housing Community Development Corporation
REGULATORY AGREEMENTS OVERSEER	INLIVIAN
REGULATORY AGREEMENT SET-ASIDES	Under the Regulatory Agreement, the Borrower will agree that, at all times during the Qualified Project Period (as defined in the Regulatory Agreement), the Borrower will rent at least 40% of the units in the project to persons whose adjusted family income (determined in accordance with the provisions of the Code) is less than 60% of AMI (adjusted for family size). In addition to the rental restrictions imposed upon the Project by the Regulatory Agreement, the Project will be further encumbered by a tax credit restrictive covenant, to be executed by the Borrower in connection with LIHTC that is anticipated to be granted for the Project and in compliance with Section 42 of the Code. It is anticipated that 100% of the residential units in the Project will be restricted under Section 42 of the Code. The Project will utilize the income averaging provisions of the Code to create a mix of income restrictions up to 80% of the AMI such that the average is at or below 60% of AMI for each unit type. The number of units at the various income levels may change from time to time, but the Project intends to remain in compliance with the income averaging limit average.

LIHTC LOW INCOME HOUSING TAX CREDIT ELIGIBILITY	The Project has applied for and received 4% LIHTC in the State of North Carolina, which requires a certain amount of rehabilitation and limits the income of the tenants to families making up to 80% of AMI such that the average is at or below 60% of AMI for each unit type. The Project must have tax-exempt financing for over 50% of project cost in order to be eligible for LIHTC.

APPENDIX I
PROPOSED FORM OF OPINION OF BOND COUNSEL

Set forth below is the proposed form of opinion of McGuireWoods LLP, Bond Counsel, regarding the Bonds. It is preliminary and subject to change prior to delivery of the Bonds.

April 15, 2020

INLIVIAN
Charlotte, North Carolina

$13,500,000
INLIVIAN
Multifamily Green Tax-Exempt Mortgage-Backed Bonds (GREEN M-TEBS)
(Northcross Townhomes), Series 2020

Ladies and Gentlemen:

We have served as Bond Counsel in connection with the issuance and sale by INLIVIAN (the "Issuer") of its $13,500,000 Multifamily Green Tax-Exempt Mortgage-Backed Bonds (GREEN M-TEBS) (Northcross Townhomes), Series 2020, dated the date hereof (the "Bonds"). The Bonds have been issued pursuant to the Housing Authorities Law (Article 1 of Chapter 157 of the General Statutes of North Carolina), as amended (the "Act"), and pursuant to the terms of the Indenture of Trust dated as of April 1, 2020 (the "Indenture"), between the Issuer and U.S. Bank National Association, as trustee (the "Trustee"). Unless otherwise defined, each capitalized term used in this opinion shall have the meaning given it in the Indenture.

We have examined the Constitution of the State of North Carolina and the laws of both the United States and the State of North Carolina including, without limitation, the Internal Revenue Code of 1986, as amended (the "Code"), and the Act, and such certified proceedings and other documents of the Issuer as we deem necessary to render this opinion, including the resolutions adopted by the Issuer on March 17, 2020, authorizing the issuance of the Bonds.

The proceeds of the Bonds will be loaned to Northcross Preservation, L.P. (the "Borrower") under the Financing Agreement dated as of April 1, 2020 (the "Financing Agreement"), among the Issuer, the Borrower and the Trustee, for the purpose of financing a portion of the cost of the acquisition, rehabilitation and equipping of a 99-unit multifamily housing development known as Northcross Townhomes (the "Project") and located in the City of Charlotte, North Carolina (the "City"). The use and operation of the Project are subject to the provisions of a Regulatory Agreement and Declaration of Restrictive Covenants dated as of April 1, 2020 (the "Regulatory Agreement"), among the Borrower, the Issuer and the Trustee. The Regulatory Agreement requires, among other things, that the Project be operated as a "qualified residential rental project" within the meaning of and for the period required by Section 142(d) of the Code.

Under the Financing Agreement, the Borrower has agreed to make payments to be used to pay the principal of, premium, if any, and interest on the Bonds, and such payments and other revenues under the Financing Agreement (collectively, the "Revenues") and the rights of the Issuer under the Financing Agreement (except for the Reserved Rights of the Issuer) are pledged and assigned by the Issuer as security for the Bonds. Payments with respect to the principal of and interest on the Bonds are payable solely from the Revenues.

As to questions of fact material to our opinion, we have relied upon: (a) representations of and compliance with covenants by the Borrower and the Issuer contained in the Financing Agreement, the Regulatory Agreement, the Tax Certificate and the Indenture; (b) certificates of public officials furnished to us; and (c) certificates of representatives of the Borrower, the Issuer and other parties, including, without limitation, representations, covenants and certifications as to the use, expenditure and investment of the proceeds of the Bonds, the use of the Project as a "qualified residential rental project" for a "qualified project period," compliance with the arbitrage reporting and rebate requirements, the average reasonably expected economic life of the property being financed with the Bonds

and other factual matters which are relevant to the opinions expressed in numbered paragraph 4 below. We have assumed that all signatures on documents, certificates and instruments examined by us are genuine, all documents, certificates and instruments submitted to us as originals are authentic and all documents, certificates and instruments submitted to us as copies conform to the originals. In addition, we have assumed that all documents, certificates and instruments relating to this financing have been duly authorized, executed and delivered by all of their parties other than the Issuer, and we have further assumed the due organization, existence and powers of such other parties other than the Issuer.

Reference is made to the opinions of Levitt & Boccio, LLP and Williams Mullen LLP, counsel to the Borrower, dated today, as to, among other things, the due authorization, execution and delivery of the Financing Documents and related documents by the Borrower and the enforceability of such documents against the Borrower, upon which you are relying as to matters therein.

Based on the foregoing, we are of the opinion that:

1. The Issuer is validly organized and existing under North Carolina law and has the power to execute and deliver the Financing Documents to which it is a party, to perform the agreements on its part contained in the Financing Documents to which it is a party, to issue the Bonds and to apply the proceeds from the issuance and sale of the Bonds as set forth in the Indenture.

2. The Bonds have been duly authorized, executed and delivered in accordance with the Indenture and the Act and, subject to the exceptions set forth below, are valid and binding limited obligations of the Issuer payable solely from the Revenues and other property specifically pledged for such purpose under the Indenture. The Bonds do not create or constitute a debt or a pledge of the faith and credit of the State of North Carolina or any political subdivision thereof, including without limitation, the City or the Issuer.

3. The Financing Documents to which the Issuer is a party have been duly authorized, executed and delivered by the Issuer and, subject to the exceptions set forth below, constitute valid and binding obligations of the Issuer, enforceable against the Issuer in accordance with their respective terms.

4. Under current law, interest on the Bonds (a) is excludable from gross income for purposes of federal income taxation (except during any period while a Bond is held by a "substantial user" of the Project or a "related person" within the meaning of Section 147(a) of the Code) and (b) is not treated as a tax preference item in calculating the alternative minimum income tax imposed under the Code. The opinions set forth in this paragraph are subject to compliance by the Issuer and the Borrower with all of the requirements of the Code that must be satisfied after the issuance of the Bonds so that the interest on them is, or continues to be, excluded from gross income for federal income tax purposes. Each of the Issuer and the Borrower has covenanted to comply with these requirements. Failure to comply with certain of these requirements may cause the inclusion of interest on the Bonds in gross income for federal income tax purposes to be retroactive to the date of issuance of the Bonds. We express no opinion regarding other federal tax consequences arising with respect to the Bonds.

This opinion letter speaks as of its date, is based on current legal authority and precedent, covers certain matters not directly addressed by such authority and precedent, and represents our judgment as to the proper treatment of interest on the Bonds for federal income tax purposes. This opinion letter does not contain or provide any opinion or assurance regarding the future activities of the Issuer and the Borrower or about the effect of future changes in the Code, the applicable regulations, the interpretation thereof or the enforcement thereof by the Internal Revenue Service. The Issuer and the Borrower have covenanted, however, to comply with the requirements of the Code.

5. Interest on the Bonds is not subject to taxation as income by the State of North Carolina.

The enforceability of the Bonds and the Financing Documents is subject to bankruptcy, insolvency, reorganization, moratorium, and similar laws now or hereafter in effect affecting creditors' rights, and is also subject to the exercise of judicial discretion in accordance with general principles of equity.

Our services as Bond Counsel have been limited to rendering the foregoing opinion based on our review of such legal proceedings as we deem necessary to approve the validity of the Bonds and the tax status of the interest on them. The foregoing opinion is in no respect an opinion as to the Issuer's or Borrower's business or financial resources or their ability to provide for the payment of the Bonds or the accuracy or completeness of any information that anyone may have relied upon in making the decision to purchase the Bonds.

This opinion is delivered solely for the benefit of the addressees hereof. It may not be relied upon by any other person, in whole or in part, without our prior written consent. This opinion is given as of the date hereof, and we assume no obligation to revise or supplement this opinion to reflect any facts or circumstances that may hereafter come to our attention, or any changes in law that may hereafter occur.

Very truly yours,

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